

# **Submission on the Proposed Auckland Unitary Plan Environmental Defence Society Incorporated**

## **SUBMITTER DETAILS**

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## **FORMAL SUBMISSION**

1. This is a submission on the proposed Auckland Combined Plan (“PAUP”).
2. EDS could not gain an advantage in trade competition through this submission.
3. The specific aspects and provisions of the PAUP that this submission relates to are identified in **Annexures 1 and 2.**
4. EDS’s submission is as follows:
  - a. EDS is a not-for-profit national environmental organisation. EDS was established in 1971 with the objective of bringing together the disciplines of law, science and planning in order to promote better environmental outcomes in resource management matters. EDS has been active in assessing the effectiveness of the RMA and planning documents in addressing key environmental issues including landscape protection, coastal management and water quality.
  - b. This submission addresses a number of topics and provisions. These are identified in **Annexures 1 and 2.**
  - c. Overall, EDS seeks that Auckland Council approve the PAUP with changes as set out in this submission or similar and consequential relief.
  - d. EDS considers that unless the changes, deletions and additions sought in this submission are made then the PAUP and in particular the specific provisions challenged:
    - i. Will not promote the sustainable management of resources;
    - ii. Will be inconsistent with the resource management principles addressed in Part 2 of the Resource Management Act 1991 (“RMA”);
    - iii. Will variously be inappropriate, unnecessary and contrary to sound resource management practice;
    - iv. Will not warrant confirmation in terms of section 32;
    - v. Will be contrary to relevant provisions in the Hauraki Gulf Marine Park Act 2000, Waitakere Ranges Heritage Area Act 2008, the New Zealand Coastal Policy Statement 2010, other National Policy Statements and National Environmental Standards; and
    - vi. Will enable the generation of significant adverse effects on the environment that warrant being addressed through PAUP provisions.
  - e. An overview of EDS’s position concerning the PAUP and its strategic concerns are set out in **Annexure 1.** EDS

incorporates into this submission and relies on the general reasons articulated in **Annexure 1**.

- f. EDS incorporates into this submission and relies on the more specific reasons articulated in **Annexure 2** with respect to each of the specific matters addressed in that schedule.

5. EDS seeks the following relief from Council:

- a. That the PAUP Plan be amended so that it responds appropriately to and resolves the issues raised in this submission. In that regard EDS seeks:
  - i. The relief specified in **Annexure 1**.
  - ii. The changes, deletions and additions specified in **Annexure 2**.
- b. Sub-paragraph (a) identifies indicative examples of relief that would address appropriately certain of the matters raised in this submission. Other forms of wording and relief may also be appropriate and within the scope of the matters raised in this submission. EDS therefore provides the relief sought above by way of example but not to the exclusion of other appropriate and effective methods of upholding this submission.
- c. All changes required or desirable as a consequence of the above.
- d. Such other relief as is considered appropriate or necessary to address the concerns set out in this submission.

6. EDS wishes to be heard in support of this submission.

7. If others make a similar submission, EDS will consider presenting a joint case with them at the hearing.

#### **ABBREVIATIONS**

CCO = Council Controlled Organisation  
CMA = Coastal Marine Area  
DOC = Department of Conservation  
EDS = Environmental Defence Society Incorporated  
HGMPA = Hauraki Gulf Marine Park Act 2000  
HNC = High Natural Character  
IBA = Important Bird Areas  
MUL = Metropolitan Urban Area  
NLMA = Natural Lake Management Area  
NPPA = National Pest Plant Accord  
NPSFM = National Policy Statement for Freshwater Management 2011  
NSMA = Natural Stream Management Area  
NZCPS = New Zealand Coastal Policy Statement 2010  
RMA = Resource Management Act 1991  
RPMS = Regional Pest Management Strategy  
ONC = Outstanding Natural Character  
ONF = Outstanding Natural Feature  
ONL = Outstanding Natural Landscape  
PAUP = Proposed Auckland Unitary Plan  
PNPSIB = Proposed National Policy Statement on Indigenous Biodiversity  
RPS = Regional Policy Statement  
RUB = Rural Urban Boundary  
SEA = Significant Ecological Area  
SMAF = Stormwater Management Area Flow  
ULMA = Urban Lake Management Areas  
WMA = Wetland Management Area  
WRHAA = Waitakere Ranges Heritage Areas Act 2008  
WSMA = Water Supply Management Area

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## ANNEXURE 1 – OVERVIEW AND STRATEGIC CONCERNS

### 1 Urban Growth

- 1.1 In general, EDS supports the PAUP provisions relating to urban growth. No more than 40 percent of new dwellings will be located outside the 2010 MUL, within the RUB, rural and coastal villages and general rural areas. EDS agrees that the RUB must be a defensible, permanent rural-urban interface and not subject to incremental change. EDS also agrees that there needs to be tighter controls on rural subdivision outside the urban boundary.
- 1.2 EDS agrees with Auckland Council that the compact city strategy is supported when having regard to the cost of servicing developments with infrastructure (brownfield vs greenfield developments), agglomeration benefits (for employment density), market preferences (e.g. business location), and maintaining valuable productive rural land outside of the RUB. The compact city model also promotes quality places, urban amenity, accessibility to key transport infrastructure, and employment diversity that can only be found in or around major centres.
- 1.3 However, EDS has five key concerns:
- 1.3.1 EDS is concerned that the PAUP does not sufficiently identify or emphasise the importance the proposed compact city strategy plays in protecting areas of high and outstanding coastal natural character, high and outstanding natural landscape quality, high existing or potential biodiversity significance and those which contain outstanding natural features. Such areas commonly exist outside the proposed RUB and are or should be an essential component in justifying the compact city strategy. Also, the PAUP does not sufficiently identify the potential benefits for the CMA of a compact city though the reduction of vehicular traffic generation and a commensurate reduction in the dispersal of toxic pollutants (including heavy metals) which are at risk of entering the marine environment. EDS seeks that the PAUP be strengthened to recognise these matters.
- 1.3.2 EDS is concerned that increasing the population of Auckland's existing urban areas will necessitate corresponding increases in infrastructure capacity which has not been provided for. The development of quality infrastructure must precede intensification to avoid adverse effects which may result from overwhelming existing infrastructure, including water, stormwater, wastewater, telecommunications and transport (e.g. Kumeu area is an example of development preceding infrastructure). This issue is exacerbated by the failure of the PAUP to provide for staging of development. In particular, all development opportunities within the Mixed Housing Zone will become available at the same time, yet it is not possible to predict where and to what extent that development will occur. EDS seeks that the PAUP provide for the prioritisation and staging of the intensification programme, based on locations which can be serviced relatively efficiently. The first priorities should be (1) intensification in the immediate vicinity of the CBD and the ten metropolitan centres and (2) minimum density requirements for greenfield developments. Intensification in the Mixed Use Zones should follow in accordance with increases in infrastructure capacity.
- 1.3.3 EDS is concerned that the Unitary Plan takes no account of the potential for future volcanic events in the Auckland region. Much of existing urban Auckland is located on a volcanic field. While the presence of the existing dormant volcanoes is acknowledged by the Unitary Plan in terms of their aesthetic and heritage value the Unitary Plan does not take into account the most significant source of risk for the region in determining where to locate urban growth. Focusing Auckland's growth on the isthmus will make it more difficult to manage any evacuation from Auckland if and when a volcanic event occurs, maximise the loss of housing and business resources at that time, and most likely render key parts of the city largely inoperative during and after such an event. EDS seeks that the Unitary Plan acknowledge the potential for volcanic events and endeavours to put in place an urban form that locates duplicate resources in areas of the region that are outside the volcanic field and is able to be serviced from the rest of the country in the event of an eruption.
- 1.3.4 EDS is concerned that the PAUP creates but does not solve a tension between the need to accommodate growth and the wish to preserve character. In particular, there are large areas of land zoned Mixed Housing where the pre-1944 overlay also applies. As a result, resource consent will be required for the removal of any pre-1944 building if intensification is to occur. This will require a debate on the priority to be given to growth versus character to be carried out in each resource consent process, adding cost and time and uncertainty to the process. Instead, the issue should be

settled once, at this the planning stage. The PAUP should identify zonings that reflect a conclusion on the tension between intensification and character in each area.

1.3.5 EDS is concerned that the PAUP does not give appropriate recognition to the geography of Auckland when determining the location of intensification, and therefore does not minimise travel distances to the CBDs from outlying areas. For example, it does not adequately provide for three major employment and cultural centres (Albany, CBD, Manukau). It would also drive ribbon development along existing motorway and rail networks that will extend travel distances. This should be addressed by conglomerating intensification around the three CBDs. For example, more efficient development in the South would involve (1) developing west of Hingaia to the Weymouth Channel (2) Bridging the Weymouth Channel to provide 5 to 10 minute access to the Manukau Metro Centre (3) provide an alternative link from Drury to Manukau via that bridge to add robustness and capacity to the southern links and take pressure off the Southern Motorway and the Wiri interchange. This requires the planning vision to drive infrastructure development (such as roads) and will require significant linking between Auckland Council's planning team and CCOs.

1.3.6 EDS is concerned that the PAUP does not give sufficient weight to the issue of urban open space. Intensification will lead to reduction in private open space in urban areas. This will negatively impact on liveability unless communal open spaces are provided for in locations which are easily accessible (e.g. walking distance). EDS seeks that in areas identified for intensification adequate open space areas are required to be obtained prior to intensification.

1.4 Relief sought:

- Retain the compact city model
- Retain the requirement for no more than 40 percent of new dwellings to be located outside the 2010 MUL
- Retain the RUB within the RPS
- Amend the PAUP to recognise the importance the proposed compact city strategy plays in protecting areas of high natural and amenity value
- Amend the PAUP to provide for staging of the intensification programme and to ensure that development of quality infrastructure precedes intensification
- Amend the PAUP to recognise the potential for future volcanic events in the existing urban Auckland area
- Amend the PAUP to include zonings that provide a conclusion regarding the tension between accommodating growth and preserving character in some areas
- Amend the PAUP to recognise the geography of Auckland when determining the location of intensification with the goal of reducing travelling distance to the three CBDs
- Amend the PAUP to ensure adequate urban open space is provided as intensification occurs

## 2 Rural Areas

2.1 In general, EDS supports the PAUP provisions relating to Rural Areas. In particular, EDS supports those provisions that seek protection of land with high productive capability and the protection of areas of high and outstanding coastal natural character, outstanding natural landscape quality, high existing or potential biodiversity significance and which contain outstanding natural features. However in some respects the provisions are weak or incomplete. The EDS submissions seek that the PAUP be strengthened to properly recognise these matters. These submissions are complemented by other EDS submissions including those relating to the PAUP's urban growth provisions.

2.2 Relief sought:

- Retain the provisions which provide for the protection of land with high productive capability and the protection of areas with high natural or amenity values.

## 3 Landscape and Natural Character

- 3.1 There are several statutory and policy provisions which apply to the management of landscape and natural character values within the Auckland region, and which the Auckland Unitary Plan needs to give effect to. These include:
- Section 6(a) of the RMA which requires “the preservation of the natural character of the coastal environment (including the coastal marine area), wetlands, and lakes and rivers and their margins, and the protection of them from inappropriate subdivision use and development.”
  - Section 6(b) of the RMA which requires “the protection of outstanding natural features and landscapes from inappropriate subdivision, use and development”
  - Section 7 of the RMA which refers to “the maintenance and enhancement of amenity values”
  - Policies 13, 14 and 15 of the NZCPS address the preservation of natural character, restoration of natural character and natural features and natural landscapes respectively. These require amongst other things, the avoidance of adverse effects on areas of the coastal environment with outstanding natural character and on outstanding natural features and landscapes. Significant adverse effects need to be avoided on other natural character areas and natural landscapes in the coastal environment.
- 3.2 The identification of ONLs within the Auckland region is comprehensive. The overlay has been incorporated into the RPS which helps ensure that they cannot be changed by *ad hoc* private plan changes. However the level of protection given to these areas is not sufficient to ensure their protection from individual or cumulative impacts, and does not give effect to the NZCPS. The level of protection needs to be strengthened. The PAUP should recognise Plan Change 8 to the Auckland Regional Policy Statement, which reflects a recent Environment Court process.
- 3.3 Landscapes which contribute to the amenity of the region have not been identified and there are no robust objectives, policies or rules to ensure their protection. This means that the maintenance and enhancement of amenity is unlikely to be achieved. An overlay showing what were previously identified in the operative RPS as “regionally significant landscapes” needs to be incorporated into the proposed RPS, with appropriate provisions to ensure their effective management to retain amenity values.
- 3.4 Volcanic viewshafts have been identified as an overlay and there are provisions contained in the plan designed to protect them. Many activities which may impinge on the viewshaft have been identified as non-complying activities, but this needs to be changed to prohibited in order to effectively protect the viewshafts from cumulative effects.
- 3.5 Areas with ONC and HNC have been identified on the planning maps, and a high level of protection has been given to ONCs which is supported. However not all areas which have outstanding natural character values have been identified in the ONC overlay. Additional areas, identified through a rigorous analysis, must be included in the ONC overlay. The level of protection given to areas of HNC is not sufficient to ensure their protection against individual and cumulative effects and needs to be strengthened.
- 3.6 The maps do not identify the landward extent of the coastal environment, but a Rural Coastal Zone has been identified which extends over much of the coastal environment outside urban areas. However, in some rural areas the Rural Coastal Zone does not include the entire coastline and/or is not extensive enough to include the entire coastal environment. In these areas the zone needs to be expanded.
- 3.7 Relief sought:
- Retain the identification of ONLs and ONC areas within the RPS
  - Retain the identified ONLs and recognise Plan Change 8 to the operative RPS
  - Increase the level of protection afforded to ONLs
  - Insert an ‘amenity landscapes’ overlay and provisions to maintain and enhance the values of these areas
  - Extend the ONC overlay to include all areas with outstanding natural character values
  - Retain the provisions protecting the values of ONC areas
  - Extend the Rural Coastal Zone to include the entire coastal environment.

## Terrestrial Biodiversity

- 3.8 Terrestrial biodiversity is under threat nationwide from both habitat loss and the impacts of invasive species. Both the persistence of biodiversity and ecosystem function must be protected as the Auckland region grows and intensification occurs. EDS is concerned that the provisions in the PAUP do not go far enough in ensuring that this occurs.
- 3.9 The protection of trees and vegetation in both urban and rural areas is an important dimension of creating a healthy region. Celebrating and enhancing our natural heritage can only occur when the importance of trees and vegetation are recognised and rules put in place to protect them. In recent years, amendments to the RMA have made it more difficult to protect urban trees and vegetation via regulatory means. It is important that whatever powers the Council has to protect this critical resource are used to best effect. EDS is concerned at the weak tree and vegetation protection provisions in the PAUP and believes they should be strengthened.
- 3.10 The PAUP must implement Council's functions which include (section 6(a) and (c) and sections 30 and 31 RMA):
- The preservation of the natural character of the coastal environment (including the coastal marine area), wetlands, and lakes and rivers and their margins, and the protection of them from inappropriate subdivision, use and development
  - The protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna
  - The establishment, implementation, and review of objectives, policies, and methods for maintaining indigenous biological diversity.
  - The control of any actual or potential effects of the use, development, or protection of land for the purpose of the maintenance of indigenous biological diversity.
- 3.11 Another critical requirement is the need to 'give effect to' Policy 11 of the NZCPS.
- 3.12 EDS's key concern in relation to biodiversity is ensuring the PAUP gives effect to sections 6(a) and (c), 30(1)(ga) and 31(1)(b)(iii) of the RMA and policy 11 of the NZCPS. In addition, biodiversity contributes to freshwater quality, natural character and amenity, and management of biodiversity for these purposes is also a key focus for EDS.
- 3.13 The PAUP does not meet these requirements or adequately provide for these values. In particular, EDS is concerned that protection is limited to rural areas and limited overlays. In order to maintain indigenous biodiversity across the region, a whole-of-region approach is required.
- 3.14 Greater focus must be placed upon the enhancement of biodiversity, as many of the ecosystems found throughout the region are under significant pressure from invasive species and habitat loss.
- 3.15 The protection, maintenance and enhancement of biodiversity and ecosystem function does not enjoy sufficient priority in the PAUP. A separate issue should be added to acknowledge this and elements related to it reallocated further through the document.
- 3.16 A no-net loss, and preferably a net gain, approach should be applied, across the region on both a project by project basis and overall for biodiversity (significant and otherwise). This includes a requirement for offsetting in respect of adverse effects which cannot be avoided, remedied or mitigated.
- 3.17 EDS supports the use of the mitigation hierarchy. It is important that adverse effects are avoided first, and remedied or mitigated only if this is not possible. Where high value resources are at stake, all significant adverse effects should be avoided.

- 3.18 Biodiversity offsetting, within the gamut of avoidance, remediation and mitigation is referred to throughout the plan with no clear context. Biodiversity offsetting of residual effects should be mandatory when significant ecological values are subject to unavoidable effects. Biodiversity offsets must be provided for only where the mitigation hierarchy has been adhered to, and where no net loss of biodiversity can be demonstrably achieved. There are a number of possible sets of principles to which offsets approved via resource consenting could be assessed, including those from the Business and Biodiversity Offset Programme ([http://bbop.forest-trends.org/documents/files/bbop\\_principles.pdf](http://bbop.forest-trends.org/documents/files/bbop_principles.pdf)) or those articulated in McKenney & Kiesecker 2010 and outlined by Brown et al 2014<sup>1</sup>. Offsetting within the PAUP must give effect to a robust set of principles which need to be articulated. Offsetting should not seek to justify otherwise unacceptable effects, and appropriate monitoring and security should be provided for, including compulsory RMA bonds.
- 3.19 In addition to a robust regulatory regime, non-regulatory methods are essential to meet these requirements and protect these values. The PAUP should be amended to include greater non-regulatory methods.
- 3.20 EDS generally supports the retention of the present SEA layer for terrestrial environs, although specific amendments are proposed. The criteria by which the layer has been determined however, is inadequate and EDS submits a range of suggested changes should be made. Furthermore, the SEA layer should be able to be updated as a “living” layer as ecosystems are created and restored over time.
- 3.21 EDS is concerned that there are no objectives and policies in Part 2 Chapter E of the PAUP relating to SEAs. Policy direction is required for these areas, particularly as many activities in these areas will require resource consents to proceed.
- 3.22 Applications for resource consents should be required to include an assessment of environmental effects for protected species, in order to meet the requirements of the Wildlife Act 1953 which prohibits the disturbance of protected species.
- 3.23 EDS considers that the provisions to protect trees, groups of trees and vegetation are weak and unlikely to achieve the desired objectives of the PAUP.
- 3.24 An additional tier for scheduling of trees should be added to the PAUP.
- 3.25 The provisions to protect trees, groups of trees and vegetation in sensitive areas such as the coastal conservation zone, urban gullies and riparian zones are weak and require significant strengthening.
- 3.26 Relief sought:
- Add a new issue which acknowledges the threats to biodiversity and need for action
  - Add a new objective seeking to achieve no net loss and preferably net gain across the Auckland region
  - Amend the policies to require adherence to the mitigation hierarchy
  - Amend the policies to provide clear direction on the implementation of biodiversity offsetting, including the articulation of principles of offsetting
  - Provide additional non-regulatory methods
  - Retain the SEA layer, subject to the amendments sought in the submission below
  - Amend the SEA criteria as set out in the submission below
  - Amend the PAUP to provide for additions to the SEA layer over time
  - Add regional objectives and policies relating to SEAs
  - Amend the rules to provide a greater level of protection for SEAs
  - Amend the rules to provide a greater level of protection for trees and vegetation, particularly in sensitive areas
  - Add an additional tier for scheduling of trees
  - Amend the PAUP to ensure a greater focus is placed on enhancement of biodiversity

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<sup>1</sup> Marie A. Brown, Bruce D. Clarkson, R.T. Theo Stephens and Barry J. Barton (2014) Compensating for ecological harm – the state of play in New Zealand New Zealand Journal of Ecology 38 (1) Pages: 139–146

## 4 Coastal Environment

- 4.1 Section 6(a) of the RMA requires “the preservation of the natural character (including the coastal marine area), wetlands, and lakes and rivers and their margins, and the protection of them from inappropriate subdivision, use and development”. Section 6(c) of the RMA requires “the protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna”. Section 6(d) of the RMA requires “the maintenance and enhancement of public access to and along the coastal marine area, lakes and rivers”.
- 4.2 The NZPCS provides more direction on how these and other provisions are to be implemented within the coastal environment, including how to protect natural character, coastal landscapes and biodiversity; how to effectively manage use and development to avoid cumulative effects; how to protect and enhance public access; how to address sedimentation; and how to manage coastal hazards.
- 4.3 The PAUP must ‘give effect’ to the requirements of the NZCPS. In particular (and without derogating from the generality of the obligation) EDS is concerned to see that the PAUP gives effect to policies 3, 11, 13, 15, 21, 22 and 23.
- 4.4 In the PAUP the identification of ecologically important areas within the CMA is very poor, with areas identified as Marine SEAs largely being within intertidal areas or estuaries, with no consistent and robust technical rationale for the identification of some areas and not others being evident, and with ecologically important areas within the large bulk of the CMA not identified. In addition, there are no provisions designed to enable future areas of ecological importance within the CMA to be identified, including the habitat of threatened or at risk species, or to provide for their protection. This means that the plan makes no provision to protect the significant ecological values of much of the CMA and this fails to give effect to section 6(c) of the RMA or Policy 11 of the NZCPS. This is a serious defect and needs to be remedied, in the first instance, through the robust identification of Marine SEAs.
- 4.5 Sedimentation affecting the CMA is not adequately controlled, especially that from non-point discharges in the rural area, and there is no linkage between the management of sediment-generating activities and the areas of degraded water quality (which include many of the major estuaries in the region) which are identified in the RPS.
- 4.6 The management of aquaculture is very inadequate and the controls proposed insufficient to ensure that important values within the coastal environment are protected whilst enabling aquaculture to occur in appropriate locations.
- 4.7 The ecological rationale for liberalising mangrove removal provisions has not been adequately explained and the provisions linking the ability to remove mangroves back to a line present in 1996 is arbitrary and not based on technical analysis. The ability to remove mangroves has not been strongly enough linked to the management of sediment-generating activities, which is necessary to ensure that the adverse effects of mangrove removal can be avoided in the future.
- 4.8 The management of development in areas affected by natural hazards including sea-level rise is inadequate, and fails to adequately address the seriousness of the problem and need to avoid new development in hazard areas.
- 4.9 Major development in the CMA has significant adverse effects and where a development is authorised and these effects cannot be fully remedied or mitigated, provision needs to be made for the residual effects to be offset through restoration and enhancements actions to achieve no net loss and preferably a net gain in terms of the natural heritage of the coastal environment (adopting the approach set out in paragraphs 4.9-4.11 above).
- 4.10 Relief sought:
- Identify additional SEA – Marine areas through a robust assessment process
  - Strengthen provisions which address sedimentation
  - Strengthen provisions which manage aquaculture

- Amend mangrove removal provisions to ensure the ability to remove mangroves in areas where they are expanding is based on a robust technical basis and is linked to management of sediment-generating activities
- Prohibit new development in areas subject to coastal hazards including sea level rise
- Ensure any residual adverse effects of coastal / marine activities are offset to achieve no net loss, preferably net gain

## 5 Freshwater

- 5.1 In relation to freshwater, the PAUP must, in particular:
- Give effect to the NPSFM
  - Satisfy the Council's functions in relation to freshwater set out in sections 30 and 31 RMA.
- 5.2 The Unitary Plan puts in place an interim regime for freshwater objectives and limits – it must provide for a catchment specific regime to be developed progressively prior to 2030.
- 5.3 EDS supports the key regionally significant issues identified which can be summarised as the following: loss or degradation of waterbodies; degradation of water quality; and demand for freshwater use.
- 5.4 In respect of these issues the objectives must clearly provide for: preventing any further loss or degradation of waterbodies; improving the quality of freshwater; and maintaining flows and levels of waterbodies which protect ecosystem health. EDS submits that the objectives do not clearly provide for these matters and amendments are required.
- 5.5 EDS supports the focus on addressing the key issues of stormwater runoff, wastewater overflows, nutrients and sediment discharges. The PAUP should put in place measures to reduce these adverse effects from the current baseline over time.
- 5.6 The water quality objective should be for all water bodies to comply with the bottom lines by 2030, with those currently of good quality being maintained at or above that level. No freshwater bodies should be able to deteriorate below present water quality.
- 5.7 EDS supports the objective of progressively reducing the amount of freshwater used by Auckland per capita. This should specify that the reductions must ensure no increase in Auckland's total water use (e.g. per capita reductions result in no increase in water use as population growth occurs).
- 5.8 The use of overlays to identify high value areas (e.g. Natural Stream, Wetland Management) and areas with particular issues (e.g. High-use Stream Management Areas) is supported. EDS requests that factors other than the extent of riparian vegetation are considered for identifying Natural Stream Management Areas e.g. high water quality / high ecological values.
- 5.9 EDS supports the policy of avoiding adverse effects in Natural Stream, Natural Lake, Urban Lake, Significant Ecological Areas and Wetland Management Areas. These areas have significant values which must be protected.
- 5.10 The use of MCI for interim water quality limits is supported as it provides a good reflection of ecosystem health. However, EDS opposes in part the MCI figures proposed as limits. The proposed limit for urban areas is in the range for 'poor' ecosystem health, as a minimum the limit should be within the 'ok' range. The MCI limit for rural areas should be 100. EDS supports the MCI limit for native and exotic forest which is in the 'excellent' range.
- 5.11 EDS requests stronger controls on activities e.g. earthworks, rural production discharges (particularly non-point source discharges), stormwater, wastewater. The current controls are too permissive and will not achieve the objectives.
- 5.12 Relief sought:
- Retain the key issues: loss or degradation of waterbodies; degradation of water quality; and demand for freshwater use.
  - Amend the objectives to provide for preventing any further loss or degradation of waterbodies; improving the quality of freshwater; and maintaining flows and levels of waterbodies which protect ecosystem health.
  - Retain the focus on stormwater runoff, wastewater overflows, nutrients and sediment discharges.
  - Amend the objective of progressively reducing freshwater use, to ensure no increase in freshwater use

- Retain the overlays identifying high value freshwater bodies and freshwater bodies with particular management issues
- Use additional factors to identify additional Natural Stream Management Areas
- Retain provisions which require avoidance of adverse effects in high value freshwater bodies
- Retain the use of MCI for interim water quality limits
- Amend the MCI water quality limits in urban and rural areas
- Strengthen provisions, particularly those affecting stormwater runoff, wastewater overflows, nutrients and sediment discharges, to ensure the objectives will be achieved.

## 6 Climate Change

- 6.1 EDS supports the identification of climate change as a regionally significant issue.
- 6.2 EDS supports a 'mitigate and adapt' approach to managing this issue.
- 6.3 EDS supports methods to reduce reliance on private motor vehicles for transport
- 6.4 EDS supports best practice sustainable design, energy efficient design, and water sensitive design. However, it requests that these are *required for all* new development.
- 6.5 EDS supports methods to reduce the risks from sea level rise. However, it requests that the PAUP require avoidance of hard engineering methods which have adverse environmental effects, particularly in respect of new development.
- 6.6 EDS supports the policy of responding to climate change threats, such as pest and disease, to areas of indigenous ecological value. However, it requests that methods to achieve this are provided.
- 6.7 Relief sought:
- Retain climate change as a regionally significant issue.
  - Retain the 'mitigate and adapt' approach to managing this issue.
  - Retain methods to reduce reliance on private motor vehicles.
  - Apply requirements for best practice sustainable design, energy efficient design, and water sensitive design to all new developments and strengthen those requirements
  - Amend to require avoidance of hard engineering methods, particularly in respect of new development
  - Provide methods setting out how climate change threats will be responded to

## **7 Waitakere Ranges**

- 7.1 The PAUP must implement the Waitakere Ranges Heritage Area Act 2008. In particular, the Heritage Area Objectives (section 8) must be achieved through the PAUP.
- 7.2 EDS supports the structure and general content of K.7.9 Precinct Rules – West – Waitakere Ranges Heritage Area.
- 7.3 EDS supports provisions that protect the Waitakere Ranges from the adverse effects of subdivision. The Waitakere Ranges are properly managed as public and private open space to the greatest extent possible. Subdivision in the Ranges should be a prohibited activity. EDS supports provisions that protect indigenous vegetation across the Ranges.
- 7.4 Waitakere Quarry: This area contains important ecological values. EDS supports the protective zoning / overlays attached to it. The Quarry Management Plan and rules in the legacy plan should be transferred to the PAUP.

## **8 Long Bay and Okura**

- 8.1 EDS is interested in the management framework proposed for the Long Bay and Okura areas. The Okura area contains an estuary and marine reserve of ecological importance. The Long Bay area drains into a Regional Park and marine reserve. The management framework must provide for the protection of these values.
- 8.2 There has been extensive litigation addressing the issues facing these areas culminating in Environment Court decisions (including *Long Bay-Okura Great Park Society Inc v North Shore City Council* (NZEnvC A078/08, 16 July 2008)). These decisions should be reflected in the PAUP.
- 8.3 The Long Bay Structure Plan has been condensed from approximately 15 pages to approximately 3 pages. Important details have been lost. This must be remedied.

## ANNEXURE 2 – DETAILED SUBMISSION POINTS

### 10. INTRODUCTION AND STRATEGIC DIRECTION

| Section                                     | Submission                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Relief Sought                                                                                                                                                                                                                                                                                                                                                                                 |
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| <i>Chapter A: Introduction</i>              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                               |
|                                             | <p><i>Support, with amendments</i></p> <p>The PAUP urban growth provisions are based on the Capacity for Growth Study (November 2012). The section 32 analysis acknowledges that further iterations of this study will provide an important basis for forecasting uptake of Unitary Plan capacity. The PAUP should proceed on the basis of the best available current information. 2013 census data is now becoming available. This data suggests growth in the Auckland Region will not reach the forecast numbers on which growth provided for in the PAUP is based, within the given timeframe.</p> | <p>That the PAUP be amended as necessary given the information now available from the 2013 census. This new information should be used to ensure that rezoning for urban growth outside 2010 MUL does not prematurely result in excessive provision for growth in that area, particularly where that may mean a lesser proportion (than 60%) of actual growth occurs within the 2010 MUL.</p> |
| <i>Chapter B: Regional Policy Statement</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                               |
| General                                     | <p><i>Support</i></p> <p>EDS supports the urban growth provisions and the position of the RUB being defined in the RPS part of the PAUP as this ensures that future private plan changes cannot amend RPS provisions.</p>                                                                                                                                                                                                                                                                                                                                                                              | <p>Retain the urban growth provisions and the position of the RUB being defined in the RPS part of the PAUP.</p>                                                                                                                                                                                                                                                                              |
| General                                     | <p><i>Oppose</i></p> <p>The methods included in the RPS are brief and are not extensive enough, particular concern relates to the lack of direction around non-regulatory methods.</p>                                                                                                                                                                                                                                                                                                                                                                                                                 | <p>Add further non-regulatory methods, including use of targeted rates (e.g. to monitor and enforce permitted activity controls) and the establishment / continuation of an Environmental Response Team or similar providing targeted engagement with sectors and the community on specific environmental issues.</p> <p>Add detail regarding the implementation of each method.</p>          |
| <i>1 Issues of regional significance</i>    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                               |
| General                                     | <p><i>Oppose in part</i></p> <p>While EDS supports the comprehensive list of regional issues in the main, it does not give sufficient primacy to biodiversity and ecosystem function. The list of 'Issues of Regional Significance' does not include an issue focussed upon the protection of biodiversity and ecosystem function, instead relegating it to the third of three sub-issues in Issue 3 (Protecting our historic heritage, special character and natural heritage).</p>                                                                                                                   | <p>That an additional Issue be included that is focussed upon biodiversity and ecosystem function. e.g. Issue X – loss and degradation of biodiversity and ecosystem function.</p>                                                                                                                                                                                                            |
| 1.B.1.1.1                                   | <p><i>Support in part</i></p> <p>The PAUP does not fully outline the reasons that a compact city model and positioning of the RUB line is necessary. The PAUP does not refer to the adverse effects of peripheral urban growth on the coastal environment, outstanding and amenity landscapes, outstanding natural features, ecological health, biodiversity and the future provision of ecological linkages.</p>                                                                                                                                                                                      | <p>Amend Issue 1.1 by adding wording to refer to the adverse effects of peripheral urban growth on the coastal environment, outstanding and amenity landscapes, outstanding natural features, ecological health, biodiversity and the future provision of ecological linkages.</p>                                                                                                            |

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| 1.B.1.1.3 | <p><i>Support in part</i></p> <p>Issue 1.3 refers to active stewardship to protect historic and natural heritage for the future which is supported. But due to the significant degradation of natural heritage which has occurred within the region there is also a need to restore natural heritage.</p> <p>The discussion of natural character, landscape and features refers to the cumulative effects of subdivision, use and development “to be considered”. This does not comply with the RMA which requires active protection of natural character and outstanding natural landscapes and features.</p> <p>One of the key challenges for maintaining indigenous biodiversity in the coastal marine area, which has not been explicitly referred to, is halting the further loss of important marine habitats and restoring those which have been lost. There is also a need to manage the adverse effects of marine activities as well as land use on coastal and marine ecosystems.</p> <p>The issue does not refer to the importance of landscapes in maintaining amenity.</p> | <p>Include a reference to the need to “restore” natural heritage within the region.</p> <p>Include a statement which makes it clear that cumulative effects of subdivision, use and development on natural character, landscape and features need to be effectively managed.</p> <p>Insert explicit reference to the indigenous biodiversity challenge of halting the further loss of important marine habitats and restoring those which have been lost. In addition, insert specific reference to the need to manage the adverse effects of marine activities as well as land use.</p> <p>Include a statement on the importance of carefully managing landscapes which contribute to amenity.</p> |
| 1.B.1.1.5 | <p><i>Support in part</i></p> <p>In essence, this recognises three key issues in relation to freshwater:</p> <ol style="list-style-type: none"> <li>1. Loss or fragmentation of rivers, stream, wetlands and their margins</li> <li>2. Degradation of water quality, in particular due to stormwater and wastewater in urban areas and nutrients and sediment in rural areas</li> <li>3. Demand for freshwater, in particular due to the growth of Auckland and constraints on supply due to climatic and land use factors, and resulting ecological effects of water takes</li> </ol> <p>EDS agrees that these accurately reflect the freshwater resource management issues in Auckland. However the wordy narrative articulation of the issues makes this section difficult to utilise.</p>                                                                                                                                                                                                                                                                                           | <p>Retain the identification of the three key issues summarised to the left and articulate these in a clearer manner.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 1.B.1.1.6 | <p><i>Oppose in part</i></p> <p>The issue is expressed in an ambiguous manner because it refers to the need for subdivision, use and development to be in an “appropriate” location and of an “appropriate” form without specifying what might be appropriate in any particular situation. Issue 1.6 is not clear or certain.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <p>Amend Issue 1.6 to clearly state that there are areas of the coastal environment, including those identified as HNCs, ONCs, ONFs, ONLs and SEAs where further development and further subdivision that may result in development in those areas is not appropriate.</p>                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.1.1.7 | <p><i>Support in Part</i></p> <p>The introduction to the issue is supported. However the important references to the rural area’s natural and physical resource base, significant indigenous biodiversity and natural landscapes, social, economic and cultural value to Mana Whenua, amenity values and rural character are not carried through to the Explanation. The Explanation</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | <p>Expand the Explanation by introducing a balanced recognition of all matters important to sustainable management of the rural environment.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|                                        | focusses on Rural production which is only part of the reason rural areas need to be carefully managed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                            |
| 1.B.1.1.8                              | <p><i>Support in part</i></p> <p>EDS supports the identification of climate change as a regionally significant issue.</p> <p>EDS supports the identification of 'Challenges for Auckland'. These should reflect the best available scientific information.</p> <p>EDS supports the adoption of a 'mitigate and adapt' approach to climate change. This recognises that there is potential for human action to prevent further climate change however some climate change is now in the system.</p> <p>EDS agrees that management of land use and integration with transport will be central to the response to climate change. However, management of freshwater resources will also be critical as droughts become more common and additional biodiversity management will be required to reduce biodiversity decline.</p> <p>The mitigation section recognises that energy use for transport dominates Auckland's emissions profile. Given this statistic, the discussion (which currently focuses on non-transport energy use) should provide further information about energy use for transport.</p> <p>The adaptation section recognises the need to manage increased natural hazard events. It should also address issues relating to freshwater and biodiversity to reflect the challenges identified.</p> | <p>Retain elements supported.</p> <p>Amend to recognise increased droughts will increase importance of freshwater management.</p> <p>Amend to provide further information about energy use for transport.</p> <p>Amend adaptation section to address challenges relating to freshwater and biodiversity.</p>                                                               |
| <i>2 Enabling quality urban growth</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                            |
| 1.B.2.3.O2 and 1.B.2.3.O3              | <p><i>Support in part</i></p> <p>EDS supports the aim for 70% of urban growth over the next 30 years to be within the 2010 MUL. However EDS considers the current wording of Objectives 2.3.2 and 2.3.3 does not adequately portray this as the objective. The wording needs to confirm that, by 2040, 70 per cent of development is occurring within the 2010 MUL and that no more than 40 per cent of development has occurred outside the 2010 MUL.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <p>Reword Objectives 2.3.2 and 2.3.3 as follows:</p> <p>2. <del>Up to</del> 70 per cent of total new dwellings by 2040 <del>occurs</del> <u>is occurring</u> within the metropolitan area 2010.</p> <p>3. <del>Up to</del> <u>No more than</u> 40 per cent of total new dwellings by 2040 <del>occurs</del> <u>has occurred</u> outside of the metropolitan area 2010.</p> |
| 1.B.2.3.P3(a)                          | <p><i>Support</i></p> <p>EDS supports Policy 2.3.3(a) - avoiding urban development within areas having identified significant environmental, heritage, natural character or landscape values, for the reasons explained in the PAUP and section 32.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Retain.                                                                                                                                                                                                                                                                                                                                                                    |
| 1.B.2.3.P3(f)                          | <p><i>Support in part</i></p> <p>Policy 3(f) refers to avoiding urban development within greenfield land or future urban land affected by coastal inundation and projected sea level rise. This is supported but</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Amend to refer to projected sea level rise over 100 years.                                                                                                                                                                                                                                                                                                                 |

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|                                          | does not refer to a target date for projected sea level.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1.B.2.3.O4,<br>1.B.2.3.P4 and<br>Staging | <p><i>Support in part</i></p> <p>In principle EDS supports Objective 2.3.4. However the objective fails to include definitive provisions relating to staging. If this is not done there is a real risk that development will be focused outside the 2010 MUL and that the compact city objectives will not be met.</p> <p>The section analysis 32 refers to an “emerging land release strategy and associated forward land and infrastructure delivery programme” which will provide the critical links between the Auckland Plan, the Unitary Plan and long-term plan to ensure a quality compact form can be successfully achieved. This strategy is however not included in the RPS provisions of the PAUP which fails to identify how each area of Future Urban zoned land has been prioritised for urban development. There is no target date for each area. There is no priority order of introduction of development within each area.</p> | <p>Identify, as part of the RPS provisions, how each area of Future Urban zoned land has been prioritised for urban development, either by way of allocating a date for each area (first preference as relief) or a priority order of introduction of development within each area is necessary.</p> <p>Add the following to Policy 2.3.4:</p> <p>h. no Future Urban zoned land will be rezoned for urban development unless it can be shown that urban development in Auckland is proceeding at a rate that exceeds 60% of urban growth occurring within the 2010 MUL.</p> <p>The PAUP also needs to make it clear that no further Future Urban zoned land should be rezoned for urban purposes unless there is confidence that the proportion of inside 2010 vs outside 2010 MUL will be no less than 60% inside and no more than 40% outside on a continuing basis.</p> <p>Amend the PAUP to provide for an emerging land release strategy and associated forward land and infrastructure delivery programme. This should set out priorities for the introduction of Future Urban Zoned land.</p> |
| 1.B.2.5.P1(k)                            | <p><i>Support</i></p> <p>EDS supports Policy 2.5.1(k) - avoiding expansion of rural and coastal villages into sites, places and areas with specific values including natural character and landscape values, for the reasons explained in the PAUP and section 32.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Retain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 1.B.2.6.P6                               | <p><i>Support</i></p> <p>Policy 6 provides for the physical connection of public open space, in part to enable the safe and efficient movement of wildlife. Much of the remaining natural areas in Auckland are affected by fragmentation. A focus upon making connections where possible, and ensuring that those connections are maintained is an important part of managing Auckland’s biodiversity into the future.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Retain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <i>3 Enabling economic wellbeing</i>     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1.B.3.2.O3                               | <p><i>Support in part</i></p> <p>Objective 3 refers to providing for and enabling significant infrastructure while managing any adverse effects on significant landscape and other values. The list of values does not refer to natural character. It also does not refer to</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | <p>Reword Objective 3 to refer to the need to avoid adverse effects on ONLs in the coastal environment, areas with ONC, and threatened species and habitats referred to in Policy 11(a) of the NZCPS and any other natural values.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|                                                                                   | the need to avoid adverse effects on ONLs in the coastal environment, areas with ONC and threatened species.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                  |
| <i>4 Protecting our historic heritage, special character and natural heritage</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                  |
| 1.B.4.3.1<br>Introduction                                                         | <p><i>Support in part</i></p> <p>The introduction, first bullet erroneously refers to areas of ONC and HNC as being “unmodified” areas of the coastal environment. This is incorrect as the entire coastal environment of the Auckland region has been modified to some extent.</p> <p>The second bullet refers to landscapes as being categorised as “either” ONL and does not refer to a second category. Landscapes which contribute to the amenity of the region are also part of the region’s natural heritage and should be spatially identified on the maps as an overlay and have policies and objectives to maintain their amenity values.</p> | <p>Delete the reference to areas of ONC and HNC as being “unmodified” areas of the coastal environment.</p> <p>Include reference to landscapes which contribute to the amenity of the region as being part of the region’s natural heritage.</p> |
| 1.B.4.3.1.O1                                                                      | <p><i>Oppose in part</i></p> <p>Objective 1 refers to avoiding “significant” adverse effects on natural character. This does not give effect to Policy 13(1)(a) of the NZCPS which requires all adverse effects on areas of ONC to be avoided, not just significant effects.</p>                                                                                                                                                                                                                                                                                                                                                                        | Reword Objective 1 to include a reference to avoiding adverse effects on areas with ONC.                                                                                                                                                         |
| 1.B.4.3.1.O2                                                                      | <p><i>Support</i></p> <p>EDS supports Objective 4.3.1.2 – preserve the natural character of coastal areas with high or outstanding natural character, for the reasons explained in the PAUP and section 32.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                         | Retain.                                                                                                                                                                                                                                          |
| 1.B.4.3.1.O3                                                                      | <p><i>Support</i></p> <p>Objective 3 refers to restoring and rehabilitating areas of degraded natural character, and enhancing areas of high and outstanding natural character in the coastal environment and this is supported.</p>                                                                                                                                                                                                                                                                                                                                                                                                                    | Retain.                                                                                                                                                                                                                                          |
| 1.B.4.3.1.P1                                                                      | <p><i>Oppose in part</i></p> <p>Policy 1 refers to avoiding “significant” adverse effects on natural character. This does not give effect to Policy 13(1)(a) of the NZCPS which requires all adverse effects on areas of ONC to be avoided not just significant effects.</p>                                                                                                                                                                                                                                                                                                                                                                            | Reword Policy 1 to include a reference to avoiding adverse effects on areas of ONC.                                                                                                                                                              |
| 1.B.4.3.1.P2                                                                      | <p><i>Support</i></p> <p>Policy 2 refers to promoting practices and projects that will restore and rehabilitate natural character values. This is supported.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Retain.                                                                                                                                                                                                                                          |
| 1.B.4.3.1.P5(a)                                                                   | <p><i>Oppose in part</i></p> <p>Policy 5(a) requires subdivision, use and development in areas immediately adjoining areas of ONC and HNC to “avoid or minimise” adverse physical and visual effects on those</p>                                                                                                                                                                                                                                                                                                                                                                                                                                       | Reword Policy 5(a) to remove the reference to “minimise”.                                                                                                                                                                                        |

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|                           | <p>areas. The reference to “minimise” fails to give effect to Policy 13(1)(a) of the NZCPS which requires all adverse effects on areas of ONC to be avoided irrespective of whether they are located within or outside an area designated as having ONC.</p>                                                                                                                                                                                    |                                                                                                                 |
| 1.B.4.3.1.P7              | <p><i>Oppose in part</i></p> <p>Policy 7 excludes ONC areas from being recipient areas for transferable development rights which is supported. However, HNC areas are not excluded from being recipient areas.</p>                                                                                                                                                                                                                              | Reword Policy 7 to also exclude HNC areas from being recipient areas for transferable development rights.       |
| 1.B.4.3.1.P8              | <p><i>Support</i></p> <p>EDS supports Policy 4.3.1.8 - the avoidance of subdivision, use and development in ONC areas, for the reasons explained in the PAUP and section 32.</p>                                                                                                                                                                                                                                                                | Retain.                                                                                                         |
| 1.B.4.3.1.P10             | <p><i>Support</i></p> <p>Policy 10 requires subdivision, use and development to be undertaken outside a HNC area where there is an alternative, which is supported.</p>                                                                                                                                                                                                                                                                         | Retain.                                                                                                         |
| 1.B.4.3.2<br>Introduction | <p><i>Oppose in part</i></p> <p>The introduction, second paragraph refers to new development in ONLs being sensitive to landscape values. It does not say that new development should be avoided in these areas. In particular, Policy 15 (a) of the NZCPS requires that adverse effects on ONLs in the coastal environment be avoided.</p>                                                                                                     | Reword the second paragraph of the introduction to make it clear that new development should be avoided in ONLs |
| 1.B.4.3.2.O1              | <p><i>Oppose in part</i></p> <p>Objective 1 refers to protecting ONLs and ONFs from inappropriate subdivision, use and development. This is ambiguous as it does not specify what is “inappropriate” in the context of the Auckland region and merely repeats what is already stated in the RMA. This will not ensure protection from cumulative adverse effects</p>                                                                            | Reword Objective 1 so that it refers to avoiding adverse effects on ONLS and ONFs.                              |
| 1.B.4.3.2.P8              | <p><i>Oppose in part</i></p> <p>Policy 8 addresses managing subdivision, use and development on sites immediately adjacent to ONLs and policy 8(d) refers to avoiding adverse cumulative effects on the ONL. This fails to give effect to Policy 15(a) of the NZCPS which requires all adverse effects on ONLs in the coastal environment are to be avoided, not just cumulative effects, and not just effects from activities within ONLs.</p> | Remove the word “cumulative” from Policy 8(d).                                                                  |
| 1.B.4.3.2.P9              | <p><i>Oppose in part</i></p> <p>Policy 9 addresses the protection of ONLs but fails to make</p>                                                                                                                                                                                                                                                                                                                                                 | Reword Policy 9 to make it clear that adverse effects on ONLs should be avoided.                                |

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|               | it clear that adverse effects on them should be avoided.                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                       |
| 1.B.4.3.2.P16 | <p><i>Oppose in part</i></p> <p>Policy 16 sets out means by which ONLs are to be protected, but the measures are insufficient to ensure protection and need to be strengthened.</p>                                                                                                                                                                                                                                                    | Reword Policy 16 (and accompanying explanation) to provide effective means of protecting ONLs including through stating that adverse effects are to be avoided and that new subdivision, use and development is to be located outside of ONLs.                                                                                                        |
| 1.B.4.3.3.O1  | <p><i>Oppose in part</i></p> <p>This objective is insufficiently specific and measureable to be useful as an objective.</p>                                                                                                                                                                                                                                                                                                            | This objective needs to be amended so that is it specifies what it seeks to achieve in a manner that is measureable. EDS requests that the objective is to maintain and enhance the quality and extent of trees and vegetation.                                                                                                                       |
| 1.B.4.3.3.O2  | <p><i>Support</i></p> <p>The contribution of trees and vegetation to the maintenance of indigenous biodiversity and provision of ecosystem services should be recognised and enhanced.</p>                                                                                                                                                                                                                                             | Retain.                                                                                                                                                                                                                                                                                                                                               |
| 1.B.4.3.3.O3  | <p><i>Support in part</i></p> <p>While EDS supports the general intent of this provision, it does not include 'vegetation' as well as trees and groups of trees.</p>                                                                                                                                                                                                                                                                   | Amend the provision to include reference to vegetation. Further, the reference to retention should be augmented with a requirement to maintain and enhance both cover and quality.                                                                                                                                                                    |
| 1.B.4.3.3.P1  | <p><i>Support in part</i></p> <p>The identification of Notable trees for scheduling must be undertaken in a consistent and repeatable manner. One of the key concerns about a tree protection regime that is focussed upon scheduling however, is that the strict scheduling criteria will constrain the potential to protect specimens that are in excellent condition but do not quite meet the high cumulative score threshold.</p> | Establish an additional form of Notable Tree recognition and provide appropriate protection rules for this category of trees, recognising those trees that fall slightly under the threshold, but that will mature over time to become strong Notable examples. Such examples may be subject to more lenient pruning conditions or other flexibility. |
| 1.B.4.3.3.P2  | <p><i>Support in part</i></p> <p>This provision is weak and fails to refer to 'protect' as well as promote. It fails to include reference to vegetation.</p>                                                                                                                                                                                                                                                                           | Amend to refer to protect and include reference to vegetation.                                                                                                                                                                                                                                                                                        |
| 1.B.4.3.3.P3  | <p><i>Support in part</i></p> <p>EDS considers that it is not just vegetation that contributes to these matters. Individual trees and groups of trees also contribute to these matters.</p>                                                                                                                                                                                                                                            | Amend to include reference to trees and groups of trees                                                                                                                                                                                                                                                                                               |
| 1.B.4.3.3.P4  | <p><i>Support in part</i></p> <p>The planting of vegetation (not just trees) should also be promoted.</p>                                                                                                                                                                                                                                                                                                                              | Include reference to vegetation.                                                                                                                                                                                                                                                                                                                      |
| 1.B.4.3.3.P5  | <p><i>Oppose in part</i></p> <p>EDS supports the intent of this policy as public trees within</p>                                                                                                                                                                                                                                                                                                                                      | <p>Amend as follows:</p> <p>Maintain or enhance the number and quality of public trees and</p>                                                                                                                                                                                                                                                        |

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|                           | roads and reserves contribute significantly to tree cover and the recognised values. However, the importance of this contribution will only increase with intensification. EDS submits that the word 'recognise' is insufficiently specific and measureable. EDS considers that a standard of 'maintain or enhance' will be achievable while providing for the multiple uses of these areas. Vegetation should also be included.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | vegetation provided within roads and in reserves while acknowledging the multiple uses of these spaces.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 1.B.4.3.3<br>General      | <p><i>Addition requested</i></p> <p>EDS is concerned that this section does not include tree protection provisions in coastal conservation area, riparian margins, urban bush gullies and other sensitive environments. In these areas, the protection of individual trees is minimal given area extent minimums. The changes to the RMA do not justify the non-inclusion of these tree provisions, as they are able to be protected outside the 'urban' environment and in areas that are ecologically sensitive. To disband the rules is to severely compromise opportunities to achieve the regional objectives and policies with respect to vegetation, trees, biodiversity and ecosystem function.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | That further tree protection provisions are included in identified areas, including the coast and other sensitive areas. For example, areas identified in the draft Unitary Plan as 'coastal tree' and 'urban tree' layers should be included in the PAUP by identifying the properties in a schedule.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 1.B.4.3.4<br>Introduction | <p><i>Oppose in part</i></p> <p>EDS supports the recognition of the importance of biodiversity and the threats to biodiversity in Auckland.</p> <p>The introduction states that two types of SEA-Marine have been identified in the Plan. These are:</p> <p>SEA-Marine 1 which is considered to be the most vulnerable and is said to include regionally and nationally rare habitat types as well as the best examples of saltmarshes and mangroves in Auckland. It is also said to include key roosting areas.</p> <p>SEA-Marine 2 which are said to be more robust and includes the main inter-tidal banks of harbours and estuaries which are key feeding grounds for migratory wading birds. In addition areas of mangroves and areas of rare or uncommon coastal vegetation such as saltmarshes are included.</p> <p>The text acknowledges that the CMA has not been comprehensively surveyed for the purpose of identifying SEA-Marine, and that significant marine communities and habitats present in subtidal areas of the region may be under-represented. No effective measures have been provided to identify or protect threatened species and important habitats which are not included in SEA-Marine 1 and 2 which apply to very limited and largely intertidal and close inshore areas. This approach clearly fails to give effect to Section 6(c) of the RMA or Policy 11 of the NZCPS. Additional areas need to be identified, including habitat of significance to threatened and at risk species; and mechanisms provided to enable the identification of additional areas of ecological significance in the future.</p> | <p>Retain recognition of the importance of biodiversity and the threats to biodiversity in Auckland.</p> <p>Reword to make express reference to that fact that much of the CMA has not been comprehensively surveyed for the purpose of identifying SEA-Marine. For this reason a strong precautionary approach needs to be taken when considering activities which may impact on the CMA.</p> <p>Undertake a technically robust identification of areas of significant ecological importance within the CMA, show them on the maps as part of the SEA-Marine overlays, and provide objectives, policies and rules to adequately protect these areas.</p> <p>Include as part of the SEA-Marine overlays:</p> <p>The habitat of the critically endangered Maui's dolphin as required by Policy 11(a)(i) of the NZCPS, which includes the entire west coast of the CMA in the Auckland region including harbours. This should be identified as a separate SEA Marine category. Accompanying objectives, policies and rules should be provided in the regional and district plans to protect Maui's dolphin from all anthropogenic adverse effects including those from prospecting, exploration and mining activities, fishing activities, vessel use and catchment</p> |

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|  |  | <p>run-off.</p> <p>The habitat of the critically threatened Bryde's whale, which includes the area in the Hauraki Gulf shown as the Protocol Area in the "Hauraki Gulf Transit Protocol for Commercial Shipping". A voluntary protocol is currently in place to reduce ship speed, but unitary plan provisions are required as a back-up in the event that the voluntary protocol is not successful in avoiding lethal injury to the whales from ship strike as required by Policy 11(a)(i) of the NZCPS. The area should be identified as a separate SEA Marine category, and accompanying objectives, policies and rules included requiring large vessels to travel at speeds no greater than 10 knots.</p> <p>Snapper spawning areas, as identified on Figure 8 (page 75) of the 2013 report titled <i>"Review of Sustainability Measures and Other Management Controls for SNA 1 for the 2013-14 Fishing Year: Final Advice Paper"</i> prepared by the Ministry for Primary Industries. Provisions should be included to avoid structures in the areas such as those associated with aquaculture, and activities likely to generate sediment or contaminants affecting the areas.</p> <p>Benthic habitats of significance to snapper and other fish species including (but not limited to) subtidal sea grass beds, horse mussel beds, green-lipped mussel beds, sponge beds, shell-gravels and shell-armoured seafloor areas. Provision should be included to avoid activities which could adversely affect them such as dredging, trawling, disposal, reclamation, aquaculture, construction of structures and sediment deposition.</p> <p>I significant rocky reef systems including (but not limited to) those around the coast of Kawau Island and surrounding islands including the south and east coasts of Kawau Island, Flat Rock, Fairchild Reef, Motuketekete Island, Moturekareka Island and the Mayne Islands, Port Fitzroy, Te Arai Point, and the deepwater rocky reef systems seawards of the Mokohinau Islands and Great Barrier Island. Provisions should be included to protect them from sediment, contaminants, aquaculture, structures and activities which may disturb the seabed.</p> <p>Benthic habitat in the Ponui and Motuihe channels with accompanying provisions to protect them from activities which might</p> |
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|              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | <p>adversely impact on them such as sediment, contaminants, aquaculture, structures and activities which may disturb the seabed.</p> <p>Marine areas adjacent to conservation land and provisions to protect them in order to provide a buffer for indigenous species in these areas to enable an extension of conservation areas from the land into the sea.</p> <p>Significant shellfish beds and provisions to protect them from sediment, contaminants, structures, aquaculture and other activities which may disturb the seabed or water column.</p> <p>The existing Marine SEAs should be expanded to cover the entire extent of areas important to birds including (but not limited to) those within the Kaipara and Manukau Harbours.</p> <p>Make provision for the identification of further SEAs within the CMA throughout the life of the Unitary Plan through providing a set of criteria and providing for their application, including during the resource consenting process.</p> |
| 1.B.4.3.4.O1 | <p><i>Support in part</i></p> <p>Section 6(c) of the RMA requires significant biodiversity to be protected. There is no qualifier such as 'from inappropriate subdivision, use and development'. This objective reflects this requirement.</p> <p>Objective 1 refers to areas of "significant" indigenous biodiversity in the coastal environment being protected from adverse effects, but does not refer to adverse effects on threatened or at risk species being avoided in accordance with Policy 11 of the NZCPS.</p> | <p>Retain consistency with section 6(c).</p> <p>Amend Objective 1 so that it also refers to adverse effects on threatened or at risk species being avoided.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 1.B.4.3.4.O2 | <p><i>Support in part</i></p> <p>While EDS supports the maintenance and restoration of biodiversity where it has been degraded, this objective is too weak. Biodiversity should be enhanced wherever possible as it is unlikely that maintenance is sufficient. The methods (i.e. restoration and legal protection) from the Draft Plan should be mapped across to recognise the 'how'.</p>                                                                                                                                 | <p>Amend as follows: Indigenous biodiversity is maintained, protected and enhanced through restoration and legal protection, particularly where ecological values have been degraded or where development is occurring.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 1.B.4.3.4.O3 | <p><i>Support in part</i></p> <p>This objective recognises the HGMPA and WRHAA. However, the word 'promoted' is weak and fails to give effect to the above legislation which provides as follows:</p> <p>Section 8(b) of the HGMPA requires "the protection and, where appropriate, the enhancement of the natural, historic and physical resources of the Hauraki Gulf, its islands, and catchments"</p>                                                                                                                   | <p>Amend as follows: The natural heritage features of the Waitākere Ranges heritage area and the Hauraki Gulf/Te Moana Nui o Toi/Tikapa Moana are protected and restored. The insertion of specific policies and methods implementing these pieces of legislation.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|              | <p>Section 8(h) of the WRHAA requires “management of aquatic and terrestrial ecosystems to protect and enhance indigenous habitat values, landscape values, and amenity values”.</p> <p>This objective is not carried through into the policies. It is unclear therefore how it will be implemented.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 1.B.4.3.4.P1 | <p><i>Oppose in part</i></p> <p>Policy 1 sets out criteria for identifying areas of significant indigenous vegetation and significant habitats of indigenous fauna as SEAs. The criteria are terrestrially focused and do not adequately include criteria more relevant to the marine environment in order to ensure that all ecologically important and sensitive areas are identified to enable their protection.</p> <p>EDS supports having criteria for identifying significant biodiversity. It also supports that only one criterion needs to be triggered for a site to qualify as an SEA. However, the criteria differ from those used in other councils around the country, and from those decided in various Environment Court decisions (e.g. <i>Friends of Shearer Swamp v West Coast Regional Council</i> [2010] NZEnvC 345). Given the new approach to significance criteria being taken in the AUP, it submits that further consideration of these criteria is needed before they are finalised.</p> <p>The significance criteria need to be strengthened to ensure that they reflect the intent of section 6(c) RMA.</p> <p>One of the considerations should be the criteria within the PNPSIB, namely:</p> <ul style="list-style-type: none"> <li><i>a. the naturally uncommon ecosystem types listed in Schedule One</i></li> <li><i>b. indigenous vegetation or habitats associated with sand dunes</i></li> <li><i>c. indigenous vegetation or habitats associated with wetlands</i></li> <li><i>d. land environments, defined by Land Environments of New Zealand at Level IV (2003), that have 20 per cent or less remaining in indigenous vegetation cover</i></li> <li><i>e. habitats of threatened and at risk species.</i></li> </ul> <p>If the current formulation of criteria is retained, EDS supports the retention of all five criteria (with the proviso that some need strengthening and clarifying), as each criterion embodies a different, complementary aspect of biodiversity protection.</p> <p>Some specific comments on the current criteria (which do not detract from or limit the general submission that the criteria as a whole need to be carefully reconsidered and</p> | <p>Amend Policy 1 to include criteria relevant to the CMA and to ensure that they are adequate to comply with policy 11 of the NZCPS and that they enable all ecologically significant areas within the coastal marine area to be identified to enable their effective protection.</p> <p>Reconsider and strengthen the criteria as set out in the reasons.</p> <p>Give due regard to significant habitats of indigenous fauna in criteria for the protection of areas on land and sea.</p> <p>If the current formulation of criteria is generally retained, ensure that all criteria remain, as they each cover a different aspect of biodiversity protection.</p> <p>Consider including the five categories set out in the PNPSIB.</p> <p>The criteria should be strengthened and made sufficiently clear to enable assessment, to ensure that opportunities to recognise ecological values are maximised.</p> <p>The criteria should be able to be applied in the course of resource management processes (e.g. consenting), rather than solely used in the one-off event of SEA identification in the PAUP. This will also mean that reference to the SEA criteria needs to be made in the relevant rules, so that the SEA criteria are triggered where habitat loss may result from an activity. The SEA assessment process should be able to be undertaken and the layer be added to at any time.</p> |

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|                          | <p>strengthened) are as follows:</p> <ul style="list-style-type: none"> <li>- The criteria fail to sufficiently recognise fauna;</li> <li>- The 'representativeness' criterion does not refer to a high enough target level of representation, so that the full range of biodiversity can persist. EDS has concerns about how a 'percentage remaining' approach would work in practice, and whether it would fulfil the intent of the representativeness criterion. If a percentage target is to be used at all in this criterion, it needs to be much higher (e.g. 30%);</li> <li>- EDS supports the recognition of 'stepping stones, buffers and migration pathways' within the criteria for Significant Ecological Areas. This is an important criterion, particularly in a fragmented landscape such as that which exists across large parts of the Auckland region;</li> <li>- The 'threat status and rarity' criterion should include 'at risk' species, not just 'threatened' species.</li> <li>- Consideration should be given to making it clear that restored/replanted can qualify as SEAs, particularly where they provide ecological linkages or corridors.</li> </ul> <p>EDS supports the identification (including mapping) of SEAs in the PAUP. However, the significance criteria are not included in the plan as a means of identifying habitat values of future or potential (or just missed) areas. This fails to provide a future-proof means of protecting developing habitat and, coupled with the error potential of a mapped layer compared with general criteria, is likely to reduce the effectiveness now and over time of this approach.</p> <p>Greater clarity is needed on how the criteria might be applied to areas that may be suitable to be SEAs but not presently identified in the legacy plans or PAUP.</p> <p>The nature of the assessment process is unclear, and there needs to be greater transparency between the criteria and the mapped output.</p> |                                                                                                                                                                                                                                        |
| 1.B.4.3.4.P2             | <p><i>Support in part</i></p> <p>EDS supports the identification of further areas that can or do enhance indigenous biodiversity values, or make an significant contribution to providing ecosystem services. However it is not clear how this policy has been applied in the remainder of the PAUP.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Identify areas that enhance indigenous biodiversity values, or make an significant contribution to providing ecosystem services in the PAUP, and include objectives, policies and rules in order to protect the values of those areas. |
| 1.B.4.3.4<br>Definitions | <p><i>Oppose</i></p> <p>There is presently no definition for what a SEA is in the plan, which might be an appropriate place to include the criteria.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Include a definition of an SEA.                                                                                                                                                                                                        |

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| 1.B.4.3.4.P6          | <p><i>Support in part</i></p> <p>EDS supports the requirement to avoid adverse effects on these areas. However the policy (of avoiding and minimising adverse effects) does not extend to all SEAs, just those that qualify under certain criteria.</p> <p>However currently this policy – applying to significant indigenous biodiversity – is (in some respects) weaker than Policy 7 which applies to other biodiversity. This is because policy 6(b) and (c) – allow significant adverse effects to be mitigated or offset – whereas policy 7 does not allow remediation, mitigation or offsetting of significant adverse effects. Amendments are required to ensure the policy is stronger.</p> | Amend to ensure that all more than minor adverse effects are avoided across all SEAs                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.4.3.4.P6 (a)(iii) | <p><i>Support in part</i></p> <p>Policy 6(a)(iii) refers to indigenous ecosystems and habitats found only in the coastal environment and which are particularly vulnerable to modification and lists some of these. The list is incomplete and should be expanded.</p>                                                                                                                                                                                                                                                                                                                                                                                                                               | Amend Policy 6(a)(iii) to also explicitly refer to other important marine habitats including (but not limited to) horse mussel beds, sponge gardens and benthic biogenic structures.                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.4.3.4.P7          | <p><i>Support in part</i></p> <p>EDS supports the requirement for significant adverse effects to be avoided and other adverse effects to be avoided, remedied, mitigated or offset. As above, this needs to recognise situations in which restoration and enhancement actions are not appropriate or possible (e.g. risk of extinction, risk of falling below 20% LENZ threshold).</p>                                                                                                                                                                                                                                                                                                               | Amend to ensure the ‘no net loss’ concept is applied to all indigenous biodiversity (not just significant indigenous biodiversity) to enable the Council to achieve its function of maintaining indigenous biodiversity.                                                                                                                                                                                                                                                                                                                                                                      |
| 1.B.4.3.4.P8          | <p><i>Support in part</i></p> <p>This policy lists a number of adverse effects on indigenous biodiversity which are “to be avoided”. It is unclear when this is meant to apply - are these presumed to be “significant” adverse effects? If not it is unclear what direction this policy gives. It is possible that the policy intends to ring-fence the effects that require avoidance, remediation and mitigation. This is potentially risky, as it may exclude effects not foreseen.</p>                                                                                                                                                                                                          | Amend to clarify the intent of the policy and to make clear that the list cannot be exhaustive.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 1.B.4.3.4.P11(b)      | <p><i>Support in part</i></p> <p>This policy relates to the avoidance of clearance to SEAs except under certain circumstances. The policy presently focusses upon vegetation, which may not necessarily be an appropriate analogue for degree of effect.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                         | <p>Use a more appropriate term such as ‘features’ to ensure that the SEA protection is not only vegetation-focussed. Strongly discourage the removal of SEA features and apply a numerical threshold to areas to be modified.</p> <p>Amend as follows or similar: “minimising the loss of native biodiversity by retaining all native vegetation within SEAs except where loss is unavoidable to create a single building platform per site for a dwelling and associated services, access and car parking to a maximum area of XXXm<sup>2</sup>. XXX = lesser of 100 m<sup>2</sup> or 5%</p> |

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|                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | of the site (including house, driveway and water tank)                                                                                                                                                                                                                                                                                                                                                       |
| 1.B.4.3.4.P11(c)        | <i>Support in part</i><br><br>The intent of the policy is unclear, and there appear to be words missing (possibly after: “to reduce future needs”).                                                                                                                                                                                                                                                                                                                                                                                        | Amend policy to clarify intent. i.e. ‘future needs’ = ‘future demands to clear or damage areas of significant indigenous biodiversity’                                                                                                                                                                                                                                                                       |
| 1.B.4.3.4.P11(d)        | <i>Support</i><br><br>This policy aims to avoid changes in hydrology which could adversely affect indigenous biodiversity values. This is a very important requirement, as changes in a hydrological regime can often be more deleterious than the impacts of direct habitat removal or invasive species (particularly for wetland environments).                                                                                                                                                                                          | Retain.                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1.B.4.3.4.P11(e)        | <i>Oppose in part</i><br><br>This provision aims to maintain existing water quality with no increase in the amount of sediment entering natural waterways, wetlands and groundwater. This is an inappropriate and lax directive, and must be stronger. Downstream impacts in the coastal and estuarine environments of the region from excess sediment run-off are extremely deleterious and better catchment management is critical. A net reduction on an annual basis must be implemented to address sedimentation impacts region-wide. | Amend as follows or similar:<br><br>“Enhancing <del>maintaining existing</del> water quality with a <u>net reduction</u> <del>no increase</del> in the amount of sediment entering natural waterways, wetlands and groundwater<br><br>Consequential amendments to methods and monitoring.                                                                                                                    |
| 1.B.4.3.4.P12(b)        | <i>Support in part</i><br><br>While EDS supports a requirement for legal protection and considers it an important element in the protection of SEAs, it will only ‘mitigate or offset’ effects where the area in question is vulnerable to loss. The provision would benefit from recognition of the limitations of legal protection in addressing effects, and for it to be separated into a separate sub-policy.                                                                                                                         | Amend as follows or similar:<br><br>b. requiring legal protection <u>of areas set aside for the purposes of mitigating or offsetting adverse effects on indigenous biodiversity</u><br><br>new (c) <u>requiring</u> ecological restoration and active <u>ongoing</u> management techniques <u>in areas set aside for the purposes of mitigating or offsetting</u> adverse effects on indigenous biodiversity |
| 1.B.4.3.4<br>New Policy | Biodiversity offsetting is referred to throughout the PAUP but there is no guidance on key principles.                                                                                                                                                                                                                                                                                                                                                                                                                                     | Add a new policy providing guidance as to the implementation of biodiversity offsetting. A new policy should provide guidance as to key principles applying to biodiversity offsetting: equivalency, spatial proximity, additionally, timing, duration, compliance, and currencies and ratios <sup>2</sup> .                                                                                                 |
| 1.B.4.3.4.P13(a)        | <i>Support in part</i><br><br>The intent of this policy is not clear.                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Amend to clarify intent of policy. E.g. ‘provision of further opportunities for threatened ecosystems’ = “recreation /                                                                                                                                                                                                                                                                                       |

<sup>2</sup> See the following paper for more details on these principles: Marie A. Brown, Bruce D. Clarkson, R.T. Theo Stephens and Barry J. Barton (2014) Compensating for ecological harm – the state of play in New Zealand New Zealand Journal of Ecology 38 (1) Pages: 139–146

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|                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | restoration / rehabilitation / protection of threatened ecosystems”                                                                                                                                                                                                                                                                                                                               |
| 1.B.4.3.4.P13(g) | <i>Support in part</i><br><br>Word missing.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | ‘Of’ should be inserted after ‘where possible,’.                                                                                                                                                                                                                                                                                                                                                  |
| 1.B.4.3.4.P13(h) | <i>Support in part</i><br><br>Typographical error                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Replace ‘kaitiakitang’ with ‘kaitiakitangi’.                                                                                                                                                                                                                                                                                                                                                      |
| 1.B.4.3.4.P14    | <i>Oppose in part</i><br><br>While EDS supports the intent of the policy to reduce disturbance to migratory bird roosting, nesting and feeding areas, the provisions are weak and lack clarity. The thresholds proposed are unlikely to sufficiently safeguard these critical areas for a number of reasons:<br><br><div style="margin-left: 40px;"> <p>(a) restricting consideration to only those disturbances that are ‘regular’ or ‘sustained’ removes the ability to effectively manage acute disturbances, particularly in the absence of a definition of what ‘regular’ or ‘sustained’ means in respect of this matter.</p> <p>(b) The lack of clarity in the word ‘noticeably’ is concerning, as it is unclear of when such a threshold will be reached. It is perhaps more appropriate to consider the application of a suitable ‘percentage reduction’ threshold and to provide for adaptive management in respect of this matter.</p> <p>(c) The imposition of a ‘permanent abandonment’ threshold is inappropriate, much akin to using ‘extinction’ as a metric for species decline.</p> </div><br>Amendments are required to address these matters. | Delete the words ‘regular or sustained’<br><br>Delete the word ‘noticeably’<br><br>Retain the ‘or’ in front of ‘results in permanent abandonment of an area’                                                                                                                                                                                                                                      |
| 1.B.4.3.4.P14    | <i>Oppose in part</i><br><br>Policy 14 addresses effects which should be avoided in the CMA. These are supported but require additional matters to be addressed to ensure adequate protection of important species and habitats in the CMA.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Amend Policy 14 to include reference to: <ul style="list-style-type: none"> <li>• The degradation or destruction of habitats of importance to fisheries including fish spawning, pupping and nursery areas;</li> <li>• The degradation or destruction of habitats within the CMA which support diverse marine communities</li> <li>• Increased risk to threatened and at risk seabirds</li> </ul> |
| Policy 4.3.4.P18 | <i>Support in part</i><br><br>The policies fail to address the impacts of fishing activities on biodiversity in the CMA and this should be addressed through an amendment to Policy 18.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Amend Policy 18 to include an additional subsection that requires disturbance of at risk or threatened species and of benthic habitats in Marine SEAs by fishing activities, such as trawling, dredging and set-netting to be avoided.                                                                                                                                                            |

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| Policies<br>4.3.4.P14-21                                                       | These policies refer to the management of the effects of activities on areas identified as SEA Marine 1 and 2. However the policies fail to address areas of significant ecological value which have not been identified within these overlays. This fails to comply with Policy 11 of the NZCPS as much of the CMA has not been considered for inclusion in the overlays.                                                                                          | Amend the policies so that the provisions within them also apply to any other areas which have ecological values meriting identification as Marine SEAs.<br><br>Make any further amendments required to comply with Policy 11 of the NZCPS.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 1.B.4.3.4<br>Methods<br>Non-regulatory                                         | <i>Support in part</i><br><br>EDS supports the non-regulatory methods listed. However, there is a need for greater effort in respect of non-regulatory methods for biodiversity. The methods should provide additional methods e.g. Council leading by example in regard to pest control in reserves, regional parks, stormwater network. The methods should also provide additional detail i.e. rates relief will be targeted at pest control and stock exclusion. | Retain methods listed.<br><br>Provide additional detail regarding methods listed.<br><br>Add further non-regulatory methods e.g. Council ensuring adequate pest control in reserves, regional parks and stormwater network.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 1.B.4.3.4<br>New objectives, policies, rules and maps for Important Bird Areas | The PAUP has insufficient provisions in place to protect the nesting and breeding areas of seabirds. A significant proportion of the world's seabirds pass through New Zealand waters, and areas of both land and water are very important for these birds in the Auckland Region. EDS submits that recent work identifying important bird areas in the Auckland Region could form the basis of provisions to limit the potential impacts on seabirds.              | Recognise the information basis in Appendix B which identifies the important habitats of seabirds in the Auckland Region by including in the PAUP a map identifying Important Birds Areas within the SEA overlay or another category of overlay.<br><br>Manage key pressures in important bird habitats by way of a new objective, a new policy, additions to assessment criteria and rules applying to activities in the identified Important Bird Areas. These need to address the range of issues affecting important bird habitats including: <ul style="list-style-type: none"> <li>• Coastal development of any kind which results in direct impacts or increases potential disturbance, presence of predators or presence of dogs. Dogs should be excluded from some IBAs such as Pakiri.</li> <li>• Biosecurity of islands is a major issue. Reintroduction of predators to predator free islands from boats either accidentally or deliberately. Some islands might require restrictions on anchoring close to them to reduce the risk of rats jumping ashore. Where fishing boats need to go in to shelter there might need to be provisions to require them to carry bait stations and be checked regularly for rats.</li> <li>• The potential for oil spills from shipping accidents increases with increasing shipping traffic into the</li> </ul> |

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|                                                     |                                                                                                                                                                                                                                                                                                                                                   | <p>port of Auckland. Making sure that shipping channels are identified to steer away from important seabird islands to reduce the impact of any shipping accidents would be important.</p> <ul style="list-style-type: none"> <li>• Recreational set nets are a problem for seabirds not just when and where they are set and the risk to fluttering shearwaters and shags, but bits of net left in the marine environment continue to catch birds and other marine creatures. Set nets should be banned from the whole marine environment as all harbours in the PAUP are IBAs.</li> <li>• Ongoing sedimentation of important bird areas in harbours and weed and mangrove encroachment on seabird and wading bird habitat. Catchment based sediment management is required.</li> <li>• Incompatible activities with IBAs include practise bomb sites and vehicles in dunes such as at Papakanui Spit.</li> <li>• Activities such as wind farms and effects such as light attraction can have significant impacts on mortality.</li> </ul> <p>Activities in important bird habitats need to be effectively managed by the PAUP so that the values of the areas are protected including by:</p> <ul style="list-style-type: none"> <li>• express recognition of IBAs and the threats facing them in the Plan;</li> <li>• additions to assessment criteria for activities (for use or development within the CMA see suggested amendments to Policy 14 above) ;</li> <li>• inclusion of IBAs in marine and terrestrial SEA overlays; and</li> <li>• addition of rules applying to activities in the identified IBAs.</li> </ul> |
| <i>6 Sustainably managing our natural resources</i> |                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 1.B.6.3.O1-<br>1.B.6.3.O7                           | <p><i>Oppose in part</i></p> <p>The objectives do not clearly flow from the three key issues identified in Issue 1.5. Objective 1 is broad and does not clearly specify the outcome which is sought. No objective specifically addresses the issue of the loss or fragmentation of freshwater bodies. Objective 4 is very specific and may be</p> | <p>Amend the objectives so that they flow from the three issues identified in submission above and they clearly identify the outcomes that are to be achieved in a specific and measureable manner and they give effect to the NPSFM. For example:</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

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|             | <p>more appropriate as a policy under a broader water quantity objective. Objective 5 addresses two specific quality issues (stormwater and wastewater), but the other two issues identified (nutrients and sediment) are not covered in the objectives.</p> <p>The objectives do not clearly give effect to the NPSFM. Objective 2 generally reflects Objectives A1 and A2 of the NPSFM but it is unclear what ‘community values’ encompasses and whether this may conflict with safeguarding life-supporting capacity, ecosystem processes and indigenous biodiversity as the NPSFM requires. Objective 3 requires freshwater resources to be ‘managed and allocated to support their natural and cultural values’ but it not clear that this standard is as high as ensuring that the quantity of freshwater safeguards life-supporting capacity, ecosystems processes and indigenous species.</p> | <p>Freshwater systems: Prevent any further loss or degradation of the natural values of rivers, streams, lakes, wetlands and their margins. Where loss or fragmentation has occurred, enhance and restore rivers, streams, wetlands and their margins and their natural values.</p> <p>Quality: Improve the overall quality of Auckland freshwater with the goal of achieving good water quality in [95%] of rivers, streams, lakes and wetlands by [2030]. Particular focus is to be directed towards stormwater runoff, wastewater overflows, nutrient and sediment discharges.</p> <p>Quantity: Maintain the flows and levels of rivers, stream, lakes and wetlands within limits which safeguard the life-supporting capacity and ecosystem processes of freshwater. Particular focus is to be directed toward progressively reducing the amount of freshwater used by Auckland per capita in both urban and rural uses. This should specify that the reductions should – at a minimum – ensure no increase in Auckland’s total water use.</p> <p>Mana Whenua: Active participation of mana whenua and recognition of mana whenua values in freshwater management.</p> |
| 1.B. 6.3.P1 | <p><i>Support in part</i></p> <p>EDS supports the clear identification of ways in which integrated management will be achieved.</p> <p>Paragraph (a) is of particular importance and these matters should be ensured <i>before</i> areas are <i>identified for growth</i> or intensification. This is required to give effect to Policy C2 NPSFM which refers to <i>sequencing</i> growth and provision of infrastructure.</p> <p>Paragraph (b) is supported.</p> <p>Paragraph (c) may be better addressed in the stormwater policy.</p> <p>Paragraph (d) requires a clearer standard than ‘adequately’, for example it may require that the development will result in a net reduction in adverse effects compared to the current situation.</p> <p>There are additional matters which relate to integrated management which should be addressed in this policy.</p>                                 | <p>(a) – amend to require that these matters are ensured <i>before</i> areas are <i>identified for growth</i> or intensification.</p> <p>(b) – retain.</p> <p>(c) – move to stormwater policy.</p> <p>(d) – delete ‘adequately’ and require mitigation to achieve a net reduction in adverse effects compared to the current situation.</p> <p>Add additional matters which relate to integrated management, including:<br/>Consideration of coastal ecosystems when assessing freshwater plans and consent applications including sedimentation effects.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 1.B.6.3.P2  | <p><i>Support in part</i></p> <p>Paragraph (a) - EDS supports the clear direction to <i>avoid</i> the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | <p>(a) – retain.</p> <p>(b) – retain.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

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|            | <p>permanent loss of freshwater bodies.</p> <p>Paragraph (b) is supported.</p> <p>Paragraph (c) is not sufficiently specific to give useful guidance to decision makers. EDS considers this paragraph could be better directed at protecting and enhancing the <i>natural character</i> which would address section 6(a) issues.</p> <p>Paragraph (d) is supported.</p> <p>Paragraph (e) – EDS supports the clear direction to <i>avoid</i> permanent diversion and the specification of the only exceptions. The requirement to prefer alternatives is supported. EDS suggests there should be an additional requirement for equivalent enhancement or restoration of other rivers or streams to ensure the objective of preventing further loss or fragmentation is achieved.</p> <p>Paragraph (f) would be better addressed within the stormwater policy.</p> <p>Paragraph (g) is related to public access and EDS proposes a separate recreation policy below to include this matter.</p> <p>Paragraph (h) should not be limited to natural stream management areas, but apply to all existing riparian vegetation. It should also provide for restoration of riparian vegetation.</p> <p>Paragraph (i) is supported.</p> | <p>(c) – amend to direct at protecting and enhancing natural character.</p> <p>(d) – retain.</p> <p>(e) – add a requirement to achieve no net loss of freshwater bodies (through enhancement or restoration) where permanent diversion is necessary for public health and safety or significant infrastructure.</p> <p>(f) – move to stormwater policy.</p> <p>(g) – move to recreation policy.</p> <p>(h) – amend to apply to all existing riparian vegetation and to provide for restoration of riparian vegetation.</p> <p>(i) – retain.</p> |
| 1.B.6.3.P3 | <p><i>Oppose in part</i></p> <p>EDS opposes the language “avoid where practicable and otherwise minimise and reduce” as this fails to set a clear standard. This policy does not set out a clear framework for the management of freshwater quality. It fails to refer to the setting of freshwater objectives and limits and avoiding over-allocation which is the framework required by the NPSFM.</p> <p>The policy should also clearly address outstanding water bodies and wetlands and strongly provide for their protection through avoidance of adverse effects.</p> <p>Policy 3 should set out the high level framework for freshwater quality management, such as that set out in (e)(i) to (iii), with the four key matters for freshwater quality identified in the issues (stormwater, wastewater, nutrients and sediment) addressed more specifically through individual policies.</p>                                                                                                                                                                                                                                                                                                                          | <p>Delete ‘where practicable and otherwise minimise and reduce’.</p> <p>Amend to refer to the setting of freshwater objectives and limits and avoiding over-allocation which is the framework required by the NPSFM.</p> <p>Amend to address outstanding water bodies and wetlands and strongly provide for their protection through avoidance of adverse effects.</p> <p>Retain (e)(i) to (iii).</p> <p>Address stormwater, wastewater, nutrients and sediment more specifically through individual policies.</p>                              |
| 1.B.6.3.P6 | <p><i>Support in part</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <p>Amend to link limits to the objective - to safeguard the life-supporting capacity and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|                                                    | <p>This policy partially addresses the NPSFM framework by providing for the setting of limits and avoidance of over-allocation. However, this should be linked to the objective of limits which is to safeguard the life-supporting capacity and ecosystem processes of freshwater. This policy also fails to address <i>existing</i> over-allocation which must be phased out. It should provide for the review of consents in over-allocated catchments and the equitable phase out of over-allocation.</p>                                                                          | <p>ecosystem processes of freshwater.</p> <p>Amend to address <i>existing</i> over-allocation through review of consents and phase out.</p>                                                                                                                                       |
| 1.B.6.3.P7                                         | <p><i>Support in part</i></p> <p>This policy needs to be clear that it applies only to sustainable taking – groundwater takes must not exceed the recharge rate. Due to the uncertainties in assessing groundwater a buffer should also be provided for when determining what allocation is available.</p>                                                                                                                                                                                                                                                                             | <p>Amend to be clear that groundwater takes must not exceed the recharge rate and require a buffer to account for uncertainties.</p>                                                                                                                                              |
| 1.B.6.3.P8                                         | <p><i>Support</i></p> <p>EDS supports the setting of priorities to assist with efficient allocation of geothermal water.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <p>Retain.</p>                                                                                                                                                                                                                                                                    |
| 1.B.6.3<br>New policy -<br>Efficient<br>allocation | <p>The title of this section suggests that freshwater allocation would be addressed however the policies do not touch on how the allocable volume of freshwater will be allocated. This could be achieved by prioritising certain uses, such as drinking water and domestic takes. Alternative allocation mechanisms could be provided for e.g. a tender system.</p>                                                                                                                                                                                                                   | <p>Add a new policy addressing how the allocable volume of freshwater will be allocated e.g. prioritisation and/or alternative allocation mechanisms.</p>                                                                                                                         |
| 1.B.6.3<br>New policy -<br>Efficient use           | <p>The title of this section suggests that freshwater use would be addressed. However none of policies 6, 7 or 8 address this matter despite the specific objective of reducing the amount of water used by Auckland per capita. Strong and clear policy direction is required to achieve this outcome.</p>                                                                                                                                                                                                                                                                            | <p>Add a new policy addressing efficient use of freshwater. New development should be required to meet rigorous standards. Improvements to existing uses should be facilitated. Education is required. Pricing and regulatory signals should be utilised.</p>                     |
| 1.B.6.3.P9                                         | <p>EDS supports the policy relating to land disturbing activities generally although more stringent controls for sensitive areas should be provided for. Additional matters relevant to sediment runoff should also be addressed including land management practices and riparian vegetation management. EDS notes that mangroves are a contentious issue in Auckland and strong sediment management is required to address the driving factors for mangrove expansion. Catchment wide sediment management approaches should be provided for where sediment is a particular issue.</p> | <p>Amend to provide more stringent controls for sensitive areas.</p> <p>Add additional matters relevant to sediment runoff including land management practices and riparian vegetation management.</p> <p>Amend to provide for catchment wide sediment management approaches.</p> |
| 1.B.6.3.P10                                        | <p>EDS supports strong policy direction to improve stormwater management. The chapeau should indicate that the objective to be achieved is to progressively reduce the net effects of stormwater compared to the current baseline and the achievement of freshwater limits/targets. The policy could be clarified by splitting it into (a) minimising the effects of future urban stormwater (b) progressively</p>                                                                                                                                                                     | <p>Amend to provide that the objective is to progressively reduce the net effects of stormwater compared to the current baseline and the achievement of freshwater limits/targets.</p> <p>Clarify by splitting the policy into (a) effects of</p>                                 |

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|                                                | reducing the effects of existing urban stormwater (similar to Policy 11).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | future activities (b) existing effects.                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.6.3.P11                                    | EDS supports strong policy direction to improve wastewater management. The chapeau should indicate that the objective to be achieved is to progressively reduce the net effects of wastewater compared to the current baseline and the achievement of freshwater limits/targets.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Amend to provide that the objective is to progressively reduce the net effects of wastewater compared to the current baseline and the achievement of freshwater limits/targets.                                                                                                                                                                                                                                                                                  |
| 1.B.6.3<br>New policy -<br>Nutrients           | Issue 1.5 identified four key issues in relation to the degradation of water quality: stormwater runoff, wastewater overflows, nutrient discharges and sediment discharges. Only nutrient discharges have not been addressed through a specific policy. A new policy should indicate that the objective to be achieved is to progressively reduce nutrient discharges compared to the current baseline in order to achieve freshwater limits/targets. Similar to policies 9 to 11, it should set out how this will be achieved.                                                                                                                                                                                                                                                                                                                                                                     | Add a new policy directed at nutrient discharges indicating that the objective to be achieved is to progressively reduce nutrient discharges compared to the current baseline to achieve freshwater limits/targets.<br><br>Set out how this will be achieved for example through requirements for farm management plans, effluent management, stock exclusion, bridges and culverts, fertiliser application levels, wetland restoration, riparian planting, etc. |
| 1.B.6.3<br>New policy -<br>Recreational<br>use | Recreational use (e.g. fishing and swimming) is a key freshwater value and is recognised in s6(d) RMA which provides for the maintenance and enhancement of public access to rivers and lakes and s7(h) which provides for the protection of habitats of trout and salmon. EDS suggests a separate policy could address these matters including public access (from Policy 2(g)) and social values (from Policy 2(c)).                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Add a new policy addressing freshwater recreational matters, including public access (from Policy 2(g)) and social values (from Policy 2(c)).                                                                                                                                                                                                                                                                                                                    |
| 1.B.6.3<br>Methods                             | The description of methods is brief and cursory. In a standard RPS process (where rules could not be viewed) they would clearly be considered insufficient. The fact that this is a Unitary Plan does not excuse this.<br><br>The non-regulatory methods are clearly insufficient. Advocacy and education should not be limited to water quality. To achieve Objective 4 significant changes to patterns of use of water will be required and advocacy and education will be an important component. The specified monitoring and information gathering methods do not address the breadth of monitoring and information gathering that is required. The RPS should put in place a rigorous monitoring and information gathering process, particularly to inform the objective and limit setting process which is yet to occur. The specified funding and assistance methods are similarly lacking. | Amend the methods to ensure they provide sufficient detail and breadth for the achievement of the objectives.                                                                                                                                                                                                                                                                                                                                                    |
| 1.B.6.3<br>Other matters                       | The RPS fails to provide objectives, policies and methods directed at the protection of wetlands and the management of the beds of lakes and rivers. These matters must be addressed to ensure there is no further loss of wetlands and to ensure beds are managed in manner that protects ecosystem health.<br><br>In relation to wetlands, the RPS must give effect to the NPSFM requirement to protect the significant values of                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Add objectives policies and methods relating to wetlands and the beds of lakes and rivers.                                                                                                                                                                                                                                                                                                                                                                       |

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|                                                       | wetlands.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <i>7 Sustainably managing our coastal environment</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 1.B.7.1<br>Introduction                               | <p><i>Oppose in part</i></p> <p>The introduction fails to describe the CMA outside harbours, which comprises the large bulk of the CMA within the Auckland region, and should do this to provide an adequate context for the following objectives and policies.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Amend the introduction to include a description of the CMA of the region outside harbours.                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.7.1.O1                                            | <p><i>Oppose in part</i></p> <p>Objective 1 is vague and uncertain as it refers to subdivision, use and development being located in “appropriate” areas without explaining what is appropriate.</p> <p>The adverse effects of catchment-derived sediment and contaminants which are transported into the CMA is a very significant issue which needs to be addressed in the objectives.</p>                                                                                                                                                                                                                                                                                                                                                                                             | <p>Amend Objective 1 so that it refers to subdivision, use and development in the coastal environment being designed and located to ensure that the natural character of the coastal environment is preserved and where practicable enhanced.</p> <p>Include an additional objective which refers to the design and location of subdivision, use and development in the coastal environment reducing discharges into the CMA.</p>                                                                                                                   |
| 1.B.7.1.P2                                            | <p><i>Support in part</i></p> <p>Policy 2 addresses sprawl and sporadic development and is supported but policy 2(b) also needs to refer to the need to avoid degradation of areas with high landscape values and areas with high natural character values.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Amend Policy 2(b) so that it also refers to the need to avoid degradation of areas with high landscape values and areas with high natural character values.                                                                                                                                                                                                                                                                                                                                                                                         |
| 1.B.7.1<br>New policies                               | <p>The very significant adverse impact of canal developments on the natural character of the coastal environment is not recognised in this section. It should also recognise that residential development has no functional need to be located on the water’s edge. The policies should make it clear that no further canal developments will be permitted within the Auckland region.</p> <p>There are no policies which specifically address the development of additional marinas within the Auckland region. Because marinas are such major infrastructure, requiring a fundamental alteration of the coastal environment, it is important that the PAUP provide strong and clear direction on the circumstances and locations in which a marina may or may not be contemplated.</p> | <p>Include an additional policy which makes it clear that no further canal developments will be permitted within the Auckland region.</p> <p>Include an additional policy that addresses new marina proposals. This should make it clear that marinas will not be appropriate where a strong need for them is not established and will not be permitted to locate in estuaries, in places subject to sedimentation, in areas with significant natural or cultural values, or in places where any significant ongoing dredging will be required.</p> |
| 1.B.7.3 -<br>General                                  | <p><i>Support in part</i></p> <p>This section identifies and seeks to manage areas of degraded water quality and this is supported as being in accordance with Policy 21 of the NZCPS. However there is no linkage between this section of the RPS and the regional and district plan provisions, and as a result, the regional and district plan provisions fail to give effect to these provisions of the RPS.</p>                                                                                                                                                                                                                                                                                                                                                                     | Include provisions in the regional and district plan sections to give effect to section 7.3 of the RPS which addresses areas of degraded water quality. The degraded marine areas shown in Figure 2, page B130 should be included as an overlay and appropriate objectives, policies and rules provided (such as additional controls on sediment generation and contaminated discharges from catchments draining into these areas) which                                                                                                            |

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|                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | ensure that there is no further decline in these areas and that their quality improves over time.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 1.B.7.4 - General                                   | <p><i>Oppose in part</i></p> <p>This section sets out objectives and policies which apply to the Hauraki Gulf and are supported. However many of the provisions of this section are not supported by regional and district plan objectives, policies and rules. In particular Policy 8 is to identify and protect areas or habitats, particularly those unique to the Gulf that are significant to the ecological and biodiversity values of the Gulf and vulnerable to modification. But such areas and habitats have only be identified in a small proportion of the Gulf (mainly inshore areas), other known significant areas have not been identified or protected, and no mechanisms has been provided to protect areas which could potentially be identified in the future through a resource consenting process. (B132)</p> <p>The very significant adverse impact of canal developments on the natural character of the Hauraki Gulf Marine Park is not recognised in this section. The policies should make it clear that no further canal developments will be permitted within the Hauraki Gulf Marine Park.</p> | <p>Expand the areas identified as SEA Marine to include all known areas significant to the ecological and biodiversity values of the Gulf and vulnerable to modification. Provide an effective mechanism to protect areas which could potentially be identified in the future through a resource consenting process, such as a list of criteria, tailored to the Gulf's CMA, which could be applied.</p> <p>Include an additional policy to make it clear that no further canal developments will be permitted within the Hauraki Gulf Marine Park.</p>                                                                                                                                                                                              |
| <i>8 Sustainably Managing our Rural Environment</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1.B. 8.1.O3                                         | <p><i>Oppose</i></p> <p>The objective is poorly worded</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | <p>Amend as follows:-</p> <p>No subdivision, urban activity or any other development occurs in Auckland's rural areas that adversely affects the land's productive potential, biodiversity values, landscape values, rural character or amenity values.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B. 8.1.P3                                         | <p><i>Oppose</i></p> <p>The policy is poorly worded</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | <p>Amend as follows:-</p> <p>Manage subdivision and development in rural areas so that:</p> <ul style="list-style-type: none"> <li>a. there is no increase in urban activities</li> <li>b. there is no subdivision that does or may lead to an increase in the number of lots that can accommodate dwellings.</li> <li>c. subdivision and development is of a type, scale, location and density that maintains or enhances the rural character and rural amenity values.</li> <li>d. subdivision and development is of a type, scale, location and density that does not adversely effect landscape values.</li> <li>e. subdivision and development is of a type, scale, location and density that does not adversely effect biodiversity</li> </ul> |

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|                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | <p>values.</p> <p>f. there is no significant increase in traffic generation that would require the premature upgrading of the local road network.</p> <p>g. they do not result in a significant or premature demand to provide, upgrade or provide water and wastewater infrastructure.</p> <p>h. adverse cumulative effects in respect of any or a combination of the above matters are avoided.</p> |
| <i>9 Responding to climate change</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                       |
| 1.B.9<br>Introduction                 | <p><i>Support</i></p> <p>EDS generally supports the text which generally reflects the issues section. However there is no reference to the Natural Hazards – Coastal Inundation Overlay, or a description of what it is based on, and it is not linked to appropriate objectives, policies and rules in the PAUP</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <p>Retain.</p> <p>Include a description and explanation of the Natural Hazards – Coastal Inundation overlay and how it is linked to an effective response to climate change</p>                                                                                                                                                                                                                       |
| 1.B.9.O1                              | <p><i>Support</i></p> <p>EDS supports the objective of responding and adapting to the effects of climate change.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Retain.                                                                                                                                                                                                                                                                                                                                                                                               |
| 1.B.9.O2                              | <p><i>Support in part</i></p> <p>EDS supports the objective of increasing renewable energy use and maximising energy efficiency. However, this objective does not account for other mitigation types including management of land use patterns (compact urban form), reducing reliance on private motor vehicles and carbon sinks.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Add reference to additional mitigation types.                                                                                                                                                                                                                                                                                                                                                         |
| 1.B.9.P1                              | <p><i>Support in part</i></p> <p>The chapeau does not account for all mitigation types. Paragraph a is supported. Paragraph b is supported in part, but it should be amended to require all new dwellings and buildings to achieve best practice sustainable design as there is no justification for allowing low quality new development. It may be lower cost initially but it will impose higher costs in the longer term. In addition, best practice sustainable design needs to be defined e.g. by reference to guidelines that are regularly updated. Paragraph c is supported in part, however it should be amended to require energy efficient design, for the reasons above. As above, energy efficient design guidelines are required. Paragraph d is supported, as existing buildings will comprise the majority of Auckland's stock and retrofitting will be necessary to achieve the objective. Retrofitting for energy efficiency should be required in association with re-</p> | <p>Retain (a).</p> <p>Amend (b) to require all new dwellings and buildings to achieve the standard.</p> <p>Amend (c) to require all new dwellings and buildings to achieve the standard.</p> <p>Retain (d).</p> <p>Retain (e).</p> <p>Amend (f) to ensure all new neighbours achieve the standard.</p> <p>Retain (g).</p> <p>Retain (h).</p> <p>Retain (i).</p>                                       |

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|                                                   | development. Paragraph e is supported. Paragraph f is supported in part, but it should be amended to require new neighbourhoods to meet the identified standards, for the reasons above. Paragraph g is supported. Paragraph h is supported. Paragraph i is supported.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.9.P2                                          | <p><i>Support in part</i></p> <p>Policy 2 – Paragraph a is supported in part, but it should be amended to <u>require</u> new development to incorporate sustainable design, for the reasons above. Paragraph b is supported in part, however it is not clear what an adaptive management response will encompass, it should provide clear direction as to how effects on indigenous biodiversity will be reduced. Paragraph c is supported in part, however it must specify that risk minimisation will occur through methods such as managed retreat, and hard engineering methods will be avoided, in accordance with the NZCPS. Paragraph d is supported, however it must specify that new development and infrastructure will not be allowed in areas subject to sea level rise over the next 100 years, in accordance with the NZCPS.</p> | <p>Amend (a) to require new development to incorporate sustainable design.</p> <p>Amend (b) to provide clear direction as to how effects on indigenous biodiversity will be reduced.</p> <p>Amend (c) to ensure risk minimisation and avoid hard engineering methods.</p> <p>Amend (d) to specify that new development and infrastructure will not occur in areas subject to sea level rise over the next 100 years.</p> |
| 1.B.9<br>Regulatory<br>Methods                    | <p><i>Support in part</i></p> <p>This section should provide clear direction to the relevant objectives, policies and rules by identifying them by number or similar. It is currently very difficult to locate the relevant provisions in the regional and district plan sections.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Amend to provide clear links to the relevant objectives, policies and rules.                                                                                                                                                                                                                                                                                                                                             |
| 1.B.9<br>Non-regulatory<br>methods                | <p><i>Support in part</i></p> <p>This section does not provide adequate methods to implement the policies and amendments are required to address this. E.g. funding support to enable retrofit of existing buildings and encourage activities that improve energy efficiency and reduce GHG emissions. E.g. guidelines for best practice sustainable design. E.g. Responding to climate change threats, such as pest and disease, to preserve, protect and enhance areas of existing and potential indigenous ecological value.</p>                                                                                                                                                                                                                                                                                                            | Amend to provide additional non-regulatory methods to implement the policies effectively.                                                                                                                                                                                                                                                                                                                                |
| 1.B.9<br>Explanation                              | <p><i>Support in part</i></p> <p>The explanation addresses selected matters only.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Amend the explanation to ensure matters are addressed equitably.                                                                                                                                                                                                                                                                                                                                                         |
| Environmental Results Anticipated                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 1.B.12<br>Environmental<br>Results<br>Anticipated | <p><i>Oppose</i></p> <p>Many of the Environmental Results Anticipated are poorly phrased and do not provide specific, measurable or time-bound targets or metrics to assess effectiveness. For example, the ERAs linked to the objective of tree retention</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Amend the ERAs to express an actual result by being specific, numerical and time-bound to enable effective monitoring and evaluation.                                                                                                                                                                                                                                                                                    |

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|  | mention ‘the total number and density of scheduled trees (and changes in these figures) inside the RUB, and by urban local board’. Presumably this means there should be an increase in ‘the total number and density’, but this needs to be clearly stated. |  |
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## 11. REGIONAL AND DISTRICT OBJECTIVES AND POLICIES

| Section                                                | Submission                                                                                                                                                                                                                                                                                                                                                                                                                               | Relief Sought                                                                                                                                                                                                                                                        |
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| <i>Chapter C Auckland-wide Objectives and Policies</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                      |
| <i>1 Infrastructure</i>                                |                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                      |
| 2.C.1.1.O4                                             | <p><i>Support in part</i></p> <p>Objective 4 refers to improving the resilience of Auckland’s infrastructure. However the policies do not address ensuring new infrastructure is located in a manner that takes into account climate change predictions for the next 100 years or minimising risk to existing infrastructure from climate change while avoiding hard engineering methods. This section should address these matters.</p> | Amend to ensure new infrastructure is located in a manner that takes into account climate change predictions for the next 100 years and risk to existing infrastructure from climate change is minimised while avoiding hard engineering methods                     |
| <i>4.1 Trees in streets and public open space</i>      |                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                      |
| 2.C.4.1.O2                                             | <p><i>Support</i></p> <p>EDS supports the intent of this objective to increase the quality and number of trees, particularly within areas identified for intensified living.</p>                                                                                                                                                                                                                                                         | Retain.                                                                                                                                                                                                                                                              |
| 2.C.4.1.O3                                             | <p><i>Oppose</i></p> <p>The intent of the objective is to provide for efficient maintenance and upgrade of utilities, while achieving a no net loss in values of trees or groups of trees. This objective is at odds with Objective 2. A net gain goal would be more appropriate given Objective 2, and also more likely to achieve the overarching goals of the Auckland Unitary Plan.</p>                                              | <p>Amend as follows or similar:</p> <p>“Enable the efficient maintenance and upgrading of utilities in streets <del>provided there is not net loss</del> while achieving a <u>net gain</u> in the <u>extent and quality</u> values of trees or groups of trees.”</p> |
| <i>5 Natural resources</i>                             |                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                      |
| <i>5.2 Earthworks</i>                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                      |
| 2.C.5.2 Objectives generally                           | <p><i>Oppose</i></p> <p>The objectives fail to refer to the need to reduce sediment in areas of degraded water quality as identified in section 7.3 of the RPS.</p>                                                                                                                                                                                                                                                                      | Include an objective which states that earthworks are to be undertaken in a manner which ensures that there is no increase in sedimentation entering areas of degraded water quality as identified in section 7.3 of the RPS.                                        |
| 2.C.5.2.O1                                             | <p><i>Oppose in part</i></p> <p>This objective is very vague, is not measureable and provides little direction to decision makers. Earthworks should be undertaken in accordance with best practice techniques.</p>                                                                                                                                                                                                                      | Amend to provide a clear measureable objective which requires that all earthworks are minimised and undertaken in accordance with best practice techniques to minimise effects of people and the environment.                                                        |

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| 2.C.5.2.O3                       | <p><i>Oppose in part</i></p> <p>This objective could provide more information as to the extent of minimisation required e.g. use of best practice to minimise to the greatest extent technically possible, avoidance where limits would be exceeded.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Amend to provide a clear direction as to the extent of minimisation sought.                                                                                                                                                                                                                                |
| 2.C.5.2.P1                       | <p><i>Oppose in part</i></p> <p>This policy is very broad and provides little direction to decision makers. In the identified overlays all adverse effects should be required to be avoided.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Delete 'remedy or mitigate'                                                                                                                                                                                                                                                                                |
| 2.C.5.2.P2                       | <p><i>Support in part</i></p> <p>This policy is supported, particular the requirement to use best practice. It should also refer to avoiding earthworks in particular locations.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | <p>Retain.</p> <p>Add a paragraph requiring earthworks to be avoided in sensitive locations.</p>                                                                                                                                                                                                           |
| 2.C.5.2.P5                       | <p><i>Support in part</i></p> <p>Paragraph (a) is supported, however short-term effects should not be significant. Paragraph (b) is opposed, if freshwater limits are not met further deterioration cannot be allowed. Paragraph (c) is supported, however all adverse effects should be avoided in particularly sensitive areas. Paragraph (d) is supported, however other effects should be avoided, remedied or mitigated.</p>                                                                                                                                                                                                                                                                                                                                         | <p>(a) – amend to prevent significant short-term effects.</p> <p>(b) – amend to require avoidance where MCI limits are not met.</p> <p>(c) – amend to require avoidance in sensitive locations.</p> <p>(d) – amend to require other effects to be avoided, remedied or mitigated.</p>                      |
| <b>5.3 Vegetation Management</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                            |
| 2.C.5.3<br>Description           | <p><i>Support</i></p> <p>The description identifies some of the values that trees contribute to. It also recognises the importance of trees in the coastal landscape, particularly pōhutukawa. This is supported.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Retain.                                                                                                                                                                                                                                                                                                    |
| 2.C.5.3.O1                       | <p><i>Oppose in part</i></p> <p>EDS supports the general intent of this objective. However there are a number of issues.</p> <p>It is unclear what 'sensitive areas' are. This requires explanation or deletion to apply to all ecosystem services and biodiversity. As identified above there needs to be objectives and policies that are region-wide that give effect to the Council's function of maintaining biodiversity.</p> <p>It is unclear why the qualifier phrase "while providing for reasonable use and enjoyment" is included in this objective, and in this objective only. EDS supports allowing reasonable use of property. However this is subject to the requirements of s6(c) and the Council's function of maintaining indigenous biodiversity.</p> | <p>Amend to state that the ecosystem services and indigenous biological diversity values of vegetation <del>in sensitive environments</del> and areas of contiguous native vegetation cover are recognised, <del>and maintained and enhanced while providing for reasonable use and development.</del></p> |

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|                                         | <p>The objective focusses upon the recognition and maintenance of the values in question, enhancement needs to be provided for as well.</p> <p>The objective is not measurable or sufficiently explicit as to purpose.</p>                                                                     |                                                                                                                                                                                                          |
| <i>5.11 Rural production discharges</i> |                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                          |
| 2.C.5.11. O1                            | <p><i>Oppose in part</i></p> <p>This objective is very vague, not measureable and provides little direction to decision makers. Discharges should be managed to maintain land/water quality where it is good and enhance it where it is degraded.</p>                                          | Amend to provide a clear measureable objective that seeks to ensure land/water quality is maintained where it currently safeguards life supporting capacity and is improved where it currently does not. |
| 2.C.5.11.P1                             | <p><i>Oppose in part</i></p> <p>As above, discharges should be managed to maintain water quality where it is good and enhance it where it is degraded. This means that where water quality is already degraded, additional, even minor, adverse effects would not be allowed.</p>              | Amend to set out how good water quality will be maintained and poor water quality will be improved. I.e. different management frameworks depending on current status.                                    |
| 2.C.5.11.P2                             | <p><i>Oppose in part</i></p> <p>This policy provides minimal direction as to the management of dairy effluent discharges and more direction is required to ensure discharges are managed to avoid adverse effects and achieve limits.</p>                                                      | Amend to prefer discharges to land over discharges to water and clearly set out requirements for discharge systems to avoid (not minimise) overland flow and leaching.                                   |
| 2.C.5.3.P3                              | Support.                                                                                                                                                                                                                                                                                       | Retain.                                                                                                                                                                                                  |
| 2.C.5.11.P4                             | Support. This includes discharges resulting from stock access to waterways.                                                                                                                                                                                                                    | Retain.                                                                                                                                                                                                  |
| 2.C.5.11.P5                             | <p><i>Oppose in part</i></p> <p>This policy should require the discharger to demonstrate that such discharges will not cause limits to be exceeded and require s70 RMA matters to be satisfied.</p>                                                                                            | Amend to require that limits will not be exceeded and compliance with s70.                                                                                                                               |
| <i>5.12 Natural Hazards</i>             |                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                          |
| 2.C.5.12.O2                             | <p><i>Oppose in part</i></p> <p>Objective 2 refers to natural features and buffers being used in preference to hard engineering solutions. Policy 25(e) of the NZCPS requires hard protection works to be discouraged and the wording of this objective should be amended to reflect this.</p> | Amend Objective 2 so that it explicitly refers to discouraging the use of hard engineering solutions.                                                                                                    |
| 2.C.5.12.P 3                            | <p><i>Oppose in part</i></p> <p>Policy 3 sets out the circumstances under which land subject to natural hazards may be subdivided and developed. It fails to include a requirement that no coastal</p>                                                                                         | Amend Policy 3 to insert an additional subsection which refers to the proposed activity not creating any foreseeable need for coastal protection works over a 100 year                                   |

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|                                                           | protection works will be required in the future.                                                                                                                                                                                                                                                                                | time horizon.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 2.C.5.12.P 4                                              | <p><i>Oppose in part</i></p> <p>Policy 4 sets out the matters to be considered as part of a risk assessment of proposals to subdivide and develop land subject to natural hazards. This does not include an assessment of the potential ecological effects of developing land subject of coastal hazards.</p>                   | <p>Amend Policy 4 to include an additional subsection which refers to any adverse effects on coastal flora or fauna, including restricting inland migration of biota in response to sea level rise, or resulting in coastal squeeze where the intertidal area is reduced in extent.</p> <p>Include an additional policy which indicates that any residual adverse effects of hard engineering solutions which cannot be avoided, mitigated or remedied will be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment.</p> |
| 2.C.5.12 General                                          | The objectives and policies make no mention of the Natural Hazards – Coastal Inundation Overlay                                                                                                                                                                                                                                 | Amend the Objectives and Policies to refer to, effectively link into the Natural Hazards – Coastal Inundation Overlay                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <i>5.14 Lakes, rivers, streams and wetland management</i> |                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 2.C.5.14.O1                                               | <p><i>Oppose in part</i></p> <p>This is limited to waterbodies with <i>high natural values</i> and does not specify <i>avoidance</i> therefore it does not give effect to the RPS Policy 2a which requires the PAUP to <i>avoid</i> the permanent loss of <i>all</i> lakes, rivers, streams and wetlands and their margins.</p> | Amend to require the permanent loss of <i>all</i> lakes, rivers, streams and wetlands and their margins to be <i>avoided</i> .                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 2.C.5.14.O2                                               | <p><i>Support</i></p> <p>EDS supports the enhancement and restoration of freshwater bodies which have been lost or degraded.</p>                                                                                                                                                                                                | Retain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 2.C.5.14.O3                                               | <p><i>Oppose in part</i></p> <p>This is inconsistent with the RPS Policy 2a as above. Remediation, mitigation, offsetting are not appropriate in relation to permanent loss or in locations with high values. The objective should specify that offsets should achieve 'net environmental gain'.</p>                            | Amend to require avoidance in areas with high values. In other locations, amend to require offsets to achieve net environmental gain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 2.C.5.14.O4                                               | <p><i>Oppose in part</i></p> <p>This objective should <i>prevent</i> structures unless the specified exceptions apply. Those exceptions may also be inappropriate in locations with high values.</p>                                                                                                                            | Amend to provide that avoidance is required in areas with high values. In other locations, avoidance is the first priority unless specified exceptions apply.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 2.C.5.14.O5                                               | <p><i>Oppose in part</i></p> <p>This objective is very broad and provides little direction to decision-makers.</p>                                                                                                                                                                                                              | Amend to specify the activities of concern, locations of significance and the extent to which adverse effects must be minimised.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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| 2.C.5.14.O6  | <p><i>Support in part</i></p> <p>EDS supports the clear direction to <i>avoid</i> reclamation and drainage. Exceptions provided for in the policy should be specified.</p>                                                                                                                                                                                                                          | <p>Retain 'avoided'.</p> <p>Specify exceptions provided for in the policy.</p>                                                                                                                                                                                                                                                                                        |
| 2.C.5.14.P1  | <p><i>Support</i></p> <p>EDS supports the clear direction to <i>avoid</i> adverse effects in high value areas.</p>                                                                                                                                                                                                                                                                                  | <p>Retain.</p>                                                                                                                                                                                                                                                                                                                                                        |
| 2.C.5.14.P 2 | <p><i>Support</i></p> <p>EDS supports the direction to <i>avoid</i> where practicable and to restore and enhance where appropriate outside of high value areas.</p>                                                                                                                                                                                                                                 | <p>Retain.</p>                                                                                                                                                                                                                                                                                                                                                        |
| 2.C.5.14.P 3 | <p><i>Oppose in part</i></p> <p>Due to the clear direction to avoid adverse effects in high values areas, offsetting should only apply outside of high value areas. Policy 3 should specify that it only applies outside of high value areas. EDS supports the offsetting principles contained in (a) to (c).</p>                                                                                   | <p>Amend to ensure offsets only in respect of activities outside high value areas.</p> <p>Retain offsetting principles, add further in accordance with Marie A. Brown, Bruce D. Clarkson, R.T. Theo Stephens and Barry J. Barton (2014) Compensating for ecological harm – the state of play in New Zealand New Zealand Journal of Ecology 38 (1) Pages: 139–146.</p> |
| 2.C.5.14.P 4 | <p><i>Oppose in part</i></p> <p>This policy is inconsistent with the hierarchical approach set out in Policies 1 and 2. It would effectively elevate all locations to an <i>avoid</i> approach due to the broad scope of characteristics which contribute to mauri and mana whenua values.</p>                                                                                                      | <p>Amend for consistency with Policies 1 and 2.</p>                                                                                                                                                                                                                                                                                                                   |
| 2.C.5.14.P 6 | <p><i>Support in part</i></p> <p>EDS generally supports the policy however given the objective to prevent further degradation the chapeau should start from a restrictive, rather than permissive approach. In some high value areas these activities will remain inappropriate despite the conditions being satisfied. An "and" is required before paragraph (e).</p>                              | <p>Amend as follows:</p> <p>"Prevent ... unless ..."</p> <p>Exceptions do not apply in high value areas.</p> <p>Add "and" before (e).</p>                                                                                                                                                                                                                             |
| 2.C.5.14.P 7 | <p><i>Support in part</i></p> <p>EDS generally supports the policy however given the objective to prevent further degradation the chapeau should start from a restrictive, rather than permissive approach i.e. "Prevent ... unless ..." In some high value areas these activities will remain inappropriate despite the conditions being satisfied. An "and" is required before paragraph (c).</p> | <p>Amend as follows:</p> <p>"Prevent ... unless ..."</p> <p>Exceptions do not apply in high value areas.</p> <p>Add "and" before (e).</p>                                                                                                                                                                                                                             |
| 2.C.5.14.P 8 | <p><i>Support in part</i></p>                                                                                                                                                                                                                                                                                                                                                                       | <p>Amend to prevent planting of any pest</p>                                                                                                                                                                                                                                                                                                                          |

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|                                                       | EDS generally supports the policy however it should not apply to <i>any plant</i> and should prevent the planting of unwanted plant species.                                                                                                                                                                                                                                                                                                                                                                                                                | species.                                                                                                                                                                                                  |
| 2.C.5.14.P 10                                         | <i>Oppose in part</i><br><br>EDS is concerned that the policy appears to allow reclamation and drainage in any situation where there is no reasonable or practicable alternative for undertaking the activity. This is inconsistent with the objective to avoid reclamation and drainage. This could be rectified by adding an “and” following (a) and (b). EDS is also concerned that the policy allows reclamation and drainage to provide for new significant infrastructure. This is inconsistent with the objective to avoid reclamation and drainage. | Amend to ensure reclamation or drainage is limited to situations specified in (b)(i) where (a) and (c) are also satisfied.<br>Delete (b)(ii).                                                             |
| 2.C.5.14.P 11                                         | <i>Support in part</i><br><br>EDS generally supports the policy however it provides little guidance to decision makers. It should require stock exclusion from all water bodies and coastal water by [date] and bridges and culverts for all stock crossings by [date].                                                                                                                                                                                                                                                                                     | Amend to require stock exclusion from all water bodies and coastal water by [5/10 years following notification] and bridges and culverts for all stock crossings by [5 years following notification].     |
| 2.C.5.14.P 12                                         | <i>Support in part</i><br><br>EDS supports the direction to protect and enhance riparian margins however it considers that paragraphs (a) to (d) listing the benefits of this provide little guidance to decision makers. The policy should set out <i>how</i> riparian margins will be protected and enhanced e.g. through controls on vegetation removal and requirements for riparian planting attached to water take or discharge consents.                                                                                                             | Amend to add <i>how</i> riparian margins will be protected and enhanced e.g. through controls on vegetation removal, and requirements for riparian planting attached to water take or discharge consents. |
| 2.C.5.14.P 13                                         | <i>Support</i><br><br>EDS supports this policy providing for acquiring or protecting land for public access, water quality, ecological and landscape protection purposes.                                                                                                                                                                                                                                                                                                                                                                                   | Retain.                                                                                                                                                                                                   |
| <i>5.15.1 Water quality and integrated management</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                           |
| 2.C.5.15.1<br>Background                              | <i>Support</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Retain.                                                                                                                                                                                                   |
| 2.C.5.15.1.O1                                         | <i>Support</i><br><br>EDS supports the objective of protecting areas of high quality and health from degradation.                                                                                                                                                                                                                                                                                                                                                                                                                                           | Retain.                                                                                                                                                                                                   |
| 2.C.5.15.1.O2                                         | <i>Support in part</i><br><br>EDS supports the objective of protecting areas of degraded quality and health from further degradation.                                                                                                                                                                                                                                                                                                                                                                                                                       | Amend to require enhancement where <i>water bodies that have been degraded by human activities to the point of being over-allocated.</i>                                                                  |

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|               | However EDS considers that these areas must be enhanced, not just <i>where practicable</i> , to accord with Objective A2(c) NPSFM <i>improving the quality of fresh water in water bodies that have been degraded by human activities to the point of being over-allocated.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                           |
| 2.C.5.15.1.O3 | <p><i>Support in part</i></p> <p>EDS supports the objectives of protecting the water quality etc of the coastal marine area from further degradation. However, EDS considers areas which have deteriorated must be enhanced, not just <i>where practicable</i>, to accord with Policy 21 of the NZCPS <i>Where the quality of water in the coastal environment has deteriorated so that it is have a significant adverse effect on ecosystems ... give priority to improving that quality by...</i></p>                                                                                                                                                                                                                                                                                          | Amend to require enhancement where <i>the quality of water in the coastal environment has deteriorated so that it is have a significant adverse effect on ecosystems.</i> |
| 2.C.5.15.1.O4 | <p><i>Support in part</i></p> <p>EDS supports the intent of ensuring development minimises adverse effects on freshwater and coastal marine ecosystems however this objective should be more specific, measureable and aligned with the above objectives of avoiding further degradation and enhancing water quality i.e. net improvement.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Amend to require development to avoid further degradation and to achieve enhancement.                                                                                     |
| 2.C.5.15.1.P1 | <p><i>Support in part</i></p> <p>EDS supports the use of the MCI as a measure of freshwater ecosystem health. However, identifying this measure does not ‘manage effects’ or ‘control discharges’ such that the first half of the policy seems null.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Amend to specify that MCI is used as an interim limit for freshwater quality.                                                                                             |
| 2.C.5.15.1.P2 | <p><i>Oppose in part</i></p> <p>EDS supports the framework of maintaining water quality where interim limits are met or exceeded and restoring or enhancing water quality where interim limits are not met. EDS does not support the inclusion of ‘where practicable’ in the chapeau which provides an ‘out’ and is inconsistent with Policy A1(b) NPSFM which requires over-allocation to be <i>avoided</i>. Paragraph (b) should put in place a timeframe for the achievement of the MCI guideline, we suggest 1 July 2030. EDS supports (c) however it must apply to <i>all</i> changes in land use to ensure, for example, water quality does not degrade when there is a change from exotic forest land use (proposed MCI guideline 111) to rural land use (proposed MCI guideline 94).</p> | <p>Delete ‘where practicable’.</p> <p>(b) – Add timeframe of 1 July 2030.</p> <p>(c) – Amend to apply to all change in land use.</p>                                      |
| 2.C.5.15.1    | <i>Oppose in part</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Amend MCI limit for urban areas to 90.                                                                                                                                    |

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| Table 1           | <p>An MCI value of &gt;119 is 'excellent', 100-119 is 'good', 80-99 is 'ok' and &lt;80 is 'poor'.<sup>3</sup> Therefore the MCI guideline for urban areas (in combination with Policy 2) would allow freshwater quality in urban areas to be maintained at a poor level with no requirement to restore or enhance water quality. This does not accord with Objective A2(c) NPSFM <i>improving the quality of fresh water in water bodies that have been degraded by human activities to the point of being over-allocated</i>. EDS supports the MCI guideline for native forest and exotic forest. EDS considers the MCI guideline for rural areas should be 100.</p> | <p>Amend MCI limit for rural areas to 100.<br/>Retain MCI limit for native and exotic forest.</p>                                                                              |
| 2.C.5.15.1<br>Map | <p><i>Support in part</i></p> <p>EDS supports the use of a map (Appendix 5.6) to identify the land use type for determining MCI guidelines values in each stream or river. The map should be accurate to the necessary level of detail</p>                                                                                                                                                                                                                                                                                                                                                                                                                            | <p>Amend map if necessary for accuracy.</p>                                                                                                                                    |
| 2.C.5.15.1.P3     | <p><i>Oppose</i></p> <p>EDS does not support this policy which exempts from the requirement to enhance freshwater quality areas where there is existing intensive land use and development and irreversible modification of stream channels which practicably precludes enhancement occurring. It is very difficult to imagine a scenario in which enhancement of freshwater quality could not practicably occur.</p>                                                                                                                                                                                                                                                 | <p>Amend to require enhancement where limits are not met. Where limits are met require enhancement where practicable.</p>                                                      |
| 2.C.5.15.1.P4     | <p><i>Support</i></p> <p>The inclusion of Policy 4 is directed by Policy A4 NPSFM</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <p>Retain.</p>                                                                                                                                                                 |
| 2.C.5.15.1.P5     | <p><i>Support in part</i></p> <p>EDS supports this policy which provides for the identification of freshwater objectives and limits as directed by Policy A1 NPSFM. A timeframe should be identified for the stages of this process, to give effect to Policy E1 NPSFM which <i>requires</i> this process to be fully completed by 31 December 2030 through a programme of <i>defined time-limited stages</i>.</p>                                                                                                                                                                                                                                                    | <p>Amend to provide a stage programme. We suggest a timeframe of 50% of catchments by 2020 and 100% of catchments by 2025.</p>                                                 |
| 2.C.5.15.1.P<br>6 | <p><i>Oppose in part</i></p> <p>This Policy does not seem to add anything to Policy 2. In addition, use of <i>as far as practicable</i> and <i>where practicable</i> qualify the Policy so that it does not provide clear guidance.</p>                                                                                                                                                                                                                                                                                                                                                                                                                               | <p>Delete. Replace with a policy requiring management of use, development and subdivision to avoid adverse effects on high value areas and to achieve limits in all areas.</p> |
| 2.C.5.15.1.P7     | <p><i>Support in part</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <p>Amend (a) to emphasise planning <i>in advance</i>.</p>                                                                                                                      |

<sup>3</sup> <http://www.mfe.govt.nz/publications/water/mci-user-guide-may07/html/page2.3.html>

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|                | EDS generally supports Policy 7 which is directed at ensuring appropriate infrastructure is in place prior to development. Paragraph (a) should emphasise planning <i>in advance</i> .                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 2.C.5.15.1.P8  | <p><i>Oppose in part</i></p> <p>This Policy provides little guidance to decision makers. It must set out what particular land use activities will be controlled, what sort of controls will be utilised, and what those controls will seek to achieve in terms of preventing/minimising adverse effects. There is a clear lack of policies directed at activities other than stormwater and wastewater.</p>                                                                                                                                                                                                                                                                                                                                                                         | Amend to set out what particular land use activities will be controlled, what sort of controls will be utilised, and what those controls will seek to achieve in terms of preventing/minimising adverse effects.                                                                                                                                                                                                   |
| 2.C.5.15.1.P9  | <p><i>Support in part</i></p> <p>EDS supports the requirement to <i>avoid</i> all significant adverse effects. Other adverse effects should be avoided, remedied or mitigated. This policy should also apply to all new development i.e. brownfield areas, as well as greenfield areas. Paragraph (a) is supported. Paragraph (b) is supported. Paragraph (c) is supported although an indication of the standard of Council requirements should be included. Policy (d) should also provide for the adoption of green infrastructure <i>as a core development approach</i> as specified in RPS 6.3 Policy 1.</p>                                                                                                                                                                   | <p>Amend to require other adverse effects to be avoided, remedied or mitigated.</p> <p>Amend to apply to brownfield areas.</p> <p>(a) – retain.<br/>(b) – retain.<br/>(c) – amend to indicate Council requirements.<br/>(d) – delete ‘where practicable’ and require adoption of green infrastructure <i>as a core development approach</i>.</p>                                                                   |
| 2.C.5.15.1.P10 | <p><i>Support in part</i></p> <p>There is significant repetition between Policy 9 and 10. The additional measures relevant to green and brownfields should be included in Policy 9. Those methods are generally supported, more may be relevant. Policy 10 should address intensification (outside green and brownfields) specifically as it presents unique challenges. It should provide for an overall reduction in adverse effects of stormwater runoff as intensification occurs compared to the current baseline and include the methods that are relevant to intensification. Paragraph (f) directed at significant infrastructure could be a policy unto itself as roads in particular present a unique challenge – large impervious area and significant contaminants.</p> | <p>Transfer methods relevant to green and brownfields to Policy 9.</p> <p>Restrict Policy 10 to addressing the unique challenges to intensification.</p> <p>Amend to require an overall reduction in adverse effects of stormwater runoff as intensification occurs compared to the current baseline and include the methods that are relevant to intensification.</p> <p>Separate (f) into a separate policy.</p> |
| 2.C.5.15.1.P11 | <p><i>Support</i></p> <p>This Policy is generally supported as guiding the assessment of whether adverse effects of stormwater have been sufficiently avoided or mitigated.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Retain.                                                                                                                                                                                                                                                                                                                                                                                                            |
| 2.C.5.15.1.P12 | <p><i>Oppose in part</i></p> <p>This Policy should clearly provide for an overall reduction in contaminant concentration from new or redeveloped activities to align with Policy 2 maintaining or enhancing</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Amend to require an overall reduction in contaminant concentration from new or redeveloped activities.                                                                                                                                                                                                                                                                                                             |

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|                | water quality. The current wording ( <i>reduce existing and prevent or minimise new adverse effects</i> ) does not clearly provide for this.                                                                                                                                                                       |                                                                                                                                                             |
| 2.C.5.15.1.P13 | <i>Support</i><br><br>This Policy is supported. It could be combined with Policy 12 which sets the standard to be achieved by the controls.                                                                                                                                                                        | Retain.                                                                                                                                                     |
| 2.C.5.15.1.P14 | <i>Support in part</i><br><br>It is not clear whether this policy applies to existing or new activities or both. The standard should be overall reduction compared to current. <i>Prevent or minimise</i> allows for increases, if associated with new adverse effects.                                            | Amend to apply to existing and new activities.<br>Amend to require overall reduction compared to current.<br>Delete 'or minimise'.                          |
| 2.C.5.15.1.P15 | <i>Support</i>                                                                                                                                                                                                                                                                                                     | Retain.                                                                                                                                                     |
| 2.C.5.15.1.P16 | <i>Support in part</i><br><br>This Policy is generally supported. It should specify that stormwater hydrology should be mitigated to the extent that will at a minimum address the increase in impervious area.                                                                                                    | Amend to specify that stormwater hydrology should be mitigated to the extent that will at a minimum offset the increase in impervious area.                 |
| 2.C.5.15.1.P17 | <i>Support in part</i><br><br>This Policy is generally supported. Paragraph (c) should specify that the treatment must achieve a quality that will not result in any reduction in the water quality of the underlying aquifer system.                                                                              | Amend (c) to specify that the treatment must achieve a quality that will not result in any reduction in the water quality of the underlying aquifer system. |
| 2.C.5.15.1.P18 | <i>Support in part</i><br><br>This Policy is generally supported however as above it must ensure that the quality of the discharge will not result in any reduction in the water quality of the aquifer.                                                                                                           | Amend to require that the quality of the discharge will not result in any reduction in the water quality of the aquifer.                                    |
| 2.C.5.15.1.P19 | <i>Oppose in part</i><br><br>The clear direction to <i>avoid</i> increasing existing overflows and creating new overflows is supported. Paragraph (d) – the reference to <i>designing and locating overflow points</i> is questioned as this seems to apply to <i>new</i> overflows which must be <i>avoided</i> . | Retain direction to <i>avoid</i> increasing existing overflows and creating new overflows is supported.<br><br>Amend (d) to restrict to existing overflows. |
| 2.C.5.15.1.P20 | <i>Support</i>                                                                                                                                                                                                                                                                                                     | Retain.                                                                                                                                                     |
| 2.C.5.15.1.P21 | <i>Support in part</i><br><br>EDS generally supports the policy, however it does not set out how this be achieved i.e. adoption of best practicable option, operations and maintenance plans, and response process are set out in RPS 6.3 Policy 11.                                                               | Amend to provide for how the policy will be achieved i.e. adoption of best practicable option, operations and maintenance plans, and response process.      |

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| 2.C.5.15.1.P22                                   | <p><i>Support in part</i></p> <p>EDS generally supports the policy, however as well as operation and maintenance this policy should also provide for <i>upgrade</i> of wastewater and combined networks to address design and capacity deficiencies in a staged timeframe.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Amend to provide for <i>upgrade</i> of wastewater and combined networks to address design and capacity deficiencies in a staged timeframe.                                                                                                                                                             |
| 2.C.5.15.1.P23                                   | <p><i>Oppose in part</i></p> <p>This Policy specifies some activities (construction, maintenance, investigation) and then includes a very broad catch all (and other activities). It is not clear if this is meant to encompass <i>all activities</i> although it seems unlikely given (a) establishing minimum performance standards it seems to be aimed at infrastructure related activities. EDS generally supports (a) although more guidance would be beneficial i.e. performance standards that reflect current best practice. Paragraph (b) is unclear. When might minimum performance standards be inappropriate? Should activities which cannot meet minimum performance standards be allowed? Is regard to be had to these matters through a consent process?</p> | Amend to provide for all other activities, specify that minimum performance standards will reflect current best practice, and restrict (b) to situations where minimum performance standards have not been developed due to prioritising development for the discharges of most environmental concern. |
| 2.C.5.15.1<br>New policy -<br>Sediment           | Despite the RPS identifying sediment as a key issue in relation to water quality there are no specific policies addressing this matter. See 1.B.6.3.9.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Add specific policy addressing this matter as set out in 1.B.6.3.9                                                                                                                                                                                                                                     |
| 2.C.5.15.1<br>New policy -<br>Nutrients          | Despite the RPS identifying nutrients as a key issue in relation to water quality there are no specific policies addressing this matter. See 1.B.6.3.Nutrients.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Add specific policy addressing this matter as set out in 1.B.6.3.                                                                                                                                                                                                                                      |
| <i>5.15.2 Water quantity, allocation and use</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                        |
| 2.C.5.15.2<br>Background                         | <i>Support</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Retain.                                                                                                                                                                                                                                                                                                |
| 2.C.5.15.2.O1                                    | <p><i>Oppose in part</i></p> <p>This objective seeks ‘to have your cake and eat it too’. As the background states ‘Current demand for water already equals or exceeds availability in some surface water bodies and aquifers in Auckland’ therefore it will not always be possible for water to be <i>available for use</i> while <i>aquatic values of water are maintained</i>. This objective should be to maintain the flows and levels of waterbodies within limits which safeguard the life-supporting capacity, ecosystems processes and indigenous species of freshwater.</p>                                                                                                                                                                                         | Amend to maintain the flows and levels of waterbodies within limits which safeguard the life-supporting capacity, ecosystems processes and indigenous species of freshwater.                                                                                                                           |
| 2.C.5.15.2.O2                                    | <p><i>Oppose in part</i></p> <p>This objective does not align with the Background which states ‘The objectives and policies of this section focus on matching Auckland’s demand for freshwater with available surface and groundwater resources’. As above, it</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Amend to efficiently manage current and future water needs within allocable flows, including by progressively reducing the amount of freshwater used by Auckland per capita so that there is no increase in freshwater use as a whole.                                                                 |

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|               | will not always be possible for water to <i>meet current and future water needs</i> . It should also reflect the RPS objective to progressively reduce the amount of freshwater used by Auckland per capita. This objective should seek to efficiently manage current and future water needs within allocable flows.                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                |
| 2.C.5.15.2.O3 | <i>Support</i><br><br>EDS supports this objective which provides for allocating scarce resources in order of priority.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Retain.                                                                                                                                                                                                                                                                        |
| 2.C.5.15.2.O4 | <i>Support</i><br><br>EDS supports this objective which provides for maximising the efficient use of available water.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Retain.                                                                                                                                                                                                                                                                        |
| 2.C.5.15.2.P1 | <i>Oppose in part</i><br><br>EDS is concerned that Appendices 5.2 and 5.5 are referred to as 'guidelines'. It is inconsistent with Policy 3 which directs that these 'guidelines' are not to be exceeded. Minimum flows, allocable flows, etc should be referred to as 'limits' which are within the NPSFM framework. If priority is to be given to <i>municipal water supply</i> assessment of the <i>large commercial users</i> who may utilise this supply is required and which are not, unlike domestic water and animal drinking water, permitted as of right under the RMA. EDS generally supports the priorities identified.                                                                          | Replace 'guidelines' with 'limits'.<br><br>Add in a requirement to take into account the <i>large commercial users</i> who may utilise <i>municipal water supply</i> when prioritising that use.                                                                               |
| 2.C.5.15.2.P2 | <i>Oppose in part</i><br><br>Paragraph 2(a)(i) EDS considers all municipal water supplies should provide a water management plan (not just 'where appropriate') if they are to be give priority for allocation. Paragraphs (a)(ii) and (iii) are supported. Paragraph (b) should require water conservation and thermal efficiency methods in all new or re-development (not just 'require consideration'). They should also be promoted for existing development. Paragraph (c) is supported given the restriction of transfer to within a catchment and no site-specific adverse effects. Paragraph (d) is supported. Additional measures for efficient use of water should be provided for in this policy. | Amend to require all municipal water supplies to provide a water management plan.<br><br>Amend to require water conservation and thermal efficiency methods in all new or re-development and promote for existing development.<br><br>Add measures for efficient use of water. |
| 2.C.5.15.2.P3 | <i>Support in part</i><br><br>EDS generally supports this policy which prohibits exceedances of minimum flow and availability guidelines and aquifer availability and groundwater levels. However, as above, 'guidelines' should be replaced with 'limits' which are within the NPSFM framework and reflect the prohibition on exceedances.                                                                                                                                                                                                                                                                                                                                                                   | Replace references to 'guidelines' with 'limits'                                                                                                                                                                                                                               |

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| 2.C.5.15.2.P4  | <p><i>Support in part</i></p> <p>Paragraph (a) is supported. Paragraph (b) is supported, although (i) should be covered by the minimum flow limits. Paragraph (c) is supported. Paragraph (d) is supported. Paragraph (e) is supported, although proposals should demonstrate how these measures will be implemented during water shortages and what reductions can be achieved through these measures.</p>                                     | <p>Amend (b)(i) to refer to minimum flow limits</p> <p>Amend (c) to require proposals to demonstrate how these measures will be implemented during water shortages and what reductions can be achieved through these measures.</p> |
| 2.C.5.15.2.P5  | <p><i>Support in part</i></p> <p>Paragraph (a) is supported. Paragraph (b) should require <i>avoidance</i> of adverse effects on surface water, or alternatively surface water depleting groundwater takes should be counted as surface water takes. Paragraph (c) is supported. Paragraph (d) is supported. Paragraph (e) is supported. Paragraph (f) does not appear equitable unless the new take provides for the alterations required.</p> | <p>Amend (b) to require avoidance of adverse effects on surface water, or alternatively count surface water depleting groundwater takes as a percentage surface water takes.</p> <p>Delete (f)</p>                                 |
| 2.C.5.15.2.P6  | <p><i>Support in part</i></p> <p>EDS generally supports this policy which identifies potential mitigation options. However, it should also identify that if significant adverse effects remain following consideration of mitigation options that take and use of water should not be allowed.</p>                                                                                                                                              | <p>Amend to prevent take and use of water where significant adverse effects remain following mitigation options.</p>                                                                                                               |
| 2.C.5.15.2.P7  | <p><i>Support</i></p> <p>EDS supports this policy relating to monitoring effects of takes. In particular, requirement for all takes and uses and various characteristics to be monitored.</p>                                                                                                                                                                                                                                                   | <p>Retain.</p>                                                                                                                                                                                                                     |
| 2.C.5.15.2.P8  | <p><i>Support in part</i></p> <p>EDS supports this policy which provides for the management of waterbodies near or over full allocation however it should provide a timeframe for phasing out over-allocation in those catchments which are already over-allocated.</p>                                                                                                                                                                         | <p>Amend to provide a timeframe for phasing out over-allocation in those catchments which are already over-allocated.</p>                                                                                                          |
| 2.C.5.15.2.P9  | <p><i>Support in part</i></p> <p>EDS supports provision for high flow takes which can provide for economic use provided that natural flow variability <i>is</i> maintained.</p>                                                                                                                                                                                                                                                                 | <p>Amend to provide strong guarantees that natural flow variability will be maintained.</p>                                                                                                                                        |
| 2.C.5.15.2.P10 | <p><i>Support</i></p> <p>Policy 10 is required by Policy B7 NPSFM.</p>                                                                                                                                                                                                                                                                                                                                                                          | <p>Retain.</p>                                                                                                                                                                                                                     |
| 2.C.5.15.2.P11 | <p><i>Support in part</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                   | <p>Amend to provide for the identification of freshwater objectives.</p>                                                                                                                                                           |

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|                | EDS supports this policy which provides for the identification flows/levels as directed by Policy B1 NPSFM, however it must also provide for the identification of freshwater objectives. A timeframe should be identified for the stages of this process, to give effect to Policy E1 NPSFM which <i>requires</i> this process to be fully completed by 31 December 2030 through a programme of <i>defined time-limited stages</i> . We suggest a timeframe of 50% of catchments by 2020 and 100% of catchments by 2025. | Amend to provide timeframes for the stages of the process. We suggest a timeframe of 50% of catchments by 2020 and 100% of catchments by 2025, prioritising those known to have greater resource management issues. |
| 2.C.5.15.2.P12 | <i>Support</i><br><br>EDS supports this policy which provides for common review dates for resource consents.                                                                                                                                                                                                                                                                                                                                                                                                              | Retain.                                                                                                                                                                                                             |
| 2.C.5.15.2.P13 | <i>Support</i><br><br>EDS supports this policy which states a preference for off-stream damming over damming of rivers and streams. On-stream dams generally have very significant adverse effects on the ecological values of the freshwater environment.                                                                                                                                                                                                                                                                | Retain.                                                                                                                                                                                                             |
| 2.C.5.15.2.P14 | <i>Support in part</i><br><br>EDS supports the clear direction to <i>avoid</i> damming in Natural Lake, Wetland and Stream Management Areas except for two specific exceptions. Paragraph (a) should provide for <i>consideration</i> of damming for municipal water supply, it will not necessarily be appropriate.                                                                                                                                                                                                      | Amend (a) to provide for 'consideration' of new dams for municipal water supply.                                                                                                                                    |
| 2.C.5.15.2.P15 | <i>Support in part</i><br><br>Paragraph (a) – the requirement to <i>avoid or remedy</i> is supported. Paragraph (b) is supported. Paragraph (c) is supported. Paragraph (e) – the clear requirement to <i>avoid significant effects</i> is supported, other effects could be avoided, remedied, or mitigated. EDS suggests that <i>all</i> adverse effects on SEAs should be <i>avoided</i> .                                                                                                                             | (e) – add a requirement to avoid, remedy, mitigate other adverse effects.<br><br>Amend to require all adverse effects on high natural value areas (including SEAs) to be avoided.                                   |
| 2.C.5.15.2.P16 | <i>Support in part</i><br><br>EDS generally supports the policy although additional monitoring should be provided for e.g. flows and flows out to assess whether flow variability is maintained.                                                                                                                                                                                                                                                                                                                          | Amend to require additional monitoring to ensure flow variability is maintained.                                                                                                                                    |
| 2.C.5.15.2.P17 | <i>Support in part</i><br><br>EDS supports the clear requirement to <i>avoid significant effects</i> , other effects should be avoided, remedied, or mitigated. However, the listed matters should include environmental effects.                                                                                                                                                                                                                                                                                         | Amend to add environmental effects to the paragraphs.                                                                                                                                                               |
| 2.C.5.15.2.P18 | <i>Support in part</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Amend to add environmental effects to the paragraphs.                                                                                                                                                               |

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|                                               | EDS considers the policy should address managing environmental effects of diversion of groundwater.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                           |
| 2.C.5.15.2.P19                                | <p><i>Support in part</i></p> <p>EDS considers the policy should require avoidance of adverse effects on flora and fauna.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Amend to add avoiding adverse ecological effects, including effects on SEAs.                                                                                                                                                                                                                                              |
| <i>6 Subdivision</i>                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                           |
| 2.C.6<br>General                              | <p><i>Oppose in part</i></p> <p>Part 6 Subdivision – Rural Subdivision does not adequately acknowledge that there are areas of the rural environment, including those identified as HNCs ONCs, ONFs, ONLs and SEAs, where further development and further subdivision that may result in development is generally not appropriate.</p>                                                                                                                                                                                                                                                                                                                                                                                                           | Add references in the explanation, objectives and policies to avoiding subdivision where it may allow for development in HNCs, ONCs, ONFs, ONLs and SEAs                                                                                                                                                                  |
| 2.C.6.<br>P27                                 | <p><i>Support</i></p> <p>Policy 27 - avoiding new subdivision and development for rural living purposes within the Rural Production, Mixed Rural, Rural Coastal and Rural Conservation Zones, is supported for the reasons explained in the PAUP and section 32.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Retain.                                                                                                                                                                                                                                                                                                                   |
| 2.C.6.P29                                     | <p><i>Support in part</i></p> <p>Policy 29 is to encourage the amalgamation of rural titles and transfer of development potential out of a range of areas with high values. However the list fails to refer to ONLs which need to be protected by reducing development potential within them.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                | Amend Policy 29 by including an additional subsection which refers to ONLs.                                                                                                                                                                                                                                               |
| <i>Chapter D Zone Objectives and Policies</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                           |
| <i>5 Coastal Zones</i>                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                           |
| 2.D.5.1.1                                     | <p><i>Support in part</i></p> <p>The background to this section acknowledges that reclamation and drainage can have potentially significant and often irreversible effects on natural character, coastal processes, habitats and ecosystems. But despite this the three objectives provided on this topic are extremely weak. Given the significant adverse effects of reclamations on the coastal environment, even after mitigation has taken place, any residual adverse effects which cannot be avoided, mitigated or remedied should be required to be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment.</p> | Include an additional objective which indicates that any residual adverse effects which cannot be avoided, mitigated or remedied will be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment. |
| 2.D.5.1.1.P1                                  | <p><i>Oppose in part</i></p> <p>Policy 1 sets out the circumstances in which reclamation and drainage may not be avoided. The subsections fail to refer to the need to protect ONC, ONLs and SEA areas.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Amend Policy 1 by including an additional subsection which refers to areas identified as having ONC, an ONL or a SEA not being adversely affected.                                                                                                                                                                        |

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| 2.D.5.1.1.P 6                                  | <p><i>Oppose in part</i></p> <p>Policy 6 refers to an esplanade reserve or strip being required on reclaimed or drained areas of the CMA unless a restriction on public access is “appropriate”. This requirement is not strict enough to ensure that public access is only restricted where strictly necessary. It is contrary to Policy 19 (3) of the NZCPS which requires restriction on public walking access to, along or adjacent to the CMA only where it is “necessary” for a number of specified reasons including public health and safety.</p> | Amend Policy 6 so that the word “appropriate” is replaced with the word “necessary” and is followed by the words “to protect public health or safety”.                                                                                                                                                                                                                                                                                                                                                                                                             |
| 2.D.5.1.1.P 9                                  | <p><i>Oppose in part</i></p> <p>Policy 9 addressed the declaration of reclaimed land, but no policy addressed declaration of unreclaimed land, such as is frequently undertaken for canal developments.</p>                                                                                                                                                                                                                                                                                                                                               | Amend Policy 9 or include an additional policy that makes it clear that declaration of unreclaimed land for residential/canal development will not be permitted                                                                                                                                                                                                                                                                                                                                                                                                    |
| 2.D.5.1.2.O1 -<br>2.D.5.1.2.O4                 | <p><i>Oppose in part</i></p> <p>The objectives fail to address the risk of depositing material which contains unwanted exotic organisms of biosecurity concern, thereby risking their spread.</p>                                                                                                                                                                                                                                                                                                                                                         | Include an additional objective which states that material containing organisms of biosecurity concern is not deposited within the CMA.                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 2.D.5.1.2.P3                                   | <p><i>Support</i></p> <p>Policy 3 is to avoid the disposal of material in the Hauraki Gulf Marine Park and this is supported.</p>                                                                                                                                                                                                                                                                                                                                                                                                                         | Retain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 2.D.5.1.2P4(a)                                 | <p><i>Oppose in part</i></p> <p>Policy 4(a) refers to avoiding adverse effects on areas “identified” as having significant value. This is ambiguous as it is not clear how and when the areas need to be identified.</p> <p>The Policies fail to address the risk of depositing material which contains unwanted exotic organisms of biosecurity concern thereby risking their spread.</p>                                                                                                                                                                | <p>Amend Policy 4(a) so that it refers to areas with significant natural values including ONC, ONL and SEAs.</p> <p>Include an additional provision which states that material containing organisms of biosecurity concern is not deposited within the CMA.</p>                                                                                                                                                                                                                                                                                                    |
| 5.1.4: Disturbance of the foreshore and seabed |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 2.D.5.1.4.P2                                   | <p><i>Oppose in part</i></p> <p>Policy 2 refers to areas “identified” as having significant value. This is ambiguous as it is not clear how and when the areas need to be identified.</p>                                                                                                                                                                                                                                                                                                                                                                 | Amend Policy 2 so that it refers to “areas with significant heritage values”.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 5.1.6 Vegetation: mangrove management          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 2.D.5.1.6<br>General                           | <p><i>Oppose in part</i></p> <p>The background refers to a key factor contributing to the spread of mangroves being sediment entering the CMA from catchments. However the provisions in this section provide for the removal of mangroves without an associated sediment management plan to remove the cause of the problem.</p>                                                                                                                                                                                                                         | <p>Include a provision in the background section making it clear that mangrove removal proposals will only be considered when they are accompanied by a sediment management plan which effectively addresses the transport of sediment into the CMA at the location where removal is sought.</p> <p>Include an additional objective to the effect that the removal of mangroves is only enabled where there is a sediment management plan in place which effectively addresses the transport of sediment into the CMA at the location where removal is sought.</p> |

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|                                                   |                                                                                                                                                                                                                                                                                                                                                                                                              | Amend the policies so that they require a sediment management plan to be developed which effectively addresses the transport of sediment into the CMA at the location where any removal is sought.                              |
| 2.D.5.1.6.P1(a)                                   | <i>Oppose in part</i><br><br>Policy 1(a) refers to “identified” values. This is ambiguous as it is not clear how and when the areas need to be identified.                                                                                                                                                                                                                                                   | Amend Policy 1(a) to remove the words “identified as” so that it refers to areas with significant value.                                                                                                                        |
| 2.D.5.1.6.P4                                      | <i>Oppose</i><br><br>This policy refers to enabling mangrove removal back to the extent that existed at 1996, but there is no robust scientific basis to support this, and in particular the use of the year 1996.                                                                                                                                                                                           | Delete                                                                                                                                                                                                                          |
| 5.1.10 Discharges                                 |                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                 |
| 2.D.5.1.10 General                                | This section fails to refer to, and to effectively manage impacts on, the areas of degraded water quality as identified in Policy 7.3 of the RPS                                                                                                                                                                                                                                                             | Amend the objectives and policies to give effect to Policy 7.3 of the RPS and Policy 21 of NZCPS to ensure no further decline in the water quality of areas of degraded water quality and that their quality improves over time |
| 5.1.13 Use, development and occupation in the CMA |                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                 |
| 2.D.5.1.13 Background                             | <i>Oppose</i><br><br>The background indicates that the council has chosen not to include a charging regime for occupation of the CMA. A charging regime should be included to encourage the efficient use of the CMA and also to provide revenue to help offset the cost of coastal management.                                                                                                              | Include a charging regime for occupation of the CMA.                                                                                                                                                                            |
| 5.1.14 Aquaculture                                |                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                 |
| 2.D.5.1.14.O1                                     | <i>Oppose in part</i><br><br>Objective 1 is too vague and uncertain due to the inclusion of the word “appropriate” without clearly specifying what appropriate locations are for aquaculture to be developed in.                                                                                                                                                                                             | Reword Objective 1 so that it refers to aquaculture being developed only in locations where there are no conflicts with ecological, social and cultural values or with other uses.                                              |
| 2.D.5.1.14.P2                                     | <i>Oppose in part</i><br><br>Policy 2 refers to staged development where effects are not fully understood. The way the policy is worded implies that a staged approach will always be appropriate in the case of uncertain information, but this is not the case. A staged approach should not be used where there is a risk of significant and/or irreversible effects, and the policy should reflect this. | Amend Policy 2 so that it includes a statement to the effect that a staged approach should not be used where there is a risk of significant and/or irreversible effects and consent should be declined in these circumstances.  |
| 2.D.5.1.14.P4                                     | <i>Oppose in part</i><br><br>Policy 4 refers to requiring aquaculture to be located and                                                                                                                                                                                                                                                                                                                      | Amend Policy 4 so that it refers to requiring aquaculture to be located outside of, and to be located and designed to avoid adverse                                                                                             |

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|                          | <p>designed to avoid adverse effects on a range of identified natural heritage areas. The policy should also make it clear that aquaculture should not be located within these areas. Also, reflecting the acknowledgement in the proposed plan that most of the CMA has not been comprehensively surveyed for the purpose of identifying SEA-Marine, and that significant marine communities and habitats in the sub-tidal region may be under-represented, the policy also needs to make provisions for the protection of significant areas which have not been identified in the plan from the adverse effects of aquaculture.</p> | <p>effects on, the matters in the following subsections.</p> <p>Add additional subsections to Policy 4 which refer to:</p> <ul style="list-style-type: none"> <li>• Significant habitats of threatened or at risk marine species including marine mammals and seabirds and shorebirds</li> <li>• Significant benthic habitats including rocky reefs, subtidal sea grass beds, horse mussel beds, green-lipped mussel beds, sponge beds, shell-gravels and shell-armoured seafloor areas</li> <li>• Areas of importance to fisheries including snapper spawning and nursery areas</li> <li>• Areas of importance for shellfish</li> <li>• Other areas with significant natural values</li> </ul> |
| 2.D.5.1.14.P 10          | <p><i>Oppose in part</i></p> <p>Policy 10 refers to avoiding “significant” expansion of aquaculture in the Mahurangi Harbour. Given that the Mahurangi Harbour is of considerable significance as a juvenile nursery for snapper and other marine species, and that it is currently undergoing serious degradation, it is important that no further pressure is put on the harbour’s ecology through aquaculture expansion, until the harbour has had the ability to recover.</p>                                                                                                                                                     | <p>Remove the word “significant” from Policy 10 so that it refers to avoiding expansion of aquaculture in the Mahurangi Harbour.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 2.D.5.1.14<br>General    | <p><i>Oppose in part</i></p> <p>The Policies fail to give effect to the RPS Policy 7.4.9(g) which refers to providing an expanded blue-green network linking restored island and mainland sanctuaries with protected, regenerating marine areas where the ecological health and productivity of the marine area will be enhanced. They need to make it clear that aquaculture should not be located in areas of the CMA in the vicinity of island and mainland sanctuaries</p>                                                                                                                                                        | <p>Include an additional policy which provides that aquaculture is not to be located in areas of the CMA within 5 nautical miles of reserves, regional parks, sanctuaries or other conservation land.</p> <p>Include an additional objective which indicates that any residual adverse effects which cannot be avoided, mitigated or remedied will be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment.</p>                                                                                                                                                      |
| <i>5.1.15 Structures</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 2.D.5.1.15.P6            | <p><i>Oppose in part</i></p> <p>Policy 6 refers to areas “identified” as having significant values. This is ambiguous as it is not clear how and when the areas need to be identified.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                            | <p>Amend Policy 6 to remove the words “identified as” so that it refers to areas with significant value.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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| 2.D.5.1.15.P 13                                                        | <p><i>Oppose in part</i></p> <p>Policy 13(a) refers to requiring hard protection structures to be located landward of the MHWS “where practicable”, particularly if it is for the purpose of protecting private assets. This does not give full effect to Policy 27(4) of the NZCPS which requires that hard protection works for the protection of private assets should not be located on public land if there is no significant public or environmental benefit in doing so.</p>                | Amend Policy 13(a) so that it states that hard protection works are not be located below MHWS or on public land unless there is a significant public or environmental benefit in doing so.                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 2.D.5.1.15.P 14                                                        | <p><i>Oppose in part</i></p> <p>Policy 14 sets out the circumstances when hard protection works should be avoided, but does not include the case where significant adverse effects may occur on important values.</p>                                                                                                                                                                                                                                                                              | Include an additional subclause in Policy 14 to the effect that hard protection structures are to be avoided when they may result in significant adverse effects on areas with significant value.                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>6 Rural Zones</b>                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>6.1.3 Rural industries, services and non-residential activities</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 2.D.6.1.3.7                                                            | <p><i>Oppose</i></p> <p>Policy 7 refers to the situations when forestry will be enabled, but it fails to refer to avoiding adverse environmental effects including sediment generation or on ONLs or areas with ONC or HNC.</p>                                                                                                                                                                                                                                                                    | Add an additional subclause to Policy 7 which refers to enabling forestry where it does not result in the generation of additional sediment which may enter the CMA and where it will not have an adverse effect on and ONL, ONC or HNC.                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>6.4 Rural Coastal Zone</b>                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 2.D.6.4.P3                                                             | <p><i>Oppose in part</i></p> <p>Policy 3 refers to providing for the continued operation of forestry, including harvesting and replanting in existing forestry areas but requires the evaluation of new forestry proposals in natural character, ONL and SEAs identified on overlay maps. It fails to refer to need to manage existing forestry activities and carefully evaluate new forestry proposals in catchments draining into areas of degraded water quality as identified in the RPS.</p> | <p>Amend Policy 3 so that it refers to:</p> <ul style="list-style-type: none"> <li>• Providing for the continued operation of forestry, including harvesting and replanting in existing forestry areas, only so long as the activities do not result in the generation of sediment which may enter areas of degraded water quality.</li> <li>• Avoiding the location of new forestry proposals in areas identified as ONLs, SEAs and ONCs on overlay maps.</li> <li>• Ensuring that any new forestry proposals will not result in the generation of sediment which may enter areas of degraded water quality.</li> </ul> |
| 2.D.6.4.O4                                                             | <p><i>Support</i></p> <p>Objective 4 states that rural lifestyle subdivision is prevented across the Rural Coastal Zone and this is supported</p>                                                                                                                                                                                                                                                                                                                                                  | Retain Objective 6.4.4                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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| 2.D.6.4.P1(b)                                              | <p><i>Support in part</i></p> <p>Policy 1(b) refers to areas of high amenity values but fails to include specific reference to headlands</p>                                                                                                                                                                                              | Amend Policy 1(b) to include specific reference to headlands as a particular physical and natural feature                                                                                                                                                                                                                                                                                                                                                                                   |
| 2.D.6.4.P5                                                 | <p><i>Support in part</i></p> <p>Policy 5 sets out the circumstances when non-rural production activities should be avoided. This should include the circumstance when they impact significantly on landscape or natural character values.</p>                                                                                            | Amend Policy 5(g) to include specific reference to landscape and natural character values alongside biodiversity and ecological values                                                                                                                                                                                                                                                                                                                                                      |
| 2.D.6.4.P7                                                 | <p><i>Support</i></p> <p>Policy 7 refers to managing the zone as a donor and not recipient areas for transferrable rural development and this is supported</p>                                                                                                                                                                            | Retain Policy 6.4.7                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2.D.6.4.P9(b)                                              | <p><i>Support in part</i></p> <p>Policy 9(b) refers to avoiding locating buildings on the top of ridgelines and should also refer to avoiding locating buildings on headlands because headlands are visually sensitive areas in the coastal environment.</p>                                                                              | Amend Policy 9(b) so that it also refers to avoiding locating buildings on headlands.                                                                                                                                                                                                                                                                                                                                                                                                       |
| 2.D.6.4.1.P1                                               | <p><i>Support</i></p> <p>Policy 1 refers to avoiding beachfront residential and rural lifestyle development in the Pākiri coastal area to retain the undeveloped character of Pākiri beach and this is supported.</p>                                                                                                                     | Retain Policy 6.4.1.1                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 2.D.6.4.2<br>East coast area<br>– Whangateau<br>to Waiwera | <p><i>Oppose in part</i></p> <p>The background material refers to the five major estuaries distributed along this stretch of the coastline but fails to refer to their ecological importance.</p> <p>The policies fail to refer to the need to avoid sediment generation into the five major estuaries within this area of the coast.</p> | <p>Amend the second paragraph of the background section to refer to the ecological importance of the five major estuaries within the East Coast Area including their importance as fish nursery areas and their contribution to the overall productivity of the Hauraki Gulf.</p> <p>Include an additional policy which refers to avoiding activities which could result in the generation of sediment which may enter the Whangateau, Matakana, Mahurangi, Pūhoi or Waiwera estuaries.</p> |
| 2.D.6.4.2.P3                                               | <p><i>Support in part</i></p> <p>Policy 3 refers to avoiding the location of buildings on ridgelines but does not also refer to headlands which are also very visually sensitive.</p>                                                                                                                                                     | Amend Policy 3 to also specifically refer to headlands as a place where dwellings and other significant buildings should be avoided.                                                                                                                                                                                                                                                                                                                                                        |
| 2.D.6.4.7.O1 – O4                                          | <p><i>Support in part</i></p> <p>The four objectives set out for this area are supported particularly maintaining a rural and open space character and avoiding the creation of new settlements or rural lifestyle nodes near Matingarahi.</p>                                                                                            | Retain the Objectives in 6.4.7                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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| 2.D.6.4.7.P3                                     | <p><i>Support in part</i></p> <p>Policy 3 refers to avoiding the location of dwellings and other significant buildings on “prominent” headlands. All headlands are visually sensitive in the coastal environment and should be protected from buildings, not just those which are “prominent”.</p>                                                                                                                                                                                                                                                                                                                                     | Amend Policy 3 by removing the word “prominent”.                                                                                                                                                                                                                                                                                                                       |
| <i>Chapter E Overlay Objectives and Policies</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                        |
| 2.E<br>General                                   | <p><i>Oppose</i></p> <p>No objectives and policies are provided for a number of important overlays</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Include objectives and policies for important natural heritage and natural resources overlays including ONF, ONL, ONC, HNC and SEA.                                                                                                                                                                                                                                    |
| 2.E<br>General                                   | <p><i>Oppose</i></p> <p>The overlays identified and associated objectives and policies do not include an overlay showing areas of degraded water quality as defined and mapped in the RPS. The regional and district plan provisions therefore do not give effect to this section of the RPS.</p>                                                                                                                                                                                                                                                                                                                                      | Include an overlay showing areas of degraded water quality and include appropriate objectives and policies which give effect to the relevant provisions of the RPS.                                                                                                                                                                                                    |
| <i>6.1 Notable Trees</i>                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                        |
| 2.E.6.1.O1                                       | <p><i>Oppose in part</i></p> <p>The objective only provides for retention, but it is important to maintain the quality of scheduled trees and groups of trees.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Notable trees and notable groups of trees are <u>protected, maintained and enhanced</u> <del>retained</del>                                                                                                                                                                                                                                                            |
| 2.E.6.1.P3                                       | <p><i>Oppose in part</i></p> <p>This provision would appear too permissive, particularly when compared with Policy 1. Notable trees are the only trees that enjoy protection within the Plan. It is vital that they are only compromised where absolutely necessary, with it being quite unlikely that appropriate environmental compensation could be provided in most instances.</p>                                                                                                                                                                                                                                                 | <p>That the flexibility for allowing impacts on notable trees and notable groups of trees from inappropriate subdivision, use and development is strictly limited (such as by removal of Policy 3b, 3d, 3e).</p> <p>Amendments are required to include appropriate objectives and policies for ‘second tier’ notable trees, as requested in the RPS section above.</p> |
| <i>7.1 High-use Aquifer Management Areas</i>     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                        |
| 2.E.7.1<br>Description                           | EDS notes that aquifers contribute to the quality <i>and quantity</i> of surface water bodies.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Amend to refer to <i>quantity</i> of surface water bodies.                                                                                                                                                                                                                                                                                                             |
| 2.E.7.1.O1                                       | <p><i>Oppose in part</i></p> <p>This objective seeks ‘to have your cake and eat it too’. As the background states ‘Some aquifers are under threat, by being more than 50 per cent allocated to provide water to users, as well as being major sources of spring and stream growth. They are also adversely affected by over pumping or are in areas of high potential growth’ therefore it will not always be possible to <i>meet existing and future water take demands and provide base flow for surface streams</i>. This objective should seek to manage existing and future water take demands within aquifer recharge rates.</p> | Amend to manage existing and future water take demands within aquifer recharge rates.                                                                                                                                                                                                                                                                                  |
| 2.E.7.1.P1                                       | <i>Oppose in part</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Amend require the take and use of water to                                                                                                                                                                                                                                                                                                                             |

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|                                                       | In order to <i>prevent groundwater allocation exceeding availability</i> takes must be managed <i>within limits</i> . This means rather than <i>having regard to</i> Appendix 5.5, the take and use of water must not exceed those limits.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | be within limits.                                                                                                                                                                 |
| 2.E.7.1.P2                                            | <p><i>Support in part</i></p> <p>EDS supports requiring all take and use of water to be subject to a resource consent process, given the high demand on this resource. It is important that the activity status is <i>prohibited</i> where takes would exceed the limits.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Amend to specify prohibited activity status where takes would exceed limits.                                                                                                      |
| <b>7.2 Quality-sensitive Aquifer Management Areas</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                   |
| 2.E.7.2.O1                                            | <p><i>Oppose</i></p> <p>The objective appears to be an error as it is unrelated to aquifers. An appropriate objective would require the avoidance of the discharge of contaminants which would degrade the quality of these sensitive aquifers.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Amend to provide an objective which requires the avoidance of the discharge of contaminants which would degrade the quality of these sensitive aquifers.                          |
| 2.E.7.2.P1                                            | <p><i>Oppose in part</i></p> <p>Minimising the discharge of contaminants will not necessarily achieve the desired outcome of maintaining the quality of these sensitive aquifers. Amendments are required to achieve the desired outcome.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Amend to avoid the discharge of contaminants which will degrade the quality of the aquifers.                                                                                      |
| 2.E.7.2.P2                                            | <p><i>Oppose in part</i></p> <p>The word 'discourage' is very weak and may not result in any tangible outcomes. Significant adverse effects on the quality of these aquifers should be avoided.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Delete 'discourage' and replace with 'avoid'.                                                                                                                                     |
| 2.E.7.2.P3                                            | <p><i>Oppose in part</i></p> <p>This policy should set out <i>how</i> the quality of the Onehunga aquifer will be maintained. One aspect of this is avoiding chemical spills. A higher standard than 'minimise' would seem appropriate given the municipal use of the water.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Amend to set out <i>how</i> the quality of the Onehunga aquifer will be maintained, including how the risk of chemical spills will be minimised to extremely low.                 |
| <b>7.3 High-use Stream Management Areas</b>           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                   |
| 2.E.7.3.O1                                            | <p><i>Oppose in part</i></p> <p>This objective seeks 'to have your cake and eat it too'. As the background states 'The high use of these streams creates conflicts between the amount of water being abstracted, the amount of water needed to be left in the stream for other uses ... and the amount of water required to maintain ecological values and base flows' therefore it will not always be possible for water to <i>continue to be available</i> while <i>safeguarding the life-supporting capacity and amenity values</i> of these streams. This objective should seek to manage existing and future water take demands within minimum flows and allocation limits which safeguard the life-supporting capacity and amenity values of the streams.</p> | Amend to manage existing and future water take demands within minimum flows and allocation limits which safeguard the life-supporting capacity and amenity values of the streams. |

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| 2.E.7.3.P2                                   | <p><i>Oppose in part</i></p> <p>In recognition of the conflicts, this Policy should require resource consents for proposals to take or use water, as with High Use Aquifer Management Areas - Policy 2. The resource consent applications should then be required to demonstrate matters (a) to (c) and the achievement of minimum flow and allocation limits.</p>             | Amend to require resource consents for proposals to take or use water and require applications to demonstrate matters (a) to (c) and the achievement of minimum flow and allocation limits.                                                  |
| 2.E.7.3.P3                                   | <p><i>Oppose in part</i></p> <p>As above, in recognition of the conflicts, this Policy should require resource consents for discharges (and land uses creating diffuse discharges). The resource consent applications should then be required to demonstrate that they will not diminish the assimilative capacity of the stream.</p>                                          | Amend to require resource consents for discharge proposals and applications to demonstrate that they will not diminish the assimilative capacity of the stream / will achieve the limits.                                                    |
| <b>7.4 Natural Stream Management Areas</b>   |                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                              |
| 2.E.7.4.O1                                   | <p><i>Support in part</i></p> <p>EDS supports the intent of this objective however in our experience 'protected' needs further clarification that the in-stream values of these streams shall not be permitted to deteriorate.</p>                                                                                                                                             | Amend to require that in stream values shall not deteriorate.                                                                                                                                                                                |
| 2.E.7.4.P1                                   | <p><i>Oppose in part</i></p> <p>EDS is concerned that riparian vegetation is used as the sole determinant for NSMAs. Although it is less likely, stream with less riparian vegetation cover may nevertheless have high water quality and/or high ecological values. Additional parameters should be provided to identify other NSMAs and include these within the overlay.</p> | <p>Amend to provide criteria for identification of NSMAs based on high water quality / high ecological values.</p> <p>Carry out identification of NSMAs based on these additional criteria and add additional areas to the NSMA overlay.</p> |
| 2.E.7.4.P2                                   | <p><i>Oppose in part</i></p> <p>This policy provides little guidance for decision makers. It should require the setting of freshwater limits which maintain the <i>high</i> values of these streams. Water takes and contaminant discharges should be managed within these limits.</p>                                                                                         | Amend to require freshwater limits to be set which maintain the high values of these streams and management of takes / discharges within those limits.                                                                                       |
| 2.E.7.4.P3                                   | Support.                                                                                                                                                                                                                                                                                                                                                                       | Retain.                                                                                                                                                                                                                                      |
| 2.E.7.4.P4                                   | <p><i>Support in part</i></p> <p>The clear direction provided by this policy is generally supported, however an exception may be provided for <i>existing</i> stock crossings to be replaced with a bridge or culvert.</p>                                                                                                                                                     | Amend to provide an exception for <i>existing</i> stock crossings to be replaced with a bridge or culvert.                                                                                                                                   |
| <b>7.5 Stormwater Management Area – Flow</b> |                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                              |
| 2.E.7.5.O1                                   | <p><i>Support in part</i></p> <p>This objective should set a more specific and measureable</p>                                                                                                                                                                                                                                                                                 | Amend to provide for an <i>overall reduction</i> in the adverse effects of stormwater runoff.                                                                                                                                                |

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|                                          | goal of an <i>overall reduction</i> in the adverse effects of stormwater runoff.                                                                                                                                                                                             |                                                                                                                                                                                     |
| 2.E.7.5.P1                               | <p><i>Support in part</i></p> <p>This Policy is supported although it adds little to Objective 1, its main role appears to be identifying SMAF 1 and 2 as the Stormwater Management Areas – Flow.</p>                                                                        | Clarify.                                                                                                                                                                            |
| 2.E.7.5.P2                               | <p><i>Support in part</i></p> <p>This Policy is supported but should identify the extent of mitigation required e.g. to reduce adverse effects of stormwater runoff at the site compared to the current baseline.</p>                                                        | Identify that mitigation must reduce adverse effects of stormwater runoff from the site compared to the current baseline.                                                           |
| <b>7.6 Natural Lake Management Areas</b> |                                                                                                                                                                                                                                                                              |                                                                                                                                                                                     |
| 2.E.7.6.O1                               | <p><i>Support in part</i></p> <p>This objective is generally supported, however it should specify maintenance where water quality is currently high and enhancement where water quality is not currently high.</p>                                                           | Amend to specify maintenance where water quality is currently high and enhancement where water quality is not currently high.                                                       |
| 2.E.7.6.O2                               | <p><i>Support in part</i></p> <p>This objective is generally supported, however it should specify maintenance where natural character and ecological values are currently high and enhancement where natural character and ecological values are not currently high.</p>     | Amend to specify maintenance where natural character and ecological values are currently high and enhancement where natural character and ecological values are not currently high. |
| 2.E.7.6.O3                               | <p><i>Support</i></p> <p>This objective is generally supported as it clearly identifies priority of values (natural character/ecological &gt; recreational).</p>                                                                                                             | Retain.                                                                                                                                                                             |
| 2.E.7.6.P1                               | <p><i>Support in part</i></p> <p>Avoidance of diffuse discharges of contaminants into NLMAs seems an unachievable goal. An alternative would be to set limits for diffuse discharges into NLMAs at a level which is able to assimilated without causing adverse effects.</p> | Amend to require that diffuse discharges are within limits.                                                                                                                         |
| 2.E.7.6.P2                               | <p><i>Support in part</i></p> <p>EDS supports the clear direction to avoid new proposals to take water from natural lakes. Clearer direction should be provided that existing water allocation will be restricted to a level that avoids adverse effects on NLMAs.</p>       | Amend to provide that existing water allocation will be restricted to a level that avoids adverse effects on NLMAs.                                                                 |
| 2.E.7.6.P3                               | This policy is supported.                                                                                                                                                                                                                                                    | Retain.                                                                                                                                                                             |
| 2.E.7.6.P4                               | This policy is supported.                                                                                                                                                                                                                                                    | Retain.                                                                                                                                                                             |

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| 2.E.7.6.P5                             | This policy is supported.                                                                                                                                                                                                                        | Retain.                                                                                                                                                                                                                                |
| 2.E.7.6.P6                             | <i>Support in part</i><br><br>This policy is supported. It should also provide for the removal of existing invasive pest species.                                                                                                                | Amend to provide for the removal of existing invasive pest species.                                                                                                                                                                    |
| <b>7.7 Urban Lake Management Areas</b> |                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                        |
| 2.E.7.7.O1                             | This objective is supported.                                                                                                                                                                                                                     | Retain.                                                                                                                                                                                                                                |
| 2.E.7.7.O2                             | <i>Support in part</i><br><br>This objective is generally supported, although the description indicates that the focus should be <i>enhancement</i> given the current water quality state.                                                       | Amend to provide for a focus on enhancement.                                                                                                                                                                                           |
| 2.E.7.7.O3                             | <i>Support in part</i><br><br>It is not clear what qualities of the <i>margins of lakes</i> are to be maintained or enhanced. The policies suggest this is aimed at modification of the margins. The objective should specify this.              | Amend to specify what qualities of the margins of lakes are to be maintained or enhanced.                                                                                                                                              |
| 2.E.7.7<br>New objective               | Quantity is not identified in any of the objectives. The description notes that supply to the lakes is predominantly groundwater.                                                                                                                | Add a provision addressing quantity as set out in reasons.                                                                                                                                                                             |
| 2.E.7.7.P1                             | Support                                                                                                                                                                                                                                          | Retain.                                                                                                                                                                                                                                |
| 2.E.7.7.P2                             | Support                                                                                                                                                                                                                                          | Retain.                                                                                                                                                                                                                                |
| 2.E.7.7.P3                             | <i>Oppose in part</i><br><br>Greater direction is required as to how discharges are to be minimised and to what extent. The extent of reduction will need to be informed by an analysis of current water quality compared to good water quality. | Amend to provide how discharges are to be minimised and to what extent. Lake Pupuke – include controls on stormwater runoff, wastewater overflows, and fertiliser use. Western Springs – include control of the water fowl population. |
| 2.E.7.7.P4                             | Support                                                                                                                                                                                                                                          | Retain.                                                                                                                                                                                                                                |
| 2.E.7.7.P5                             | <i>Support in part</i><br><br>This policy is generally supported, however more directive language should be used that ‘support initiatives’. This should be required for new and re-developed and promoted for existing development.             | Amend to <i>require</i> for new and re-developed and <i>promote</i> for existing development.                                                                                                                                          |
| 2.E.7.7.P6                             | <i>Support in part</i><br><br>This policy is generally supported, however disturbance from structure and vegetation clearance should be avoided for <i>all purposes</i> .                                                                        | Amend to require avoidance of disturbance from structure and vegetation clearance for <i>all purposes</i> .                                                                                                                            |

| 7.8 Water Supply Management Areas |                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                      |
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| 2.E.7.8.O1                        | <p><i>Support</i></p> <p>This aligns with the purpose of WSMAs.</p>                                                                                                                                                                                                                                                           | Retain.                                                                                                                                                                                                                              |
| 2.E.7.8.O2                        | <p><i>Oppose in part</i></p> <p>This objective does not clearly indicate whether municipal water supply values or natural, recreation or amenity values will be preferred where there is conflict.</p>                                                                                                                        | Amend to indicate which values will be preferred in the event of conflict. Where an area is WSMA only municipal water supply values would be preferred. Where an area is WSMA and e.g. NSMA both sets of values should be protected. |
| 2.E.7.8.P1                        | <p><i>Support</i></p> <p>This aligns with prioritising municipal water supply values in WSMAs.</p>                                                                                                                                                                                                                            | Retain.                                                                                                                                                                                                                              |
| 2.E.7.8.P2                        | <p><i>Support in part</i></p> <p>Given the values of NSMAs and WMAs this policy should require that methods to avoid, remedy and mitigate adverse effects result in no net loss of values.</p>                                                                                                                                | Amend to require no net loss of values of NSMAs and WMAs.                                                                                                                                                                            |
| 7.9 Wetland Management Areas      |                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                      |
| 2.E.7.9.O1                        | <p><i>Support in part</i></p> <p>EDS supports the direction to maintain or enhance the natural character and ecological values of WMAs. EDS also supports in particular the reference to spatial extent but requests that this is further emphasised through a direction to avoid any decrease in spatial extent of WMAs.</p> | <p>Retain direction to maintain or enhance the natural character and ecological values of WMAs.</p> <p>Emphasise reference to spatial extent through a direction to avoid any decrease in spatial extent of WMAs.</p>                |
| 2.E.7.9.O2                        | <p><i>Oppose in part</i></p> <p>EDS supports provision for cultural, recreation and amenity values of WMAs however this objective should clearly state that natural character and ecological values have priority over these matters in the event of conflict.</p>                                                            | Amend to specify that natural character and ecological values have priority in the event of conflict.                                                                                                                                |
| 2.E.7.9.P1                        | <p><i>Support</i></p> <p>EDS supports the clear directions provided in this policy. EDS requests that additional measures that provide for the 'enhance' portion of the chapeau are included e.g. providing for enhancement measures such as enhancement planting and pest removal.</p>                                       | <p>Retain.</p> <p>Add additional measures providing for enhancement e.g. providing for enhancement planting and pest removal.</p>                                                                                                    |
| 2.E.7.9.P2                        | <p><i>Support</i></p> <p>EDS supports this policy as it is important that ecosystem functions of WMAs do not degrade the natural character and ecological values of WMAs. EDS suggests that adverse effects should only be allowed where they are minor and temporary (e.g. recovery occurs after flooding ceases).</p>       | Retain but amend to provide for minor <i>and temporary</i> adverse effects.                                                                                                                                                          |

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| 2.E.7.9.P3                              | <p><i>Support in part</i></p> <p>EDS supports (a).</p> <p>Paragraph (b) should require that public access and interpretative activities avoid significant adverse effects.</p> <p>Paragraph (c) - <i>new</i> significant infrastructure should not be provided for in WMAs. Upgrading or replacement of existing infrastructure should only be allowed where the effects on WMAs are minor and temporary.</p>                                                                                                                                                                                                                                                | <p>Retain (a).</p> <p>Paragraph (b) - specify that these activities must avoid significant adverse effects.</p> <p>Paragraph (c) – delete reference to new significant infrastructure and require activities relating to existing significant infrastructure to be avoided unless the effects are minor and temporary.</p> |
| <i>Precinct Objectives and Policies</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                            |
| <i>Waitematā Navigation Channel</i>     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                            |
| 2.F.1.11<br>Description                 | <p><i>Oppose in part</i></p> <p>The description of the precinct indicates that maintenance dredging is a restricted discretionary activity in the inner harbour as this area contains higher levels of contaminants and that it is permitted in the outer harbour because of a lower contaminant load. However this fails to recognise that there is a higher wave environment in the outer harbour, and therefore more likelihood of sediment dispersal during the dredging operation. It is therefore important that the dredging is undertaken within tight conditions and scrutiny. It should therefore also be a restricted discretionary activity.</p> | <p>Amend the description to refer to maintenance dredging being a restricted discretionary activity in the outer harbour.</p> <p>Make consequential amendments to the rules.</p>                                                                                                                                           |
| 2.F.1.11.P3                             | <p><i>Oppose in part</i></p> <p>Policy 3 refers to managing the potential adverse effects from contaminated sediments, but does not also address the potential adverse effects of sediment dispersal during dredging operations which can have a significant adverse effect on marine biota.</p>                                                                                                                                                                                                                                                                                                                                                             | <p>Amend Policy 3 to also refer to managing the potential adverse effects of sediment dispersal on marine biota.</p>                                                                                                                                                                                                       |

## 12. REGIONAL AND DISTRICT RULES

| Section                                        | Submission                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Relief Sought                                                                                                                                                                                   |
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| <i>Auckland-wide Rules</i>                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                 |
| <i>Trees in streets and public open spaces</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                 |
| 3.H.3.1.1<br>Activity Table                    | <p><i>Oppose</i></p> <p>The removal of pest plants from public open space has previously been a permitted activity, carried out extensively and ably by a wide number of voluntary groups across the Auckland Region. There would not appear to be a definition of a Council's 'agent' within the current permitted scope, and 'agent' presumably does not apply to voluntary groups, which renders plant pest control in reserves a discretionary activity. This rule is poorly thought through; potentially meaning high level consents are required for positive conservation activities of weed control. Invasive species are key ecological pressures on indigenous biodiversity and any obstruction to pest plant control should be limited.</p> | <p>That the removal of pest plants (those listed in RPMS, NPPA and DOC weed lists) from public open space be a permitted activity for all parties if it is for the purpose of conservation.</p> |

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| <p>3.H.3.1.1<br/>Activity Table</p> | <p><i>Oppose</i></p> <p>Network utility operators must manage a network effectively, and from time to time this requires that otherwise protected vegetation needs to be modified or removed. However, the economic drivers at play mean that network utility operators are unlikely to exercise the same judgement as a regulatory authority in determining when such actions are appropriate.</p> <p>The activity status (particularly of works on trees – even within an approved Corridor Access Request) should be strengthened. If freedom is necessary, then the global consent pathway or designation pathway may be used elsewhere in the Act. There are no statutory methodological guidelines available to control the quality of work to the trees, so such provisions are likely to result in damage and degradation over time of the urban tree resource.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <p>That the provisions in the Unitary Plan do not provide for other than minor alteration of vegetation for Network Utility Operators as a permitted activity All other trimming / alterations / removal is a discretionary activity.</p> |
| <p><i>Earthworks</i></p>            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                           |
| <p>3.H.4.2.1</p>                    | <p><i>Oppose</i></p> <p>The RPS identifies sediment as a key contributor to degradation of water quality (Chapter B, 1.5). A key objective in relation to earthworks is minimisation of sediment generation. Policies to achieve this include managing adverse effects on natural overlay areas, managing earthworks including use of best sediment and erosion control practices to retain sediment on land and reduce the amount of sediment discharge, and requiring proposals to discharge sediment laden water to demonstrate MCI will be maintained and significant adverse effects on sensitive receiving environments will be avoided (Chapter C, 5.2.3).</p> <p>Despite the identification of sediment as a key issue and the setting of objectives and policies to address this, the earthworks rules are highly permissive. For example, cultivation and farm tracks are generally permitted in rural zones (except rural conservation) despite sediment being identified a key contributor to degradation of water quality in rural areas. In general only earthworks above 1001m<sup>2</sup> or 1001m<sup>3</sup> require resource consent despite Policy 5.2.2(b) regarding limiting the amount of land being disturbed at any one type.</p> <p>Although the permitted activity controls include the use of best practice erosion and sediment control measures it is well recognised that permitted activity controls have little practical impact on environmental outcomes. People are generally unaware of the requirements and councils generally fail to take enforcement measures even where there is a clear breach of permitted activity controls.</p> <p>As sediment is identified as a regionally significant issue and as permitted activity controls are highly ineffective,</p> | <p>Use controlled activity status, rather than permitted activity status.</p>                                                                                                                                                             |

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|           | EDS requests greater use of controlled activity status. While we acknowledge the burden of the resource consent process, measures can be taken to reduce this, for example provision of standard forms, provision of Auckland Council Technical Publication, and rapid consenting timeframe. This also needs to be an engaging process, not a box ticking exercise, to ensure on the ground action. It should therefore require an appropriate professional certifying that required measures are put in place on the ground.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                 |
| 3.H.4.2.1 | <i>Oppose</i><br>In addition, sedimentation is a key issue in respect of mangrove expansion and needs to be addressed in an integrated manner in catchments which feed areas where mangroves are expanding.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Provide for integrated management of sedimentation in catchments which feed areas where mangroves are expanding.                                                                                                                                                                                                                |
| 3.H.4.2.1 | <i>Oppose</i><br>The rules are too permissive in terms of activities within SEAs and are not appropriate for areas of significant vegetation and habitat. 'Maintenance earthworks' for example, is a permitted activity for farm tracks, forestry and for network utilities; network utilities can also undertake up to 2500m2 of 'general earthworks' as of right. Such activities could represent significant disturbance within an SEA. Permitted activity standards are not appropriate for dealing with adverse effects in areas with significant values. Consent should be required for earthworks in these areas, in order to ensure that the values are protected. Greater use should be made of non-complying status in SEAs, to signal that disturbance is not appropriate in these areas.<br><br>The rules, controls and assessment criteria do not recognise the potential adverse effects on SEAs of earthworks in areas outside of, but adjacent to SEAs. Provision should also be made for general setbacks and controls on earthworks adjacent to other sensitive areas (e.g. WMAs).<br><br>The earthworks assessment criteria do not provide for a consideration of whether the site contains values that meet the criteria for SEAs (i.e. sites that have SEA values but have not yet been identified as such in the Plan). | Make rules applying within SEAs more restrictive in order to protect the values of those areas.<br><br>Amend the rules, controls and criteria to avoid adverse effects in SEAs of earthworks in areas adjacent to SEAs.<br><br>Amend the assessment criteria to provide for the application of the SEA criteria as appropriate. |
| 3.H.4.2.1 | <i>Oppose</i><br>Policy 5.2.2(b) specifically addresses areas where soil type, topography and location is likely to result in increased sediment runoff or discharge. This requires high risk erosion areas to be identified and subject to more stringent regulation.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Identify high risk erosion areas and include specific controls for these areas.                                                                                                                                                                                                                                                 |
| 3.H.4.2.1 | <i>Oppose</i><br>Policy 5.2.5 relates to regulating discharges of sediment laden water to ensure consistency with water quality                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Ensure sediment controls are linked to water quality limits and areas of degraded water quality.                                                                                                                                                                                                                                |

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|                                                                            | MCI limits. This has not been addressed and is necessary to assist with achieving the freshwater limits.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 3.H.4.2.1.2                                                                | <p><i>Oppose</i></p> <p>There are rules relating specifically to natural overlay areas. The overlays are identified by acronym and few have attached definitions, thus it is not clear which overlays they relate to. Additional overlays may require inclusion. EDS supports more stringent regulation in areas identified as high value / sensitive.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | More stringent controls in areas identified as high value / high risk.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 3.H.4.2.1.1<br>General controls                                            | <p><i>Oppose</i></p> <p>EDS considers the permitted activity controls are too detailed and complex to be achieved in a permitted activity framework. As above, EDS seeks greater use of controlled activity status.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Use controlled activity status, rather than permitted activity status.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 3.H.4.2.2.2<br>Cultivation                                                 | EDS supports the requirement for retention of a vegetated riparian strip. However, the figures in Table 1 do not adequately provide for sediment and erosion protection.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Increase the required width of the required vegetated riparian strip to 10m and 20m or as necessary to provide a high level of protection from sediment run off.                                                                                                                                                                                                                                                                                                                                                                                              |
| 3.H.4.2.2.3<br>Earthworks for commercial forestry                          | <p>EDS supports the requirements for retention of a vegetated riparian strip and an erosion and sediment control plan. However, the controls do not to provide for a setback from Wetland Management Areas. Further, 5m is unlikely to be sufficient in all cases, particularly where the edges of the overlay contain sensitive values. A much greater setback distance should be required. As above, these controls are too detailed and complex to be achieved in a permitted activity framework. Controlled activity status would be more appropriate.</p> <p>Tracking, roading and all other earthworks required for forestry is provided for as a permitted activity. This fails to adequately address the adverse effects which can occur as a result of these activities, especially sediment generation. In particular such activities should not be permitted when undertaken in catchments draining into areas of degraded water quality.</p> | <p>Provide for greater setbacks from sensitive areas (both for commercial forestry earthworks and more generally).</p> <p>Provide for Wetland Management Areas in setbacks for Earthworks for commercial forestry.</p> <p>Tracking, roading and all other earthworks required for forestry should be a restricted discretionary activity within catchments draining into areas of degraded water quality to ensure that an adequate erosion and sediment control plan is prepared and adhered to.</p>                                                         |
| 3.H.4.2.3.1<br>Restricted discretionary activities – Matters of discretion | <p>EDS supports the clear identification of all relevant matters of discretion. Additional matters are required e.g. the 'sensitivity of the environment' and 'information and monitoring' and potential impacts of sediment on the CMA.</p> <p>Paragraph 2 includes additional assessment criteria for earthworks within overlay areas. These criteria also need to apply when the earthworks are undertaken in a catchment which drains into a SEA Marine, in order to ensure that the values of the marine SEAs are also protected. Subsection (c) needs to be consequentially amended to also refer to impacts on the CMA.</p>                                                                                                                                                                                                                                                                                                                       | <p>Amend paragraph 1 to include additional subclauses which include:</p> <ul style="list-style-type: none"> <li>• The sensitivity of the environment</li> <li>• Information and monitoring</li> </ul> <p>Amend Paragraph 2 to include additional subclauses which include:</p> <ul style="list-style-type: none"> <li>• Whether the activity will result in increased discharges of sediment into areas of degraded water quality</li> <li>• Cumulative impacts of sedimentation within the CMA</li> </ul> <p>Potential impacts on threatened and at risk</p> |

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|                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <p>marine species and significant habitats within the CMA Amend Paragraph 3 to include additional subclauses which include:</p> <ul style="list-style-type: none"> <li>Measures to ensure that there is no increased discharge of sediment into areas of degraded water quality</li> <li>Measures to avoid cumulative impacts of sedimentation within the CMA</li> <li>Measures to avoid adverse effects of sedimentation on threatened and at risk marine species and significant habitats within the CMA</li> </ul> |
| 3.H.4.2.3.2<br>Assessment Criteria | These criteria also need to apply when the earthworks are undertaken in a catchment which drains into a SEA Marine, in order to ensure that the values of the marine SEAs are also protected.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Amend Paragraph 2 so that its provisions apply to earthworks undertaken in a catchment which drains into a SEA Marine. In addition amend subsection (c) so that it also refers to cumulative effects of sediment within the CMA.                                                                                                                                                                                                                                                                                      |
| <i>Vegetation Management</i>       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 3.H.4.3.1.1<br><i>Rural</i>        | <p><i>Oppose in part</i></p> <p>EDS supports restricting removal of more than 250m<sup>2</sup> of native vegetation cumulative on a site over a 10 year period.</p> <p>It is not clear where all or one of the paragraphs in the rule need to be fulfilled for it to be triggered. EDS requests that restrictions apply to all native vegetation in all rural zones regardless of the continuity.</p> <p>EDS requests that removal of any native vegetation on land with an average slope exceeding 15 degrees is allocated a higher activity status (discretionary).</p>                                                                                                                                                                                                                                                           | <p>Retain restricted discretionary activity status for removal of more than 250m<sup>2</sup> of native vegetation on a site over a 10 year period.</p> <p>Add 'or' after items (a) and (b).</p> <p>Amend the second rule to provide a higher activity status for removal of native vegetation on land with an average slope exceeding 15 degrees.</p>                                                                                                                                                                 |
| 3.H.4.3.1.1<br><i>Riparian</i>     | <p><i>Support in part</i></p> <p>EDS generally supports the activity status outlined in the Table, but questions the rationale behind the setbacks for vegetation alteration or removal in the various areas (e.g. urban lake management areas). It is not clear why the distances were chosen. For example, while the urban setbacks are likely to help manage impacts on urban streams, 10m setbacks are very small for rural production areas (those most likely to have harmful diffuse pollution issues that riparian margins can help ameliorate). Another example is the wetland setbacks – it is not clear that 20m will be sufficient in all cases.</p> <p>Provision should also be made for controls on vegetation alteration or removal adjacent to SEAs, given the adverse effects that can result from disturbance</p> | <p>That setbacks of a minimum of 20 metres apply in Rural Production and Mixed Rural zones.</p> <p>Add riparian controls for areas adjacent to SEAs.</p> <p>Increase setbacks generally to ensure that setbacks address all potential adverse effects on sensitive/high value areas.</p>                                                                                                                                                                                                                              |

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|                                                           | near the edges of such areas.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 3.H.4.3.1.1<br><i>Coastal</i>                             | <i>Oppose</i><br><br>EDS is deeply concerned about the weak protection for coastal trees and vegetation. The filter of tree height and 25m <sup>2</sup> extent to be altered or removed, coupled with the narrow setbacks means the prized coastal edge of Auckland is likely to be severely compromised over time.                                                                                                                                                                                                                                                                                                                                                                                                            | That the coastal protection yard for restrictions on vegetation alteration or removal is extended to 100m in all zones and applies to the removal of any tree(s) or vegetation (regardless of height or extent).                                                                                                                                                                                                                                                                                                                                               |
| 3.H.4.3.1.1<br><i>Permitted and controlled activities</i> | <i>Oppose</i><br><br>EDS does not approve of permitted activity status being granted to the alteration or removal of vegetation by a network utility operator, particularly given the reliance upon non-statutory best practice guidelines (in practice). The activities must be subject to consent, and the guidelines must be included as a regulatory appendix to the plan.                                                                                                                                                                                                                                                                                                                                                 | That the work of network utility operators require resource consent (restricted discretionary) and be subject to regulatory best practice methods.                                                                                                                                                                                                                                                                                                                                                                                                             |
| 3.H.4.3.1.1<br><i>Network Utilities</i>                   | <i>Oppose</i><br><br>EDS does not support permitted activity status being granted to the alteration or removal of vegetation by a network utility operator for minor upgrading - as defined minor relates to the extent of upgrading not the significance of adverse effects. Therefore this should be subject to a consenting process.                                                                                                                                                                                                                                                                                                                                                                                        | Amend to provide discretionary activity status for minor infrastructure upgrading.                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 3.H.4.3.3<br>3.H.4.3.4<br><i>Assessment Criteria</i>      | <i>Oppose</i><br><br>The vegetation management assessment criteria do not provide for a consideration of whether the site contains values that meet the criteria for SEAs (i.e. sites that have SEA values but have not yet been identified as such in the Plan).                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Amend the assessment criteria to provide for the application of the SEA criteria as appropriate.                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 3.H.4.3.3<br>3.H.4.3.4<br><i>Assessment Criteria</i>      | <i>Oppose</i><br><br>The vegetation management assessment criteria do not provide for a consideration of whether the removal of the vegetation will have adverse erosion / sedimentation effects.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Amend the assessment criteria to provide for the consideration of adverse erosion / sedimentation effects.                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 3.H.4.3.1.2                                               | <i>Support in part</i><br><br>EDS generally supports the activity table for vegetation management in overlays with the following exceptions.<br><br>There is no maximum threshold for controlled activity removal for the purposes of building construction in an SEA articulated in the table. A numerical threshold should be applied, and the presumption should be that buildings are located outside the SEA unless absolutely necessary.<br><br>As above, EDS does not approve of permitted activity status being granted to the alteration or removal of vegetation by a network utility operator, particularly in these high value areas (SEA, ONF, HNC, ONC, ONL). Controlled activity status would be appropriate to | Introduce into the table a maximum vegetation extent able to be altered or removed under Controlled Activity Status (e.g. 300m <sup>2</sup> )<br><br>Network utilities – amend to controlled activity status for repair and maintenance and discretionary activity status for minor upgrading.<br><br>Include maximum extents for vegetation alteration and removal for existing farming and forestry activities (25m <sup>2</sup> per annum or less) so that SEA values are not lost or adversely affected via the operation of the permitted activity rules. |

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|                                    | <p>ensure repair or maintenance of existing utilities is carried out in a manner that does not damage the values of the area. Minor upgrading as defined – minor relates to the extent of upgrading not the significance of adverse effects therefore this should be subject to a consenting process that provides for consent to be declined.</p> <p>There needs to be controls on vegetation alteration and removal for existing forestry and farming activities, as these activities could result in adverse effects on an SEA, without any oversight from Council.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <i>Rural production discharges</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 3.H.4.10                           | <p><i>Oppose</i></p> <p>The RPS identifies <i>nutrients from livestock wastewater systems, pasture and fertiliser application</i> in rural areas as a key resource management issue for water quality. The key objective is to manage discharges to protect land and water resources. As submitted above, this must mean maintaining good quality areas and enhancing poorer quality areas to give effect to the NPSFM objective of safeguarding life-supporting capacity of freshwater. The key policy is to avoid more than minor adverse effects of discharges on water bodies. As submitted above, in poor quality areas any additional adverse effect will be more than minor.</p> <p>Despite the identification of nutrients as a key issue and the setting of objectives and policies to address this, the rural production discharge rules are highly permissive. All listed activities (except for discharge of dairy effluence to water) are permitted subject to permitted activity controls. As above, it is well recognised that permitted activity controls have little practical impact on environmental outcomes. People are generally unaware of the requirements and councils generally fail to monitor and enforce the requirements. Detailed and complex control are inappropriate for a permitted activity framework e.g. application rate of nitrogen must not exceed reasonable nitrogen requirements of the crop being grown and requirement to use Overseer to plan and carry out the effluent discharges to land.</p> <p>The RPS states that <i>Point source discharges are the easiest source of nutrients to control ... However, diffuse runoff from rural land contributes significantly to ... nutrient loads ... generally requiring a change in farming and land use practices.</i> Despite the identification of diffuse run off as a <i>significant contributor</i> to a key resource management issue there are no controls addressing diffuse rural production discharges. This is a significant hole in the Unitary Plan which must be addressed if the water quality objectives are to be achieved.</p> <p>EDS submits that allowing these discharges means that</p> | <p>Controlled activity status for farming systems with a farm environment plan in areas where limits are met.</p> <p>Restricted discretionary activity status for farming systems with a farm environment plan in areas where limits are not met.</p> <p>Discretionary activity status for farming systems without a farm environment plan.</p> <p>Specify requirements for farm environment plan matters to address.</p> |

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|                                               | <p>the Unitary Plan does not comply with s 70 of the RMA.</p> <p>EDS submits that a farm environment plan is an effective mechanism for evaluating and managing the wide range of rural production discharges. Controlled activity status at a minimum is required for oversight of the farm management plan, including a requirement for auditing.</p> <p>In areas where water quality is below the MCI limits prescribed, restricted discretionary activity status is required.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <i>Natural Hazards</i>                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 3.H.4.11                                      | <p><i>Oppose in part</i></p> <p>The provisions provide for new dwellings and habitable floors of non-dwellings on land subject to coastal inundation and sea level rise as a permitted activity, so long as the floor level is of a certain height. Providing for building in such risky locations as a permitted activity is not appropriate as it does not allow the council to have sufficient control to avoid adverse effects. It also does not give effect to Policy 3(f) of the RPS which refers to avoiding urban development within greenfield land or future urban land affected by coastal inundation and projected sea level rise. It is also inconsistent with Policy 25 NZCPS.</p> <p>No new dwellings or habitable floors should be a permitted activity within a hazard zone. In addition, the criteria for any new urban development in coastal areas should include a legally binding requirement that no hard protection works will be constructed to protect the property in the future.</p> <p>The matters for discretion fail to include impacts on natural character or on marine biota. Some of the most significant impacts of building in areas subject to coastal inundation is a reduction in natural character and reduction in the size and health of the intertidal zone, with the inshore movement of biota with rising sea levels being impeded. The assessment criteria need to be amended to reflect these additions.</p> <p>Include an additional requirement that any residual adverse effects of hard engineering works which cannot be avoided, mitigated or remedied will be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment.</p> | <p>Amend the activity table so that new dwellings and habitable floors of non-dwellings on land subject to coastal inundation and sea level rise are a non-complying activity.</p> <p>Include as a requirement for any authorised new dwellings and habitable rooms in coastal areas that there is a legally binding requirement that no new hard protection works or additions to existing hard protection works will be constructed to protect the property anytime in the future.</p> <p>Include as matters for discretion the impacts on natural character, sediment transport, healthy functioning of dunes, discharge of sediment and contaminants, the healthy functioning of the intertidal zone and marine biota and public access.</p> <p>Expand the assessment criteria to ensure that it includes the full range of adverse effects which can be caused by developing in coastal hazard zones such as reduction in natural character, changes in sediment movement, reduction in the size and health of the intertidal zone, impeding the inshore movement of biota with rising sea levels, greater discharges of sediment and contaminants into the CMA with loss of riparian buffers and loss of public access.</p> <p>Require that any residual adverse effects which cannot be avoided, mitigated or remedied will be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment.</p> |
| Lakes, rivers, streams and wetland management |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 3.H.4.13<br>Planting                          | Support                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Retain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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| 3.H.4.13<br>Depositing any substance                       | Support                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Retain.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 3.H.4.13<br>Disturbance                                    | <p><i>Support in part</i></p> <p>Permitted activity status for channel clearance in the identified overlays is not supported. The rules as proposed do not make sense as Channel Clearance in high value overlays is permitted, compared to non-complying in other locations. EDS seeks that channel clearance is prohibited in NSMAs, NLMAs, ULMAs, SEAs and WMAs.</p> <p>Oppose permitted activity status for mangrove removal outside identified overlays. Permitted activity controls are inappropriate as, for example, removal should not be done in areas where mangroves are serving to mitigate erosion, but ascertaining this is too complex for members of the general public.</p> <p>Emergency works must be defined.</p> | <p>Prohibit channel clearance in high value areas.</p> <p>Amend activity status for mangrove removal from permitted to restricted discretionary.</p> <p>Define emergency works in accordance with the RMA.</p>                                                                                                                                                                                                                                                                                                                |
| 3.H.4.13<br>Diversion of a river or stream to a new course | <p><i>Oppose</i></p> <p>Discretionary / non-complying activity status is inconsistent with objective to avoid permanent loss of waterbodies. Prohibited status is appropriate.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Amend to prohibited activity status.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 3.H.4.13<br>Existing structures                            | <p><i>Support in part</i></p> <p>Permitted activity status for replacement or extension of existing structures outside identified overlays is opposed. Consent should be required, recognising the continuation / new adverse effects that will result.</p> <p>Controlled activity status for demolition / removal of a dam or weir is appropriate to ensure impounded sediment is removed effectively.</p>                                                                                                                                                                                                                                                                                                                           | <p>Amend activity status for replacement or extension of existing structures to restricted discretionary.</p> <p>Amend activity status for demolition or removal of existing structures to controlled.</p>                                                                                                                                                                                                                                                                                                                    |
| 3.H.4.13<br>New structures                                 | <p><i>Support in part</i></p> <p>Bridges/culverts for existing stock crossings for water quality improvement purposes could have a lesser activity status in identified overlays.</p> <p>EDS opposes permitted activity status for 'Structures solely under the bed including drilling and tunnelling' and 'Weir' in the overlay areas. Consent should be required for these activities.</p> <p>There needs to be limitations on the permitted activity status 'Cables, ducts, lines or pipelines on existing structures', or alternatively controlled status should be required.</p>                                                                                                                                                 | <p>Lower (restricted discretionary) activity status for bridges / culverts for existing stock crossings for water quality improvement purposes.</p> <p>Amend activity status for 'Structures solely under the bed including drilling and tunnelling' and 'Weir' in the overlay areas to controlled.</p> <p>Provide controls for 'Cables, ducts, lines or pipelines on existing structures' that ensure that there will be no associated bed disturbance (except temporary) or deposition or amend to controlled activity.</p> |
| 3.H.4.13<br>Reclamation and drainage                       | <p><i>Oppose in part</i></p> <p>Non-complying activity status for extension and new reclamation or drainage is inconsistent with objective to avoid permanent loss of waterbodies, prohibited</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Amend activity status of extension of and existing or new reclamation or drainage to prohibited.                                                                                                                                                                                                                                                                                                                                                                                                                              |

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|                                      | activity status is appropriate.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                               |
| 3.H.4.13<br>Livestock access         | <p><i>Support in part</i></p> <p>EDS supports the requirement for livestock exclusion within 5 years excluding intermittent streams and within 10 years for the full extent.</p> <p>The definition of intensively grazed production land must refer to the instantaneous stocking rate.</p> <p>Rules should provide for phase in of livestock exclusion in lower intensity production land by a date 15 years post-notification of the Unitary Plan.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <p>Retain.</p> <p>Amend definition to refer to instantaneous stocking rate.</p> <p>Provide for phase in of additional livestock exclusion for all production land over 15 year period.</p>                                    |
| <b>Stormwater management</b>         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                               |
| 3.H.4.14                             | <p>The RPS identifies stormwater management as a key resource management issue. However, the stormwater management rules are clearly inadequate to achieve the desired outcomes. In particular:</p> <ul style="list-style-type: none"> <li>- Rules relating to impervious areas do not apply unless the area is very large. The thresholds in SMAF 1 and 2 are lower but still very high considering the identified risk.</li> <li>- Activity statuses for activities do not reflect the priority given to stormwater management <ul style="list-style-type: none"> <li>- flow as a resource management issue e.g. controlled activity status has been provided for new impervious areas directing stormwater to the combined sewer network.</li> </ul> </li> <li>- Rules relating to quality do not cover all contaminants required, including sedimentation.</li> <li>- Activity statuses for activities do not reflect the priority given to stormwater management <ul style="list-style-type: none"> <li>- quality as a resource management issue e.g. permitted installation of high contaminant yielding roofing, spouting, cladding or architectural features subject to area thresholds.</li> </ul> </li> <li>- The controls / assessment criteria do not adequately address reducing stormwater flow and increasing stormwater quality</li> </ul> <p>Significant improvements to the rules are necessary to ensure that the objectives and policies (amended as requested above) will be achieved.</p> | <p>Amendments to the rules and methods to ensure the objectives and policies (amended as requested above) will be achieved.</p>                                                                                               |
| <b>Wastewater network management</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                               |
| 3.H.4.16                             | <p>The RPS identifies wastewater management as a key resource management issue. However, the wastewater network management rules are clearly inadequate to achieve the desired outcomes.</p> <p>EDS opposes permitted activity status for wastewater overflows for new development areas or new wastewater networks - this does not accord with the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <p>Amendments to the rules and methods to ensure the objectives and policies (amended as requested above) will be achieved.</p> <p>Amend activity status for wastewater overflows for new areas / networks to prohibited.</p> |

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|                                                            | <p>policy of reducing wastewater overflows. Overflows from new developments should be regulated to ensure they do not occur and penalties should be provided for if they do occur. Existing overflows should be regulated to ensure phase out occurs at maximum speed and quality.</p> <p>EDS is concerned that the permitted activity controls are complex and inappropriate. Restricted discretionary activity status is more appropriate to ensure controls are satisfied.</p> <p>EDS supports non-complying activity status for all other discharges of wastewater.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <p>All wastewater overflows should be restricted discretionary activities – as a minimum.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| Taking, using, damming and diversion of water and drilling |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <p>3.H.4.17</p> <p>Water take and use of surface water</p> | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- Permitted activity status for specified takes for any purpose is opposed as it may allow over-allocation of freshwater bodies and does not provide for efficient use. The RMA only requires domestic and animal drinking water uses to be permitted. In under allocated catchments controlled activity status may be appropriate for other uses. Prohibited activity status is required for new takes in waterbodies which are fully allocated. Discretionary status should be provided for renewal of consents.</li> <li>- The high-use stream management area overlay identifies streams under pressure from demands to take and use water. Permitted activity status for takes in these areas is inconsistent with the objectives and policies. All takes and use should require discretionary consent, at a minimum.</li> <li>- All consented water takes should be measured so that assessments of allocation can be as accurate as possible. Measurement of all takes should be a condition of any consent.</li> </ul> | <p>Retain permitted activity status for domestic and animal drinking water uses only.</p> <p>For other uses, amend to controlled activity status in under allocated catchments.</p> <p>In fully allocated catchments new takes should be prohibited and renewal of consents should be discretionary.</p> <p>In the High-Use Stream Management Area all new and renewal takes and uses should require discretionary consent as a minimum.</p> <p>Activities which do not provide for the measurement of takes should be prohibited.</p> |
| <p>Diverting surface water</p>                             | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- Oppose permitted activity status for drainage of production land as WMAs only identifies <i>significant wetlands</i>. Regulation is required to <i>avoid</i> permanent loss of other wetlands. EDS requests discretionary activity status.</li> <li>- Oppose non-complying activity status for drainage in WMAs as inconsistent with objective to <i>avoid</i> permanent loss of wetlands. EDS requests prohibited activity status.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <p>Drainage of production land should be a discretionary activity generally. In a WMAs it should be prohibited.</p> <p>Amend discharge activity statuses to align with the above.</p> <p>Amend activity status of diversion not listed or not meeting the controls to prohibited in WMAs. Retain discretionary activity status in other areas.</p>                                                                                                                                                                                     |
| <p>Water take and use of groundwater</p>                   | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- Oppose permitted activity status for specified takes for any purpose as may allow over-allocation of freshwater bodies and does not provide for efficient use. The RMA</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <p>Retain permitted activity status for domestic and animal drinking water uses only.</p> <p>For other uses, amend to controlled activity status in under-allocated groundwater</p>                                                                                                                                                                                                                                                                                                                                                    |

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|                                                | <p>requires only domestic and animal drinking water uses to be permitted. For under-allocated aquifers controlled activity status may be appropriate for other uses. For over-allocated aquifers prohibited status is required for new takes, and discretionary status for consent renewals.</p> <p>The rules should take into account the extent to which groundwater is connected to surface water. Where the connection is significant, the surface water restrictions should apply.</p> <p>It is unclear why land drainage is included in this section. Consent should be required for any land drainage to ensure no adverse effects on wetlands.</p> | <p>systems.</p> <p>In fully allocated groundwater systems new takes should be prohibited and renewal of consents should be discretionary.</p> <p>Apply equivalent surface water restrictions where there are significant connections between ground and surface water.</p> <p>Activities which do not provide for the measurement of takes should be prohibited.</p> <p>Amend activity status for land drainage to discretionary in all locations.</p> |
| Diversion of groundwater                       | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- Oppose permitted activity status for drainage outside WMAs, as the overlay only identifies <i>significant wetlands</i>. Regulation is required to <i>avoid</i> permanent loss of other wetlands. EDS requests discretionary activity status.</li> <li>- Oppose restricted discretionary activity status for drainage in WMAs as inconsistent with objective to <i>avoid</i> permanent loss of wetlands. EDS requests prohibited activity status in situations where there may be an adverse effect on the WMA.</li> </ul>                                                            | <p>Drainage should be a discretionary activity generally. In a WMAs it should be prohibited.</p> <p>Amend activity status of diversion where there may be an adverse effect on the WMA to prohibited in WMAs.</p>                                                                                                                                                                                                                                      |
| Damming water                                  | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- Oppose permitted activity status for new dams and weirs, as significant environmental effects can result from damming water and controls are too detailed and complex to be appropriate for a permitted activity.</li> </ul> <p>EDS requests non-complying activity status generally and prohibited activity status in high value areas (e.g. natural stream management areas) to recognise the high natural values of these areas.</p>                                                                                                                                              | <p>Amend activity status for off-stream dams to discretionary and other general dams to non-complying.</p> <p>Prohibit any dams in high value areas (e.g. natural stream management areas, wetland management areas, etc)</p>                                                                                                                                                                                                                          |
| Restricted discretionary matters of discretion | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- The matters of discretion should include whether the take will allow freshwater limits to be met.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <p>Amend to ensure freshwater limits are a matter of discretion.</p>                                                                                                                                                                                                                                                                                                                                                                                   |
| Restricted discretionary assessment criteria   | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>- The priority in 5.2.1 should be provided for through differentiation of activity status or alternative allocation mechanism. Providing for priority will be challenging in a one by one allocation process.</li> <li>- The efficient use methods should be requirements and additional methods are necessary.</li> <li>- The criteria must be fully aligned with the policies</li> </ul>                                                                                                                                                                                             | <p>Amend to provide for priority through differentiation of activity status or alternative allocation mechanism</p> <p>Require efficient use methods, otherwise activity status should be prohibited.</p> <p>Add additional efficient use methods.</p> <p>Amend to ensure achievement of the policies.</p>                                                                                                                                             |

| Other discharges of contaminants      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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| 3.H.4.18                              | <p>EDS supports the application of discretionary activity status as a default.</p> <p>EDS supports permitted activity control 2.1.1.3 which states that the discharge must not enter into any water supply catchment, Wetland, Natural Lake or Natural Stream Management Area. This should be clear from the activity table and additional methods may be required to ensure that this occurs. It is unlikely that a permitted activity control will be sufficient to achieve this outcome, as they are often ignored by plan users and not enforced by council.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Amend activity table to clearly indicate that the discharge must not enter into any water supply catchment, Wetland, Natural Lake or Natural Stream Management Area or amend to controlled activity status.                                                                                                                                                                                                                                                                                                                                                                                                     |
| <i>Subdivision</i>                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 3.H.5.1.AT3                           | <p><i>Oppose in part</i></p> <p>EDS supports the prohibition on subdivision not otherwise provided for in the Future Urban Zone (5.1 Activity Table 3).</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Retain the prohibition on subdivision not otherwise provided for in the Future Urban Zone (5.1 Activity Table 4).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 3.H.5.1.AT5                           | <p><i>Support</i></p> <p>It is necessary to ensure no subdivision occurs in rural zones unless otherwise provided for in the rules. Prohibition on subdivision will avoid ad hoc applications for subdivision that will undermine the PAUP growth strategies and create adverse effects, including cumulative effects, on the rural area's character amenity, landscape and natural resource values. EDS accordingly <i>supports</i> the prohibition on subdivision not otherwise provided for in Rural Zones.</p> <p>EDS supports the provision of two transferable rural site subdivision processes. In particular, EDS supports the Amalgamation process (2.3.3.4) which provides flexibility without increasing the number of sites available in rural areas. EDS supports the Protection of an SEA process (2.3.3.5) subject to the inclusion of rigorous requirements for real ecological benefit to result. In the past, much 'conservation subdivision' did not result in significant ecological benefits accruing.</p> <p>The provision for receiver sites in the Rural Coastal Zone where the donor site is within the Rural Coastal Zone is not appropriate. The receiver location may well be a more sensitive location than the donor site. This rule fails to achieve Part 2 Chapter C Policy 27 and Rural Coastal Zone Objective 6.4. "Further rural lifestyle subdivision is prevented across the zone".</p> | <p>Retain the prohibition on subdivision not otherwise provided for in the Rural Zones (5.1 Activity Table 5).</p> <p>Retain the Amalgamation transferable rural site subdivision process to provide flexibility without increasing the number of sites in rural areas.</p> <p>Retain the Protection of an SEA transferable rural site subdivision process subject to rigorous requirements to ensure real and additional ecological benefits accrue.</p> <p>Delete the provision for receiver sites in the Rural Coastal Zone (2.3.3 Controls for activities in particular zones – rural zones - Table 6).</p> |
| <i>Zone Rules</i>                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Coastal – General Coastal Marine zone |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 3.I.6.1                               | <p><i>Oppose in part</i></p> <p>The NZCPS requires the avoidance of adverse activities</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Amend all the activity tables which are applicable to the General Coastal Marine zone in order to give ONLs the same level of                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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|                                                                      | <p>on ONLs within the coastal environment, which is the same level of protection as the NZCPS gives to areas with ONC. This requirement has not been given effect to in the activity tables for the General Coastal Marine zone where ONLs have been given a lesser level of protection than ONCs.</p> <p>The rules need to provide protection for the critically threatened Bryde's whale by including vessels as an activity and providing that large vessels travelling through the Hauraki Gulf at speeds of greater than 10 knots is a prohibited activity.</p> <p>Unless the incomplete identification of Marine SEAs is addressed, permitted activity status should be used very sparingly. Permitted status provides no opportunity to check whether a particular site has values that should be protected. Several of the activities that have been provided for as permitted would not be appropriate in areas found to have significant values (e.g. the disturbance rules in table 1.4; taking/using/diverting water in table 1.6; discharges in table 1.7).</p> | <p>protection as ONCs (which could be achieved by moving the "ONL" wording to the column which includes ONCs in each table).</p> <p>Provide an additional activity table that contains provisions to the effect that large vessels travelling through the Hauraki Gulf at speeds of greater than 10 knots is a non-complying activity.</p> <p>Amend the Marine SEA overlay to provide for complete identification of high value areas or, in the alternative, do not include permitted or controlled activities for the General Coastal Marine Zone which may adversely affect areas which are high value.</p> |
| <p>3.1.6.1.1</p> <p><i>Drainage, reclamation and declamation</i></p> | <p><i>Oppose in Part</i></p> <p>Table 1.1 Provides for declamation as a discretionary activity within the General Coastal Marine Zone and as Non-complying within the overlays. This should be amended to provide for declamation as a prohibited activity if it is for the purposes of a residential/canal development.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <p>Amend Activity Table 1.1 to the effect that declamation is a prohibited activity if it is undertaken for the purposes of a residential/canal development.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <p>3.1.6.1.2</p> <p><i>Depositing and disposal of material</i></p>   | <p><i>Oppose in part</i></p> <p>The activity table does not give effect to Policy 3 (page D47) which is to avoid disposal of material in the Hauraki Gulf Marine Park.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | <p>Amend the activity table so that the depositing of material not otherwise provided for is a prohibited activity within the Hauraki Gulf Marine Park.</p> <p>Amend the activity table so that disposal of waste or other matter in the CMA is a prohibited activity within the Hauraki Gulf Marine Park.</p>                                                                                                                                                                                                                                                                                                 |
| <p>3.1.6.1.3</p> <p><i>Dredging</i></p>                              | <p><i>Oppose in part</i></p> <p>In Table 1.3 the notation ONL appears in two columns and should be removed from the column which also has SEA-M2 and HNC. The notation ONC should be inserted into the column with SEA-M1</p> <p>Capital works dredging fundamentally changes the marine environment and therefore should not occur in marine areas with high values such as SEA-M1, ONC and ONL</p> <p>The activity table fails to identify dredging and trawling (including for the purposes of fishing) as an activity requiring control. These activities can have significant impacts on the marine environment including damaging seabed habitats and organisms and suspending</p>                                                                                                                                                                                                                                                                                                                                                                                     | <p>In Table 1.3 the notation ONL appears in two columns and should be removed from the column which also has SEA-M2 and HNC. The notation ONC should be inserted into the column with SEA-M1</p> <p>Amend the activity table so that capital works dredging is a prohibited activity in SEA-M1, ONC, ONL, SEA-M2, HNC, ONF areas.</p> <p>Amend the activity to provide that dredging and trawling (including for the purposes of fishing) is a discretionary activity within the General Coastal Marine Zone and is a prohibited activity within the overlays.</p>                                             |

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|                                       | sediment in the water column.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 3.1.6.1.4<br><i>Disturbance</i>       | <p><i>Oppose in part</i></p> <p>Mineral exploration is provided for as a permitted activity in the General Coastal Marine Zone. This includes all types of exploration, including the drilling of wells, which can create high levels of risk and needs to be carefully managed. Permitted activity status is therefore not appropriate.</p> <p>The activity status applied to mangrove removal is too permissive, is not based on robust scientific analysis and will fail to effectively manage adverse effects on the marine environment. The permitted activity controls are too complex for members of the public to use (e.g. removal must not be in areas where mangroves are serving to mitigate coastal erosion from wave action) and therefore are unlikely to be effective.</p> | <p>Amend Table 1.4 so that minerals prospecting and minerals exploration is a discretionary activity within the General Coastal Marine Zone</p> <p>Amend the Table to the effect that all mangrove removal is at least a restricted discretionary activity in the General Coastal Marine Zone</p>                                                                                                                                                                                                                                  |
| 3.1.6.1.8<br><i>Aquaculture</i>       | <p><i>Oppose in part</i></p> <p>Aquaculture has been provided for as a discretionary activity throughout the General Coastal Marine Zone. This fails to give effect to the RPS Policy 7.4.9(g) which refers to providing an expanded blue-green network linking restored island and mainland sanctuaries with protected, regenerating marine areas where the ecological health and productivity of the marine area will be enhanced. The rules need to avoid aquaculture being located in areas of the CMA in the vicinity of island and mainland sanctuaries.</p> <p>The NZCPS requires the same level of protection for ONC and ONL areas. This table gives a lesser level of protection to ONLs which is inappropriate.</p>                                                             | <p>Amend the activity table to the effect that aquaculture is prohibited in areas of the CMA within 5 nautical miles of reserves, regional parks, sanctuaries or other conservation land.</p> <p>Ensure ONLs have the same level as protection as ONC areas by moving 'ONL' one column to the left.</p>                                                                                                                                                                                                                            |
| 3.1.6.1.10<br><i>Structures</i>       | <p><i>Oppose in part</i></p> <p>New marinas have been provided for as non-complying activities within the General Coastal Marine Zone and within all the overlays. This activity should be prohibited within the overlay areas as marinas have significant impacts on the marine environment which are not compatible with protecting high natural values.</p> <p>The activity table does not identify set-nets as an activity to be specifically managed, even though such nets can have significant adverse effects on protected species including seabirds and marine mammals</p> <p>The NZCPS requires the same level of protection for ONC and ONL areas. This table gives a lesser level of protection to ONLs which is inappropriate.</p>                                           | <p>Support new marinas as a non-complying activity in the General Coastal Marine Zone.</p> <p>Amend the activity table so that new marinas are a prohibited activity within all the overlay areas.</p> <p>Amend the activity table to include a reference to set-nets and provide for them as a discretionary activity within the General Coastal Marine Zone and as a prohibited activity within the overlay areas.</p> <p>Ensure ONLs have the same level as protection as ONC areas by moving 'ONL' one column to the left.</p> |
| 3.1.6.2.11<br><i>Mangrove removal</i> | <p><i>Oppose in part</i></p> <p>This section needs to require that before any mangrove removal is authorised a sediment management plan must have been prepared and lodged with the council, setting out how the elevated sediment flows which are contributing to the expansion of the mangroves will be</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <p>Amend this section to require that before any mangrove removal is permitted a sediment management plan must have been prepared and lodged with the council, setting out how the elevated sediment flows which are contributing to the expansion of</p>                                                                                                                                                                                                                                                                          |

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|                                                    | effectively addressed. This is to ensure that the cause of the problem is addressed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | the mangroves will be effectively addressed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 3.1.6.4.2<br><i>Assessment criteria</i>            | <i>Oppose in part</i><br>Paragraph 6(b) states that proposals to remove mangroves “may” require an assessment of sediment inputs in the area and identification of catchment initiatives to reduce sediment and nutrient inputs. This needs to be a compulsory requirement so that the cause of mangrove spread can be effectively addressed, so that the adverse effects of removing mangroves can be avoided in the longer term.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Amend Paragraph 6(b) to replace the word “may” with “must” so that proposals to remove mangroves are required to provide an assessment of sediment inputs in the area and identification of catchment initiatives to reduce sediment and nutrient inputs.                                                                                                                                                                                                                                                                                                                                                            |
| 3.1.6.5.1<br><i>Matters of discretion</i>          | <i>Oppose in part</i><br>The matters of discretion need to include effects on landscapes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Amend paragraph 1(c) to also include a reference to effects on landscapes.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 3.1.6.5.2<br><i>Assessment criteria</i>            | <i>Oppose in part</i><br>The assessment criteria need to include effects on landscapes.<br><br>Paragraph 2(b) for activities in SEA-Marine provide that proposals should avoid, remedy or mitigate any adverse effect on the ecology and wildlife of the area. This fails to give effect to Policy 11 of the NZCPS which requires adverse effects to be avoided on threatened and at risk species and other significant habitats and significant adverse effects to be avoided in other listed important areas. SEA Marine areas have been identified because of their significant ecological values and are within the scope of Policy 11.<br><br>Paragraph 4 sets out assessment criteria for activities in an ONL, ONC and HNC overlay. It includes an assessment of whether there will be “no more than minor effects on” a range of values. This does not comply with policies 13 and 15 of the NZCPS which requires all adverse effects to be avoided in areas of ONL and ONC, not just effects more than minor.<br><br>Paragraph 12(b) states that proposals to remove mangroves “may” require an assessment of sediment inputs in the area and identification of catchment initiatives to reduce sediment and nutrient inputs. This needs to be a compulsory requirement so that the cause of mangrove spread can be effectively addressed. | Amend paragraph 1(c) to also include a reference to effects on landscapes.<br><br>Amend Paragraph 2(b) to provide that activities in SEA-Marine should avoid any adverse effect on the ecology and wildlife of the area.<br><br>Amend Paragraph 4 to include an assessment as to whether adverse effects on ONL and ONC overlay areas are avoided.<br><br>Amend Paragraph 12(b) to replace the word “may” with “must” so that proposals to remove mangroves are required to provide an assessment of sediment inputs in the area and identification of catchment initiatives to reduce sediment and nutrient inputs. |
| 3.1.6.6<br><i>Special information requirements</i> | <i>Oppose in part</i><br>No assessment criteria have been provided for assessing aquaculture applications, and this is a major gap, given the many potential adverse effects that aquaculture can have on the marine environment.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Provide comprehensive assessment criteria for any aquaculture proposals which includes (but is not limited to): <ul style="list-style-type: none"> <li>• Whether the proposal has any adverse effects on ONL, ONC, HNC and Marine SEA overlay areas</li> <li>• Effects on other landscape, natural character and amenity values</li> <li>• Effects on marine mammals</li> </ul>                                                                                                                                                                                                                                      |

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|  |  | <ul style="list-style-type: none"> <li>• Effects on local biodiversity</li> <li>• The risk of spreading unwanted exotic organisms and diseases</li> <li>• The extent to which the proposal is likely to result in the accumulation contaminants on the seabed including heavy metals and other toxic substances</li> <li>• Any obstruction created to navigation</li> <li>• Discharge of debris into the CMA</li> <li>• Ecological impacts on the seabed due to deposition, including smothering of organisms and oxygen depletion within sediments</li> <li>• Physical and chemical changes to the water column</li> <li>• Reduction in naturally occurring plankton</li> <li>• Commitment to remove structures in the event of farm abandonment</li> <li>• Siltation caused by structures</li> <li>• Alteration of natural water currents</li> <li>• Genetic effects on wild marine species</li> <li>• Efficiency of feed conversion for finfish farming</li> <li>• Discharge of any toxic chemicals into the CMA such as through the use of vaccines, medicines, supplements or anti-fouling paints</li> </ul> <p>The assessment criteria should also make it clear in what areas and situations where aquaculture will not be appropriate including:</p> <ul style="list-style-type: none"> <li>• Where there are conflicts with ecological, social and cultural values or other uses</li> <li>• Where there is a risk of significant and/or irreversible effects</li> <li>• Where it involves expansion of the footprint of aquaculture within the Mahurangi harbour</li> <li>• Where it would adversely affect an ONL or area of ONC</li> </ul> |
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|             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <ul style="list-style-type: none"> <li>Where it is proposed to be located within: <ul style="list-style-type: none"> <li>A Marine SEA</li> <li>An area of the CMA where the coastline which is in proximity to a reserve, regional park, wildlife sanctuary or other conservation land.</li> <li>Significant habitats of threatened or at risk marine species including marine mammals and seabirds</li> <li>Significant benthic habitats including rocky reefs, subtidal sea grass beds, horse mussel beds, green-lipped mussel beds, sponge beds, shell-gravels and shell-armoured seafloor areas</li> <li>Areas of importance to fisheries including snapper spawning and nursery areas</li> <li>Areas of importance for shellfish</li> </ul> </li> </ul> <p>Include a provision that any aquaculture proposal will need to demonstrate that any residual adverse effects which cannot be avoided, mitigated or remedied will be offset through restoration and enhancement actions that achieve no net loss and preferably a net gain in terms of impacts on natural heritage values of the coastal environment.</p> |
| Rural Zones |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 3.1.13.1    | <p><i>Oppose in part</i></p> <p>Farming is provided for as a permitted activity. This does not recognise the need to manage rural production discharges to achieve freshwater outcomes. As set out above in relation to freshwater, all farming systems should be required to produce a farm environmental plan with controlled activity status to allow for oversight. In areas where freshwater quality is over-allocated restricted discretionary activity status would be appropriate. This is necessary to ensure the PAUP complies with s70 RMA and the NPSFM.</p> <p>Forestry is provided for as a permitted activity within</p> | <p>Amend the table so that farming is a controlled activity where a farm environmental plan is prepared, and a restricted discretionary activity in catchments which are freshwater quality over-allocated.</p> <p>Amend the activity table on page I236 so that new forestry is a discretionary activity in the Rural Coastal and Rural Conservation zones.</p> <p>Amend the activity table so that mineral exploration is restricted discretionary in the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

|                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
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|                                                                                              | <p>the Rural Coastal zone. This is not appropriate as forestry can have significant impacts on the CMA through sediment generation which cannot be adequately managed through a permitted activity status. It therefore fails to comply with Policy 22 of the NZCPS which requires that the impacts of forestry harvesting be controlled and that use and development not result in a significant increase in sedimentation in the CMA. It also fails to adequately manage the impacts of forestry activities on areas of degraded water quality.</p> <p>Forestry is provided for as a permitted activity within the Rural Conservation zone. This is inappropriate given the values of the Rural Conservation zone and consent should be required to manage the impacts of forestry on the environment.</p> <p>Mineral exploration is provided for as a permitted activity in all zones. The environmental effects of mineral exploration can be significant and permitted activity status is inappropriate.</p> | Mixed Rural and Rural Production zones and Discretionary in Rural Conservation and Rural Coastal and Non-Complying in Countryside Living.                                                                                                                                                                                                                                                                                                                                                                                          |
| <p>3.I.13.2</p> <p><i>Land Use Controls</i></p>                                              | <p><i>Oppose in part</i></p> <p>No land use controls have been provided which manage the impacts of farming on the marine environment, particularly through the generation of sediment.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <p>Include land use controls which effectively manage the impacts of farming on the marine environment, particularly through controlling the generation of sediment. For example through requirements for riparian areas to be maintained adjacent to waterways and the CMA.</p>                                                                                                                                                                                                                                                   |
| <p>3.I.13.2.3</p> <p><i>Forestry</i></p>                                                     | <p><i>Oppose in part</i></p> <p>The forestry controls do not adequately address sediment entering the CMA and need to be strengthened.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <p>Include land use controls which effectively manage the impacts of forest on the CMA, particularly through controlling the generation of sediment. For example through requirements for harvesting management plans at the time of planting, maintenance of larger riparian areas and other methods.</p> <p>Amend paragraph 2.3 by including and additional paragraph which states that any forestry activity must not result in the generation of sediment that may enter the CMA within an area of degraded water quality.</p> |
| Overlay Rules                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| Natural Heritage - Outstanding Natural Landscapes and Outstanding and High Natural Character |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <p>3.J.6.2.1</p>                                                                             | <p>The activity table provides ONL areas with lesser protection than areas of ONC. However within the coastal environment, under the NZCPS, ONLS are given a similar protection to ONCs.</p> <p>Permitted activity status for minor infrastructure upgrading is not supported as the definition links 'minor' to the extent of upgrading not the adverse effects, which could be significant.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | <p>Amend the activity table to provide the ONL areas with a similar level of protection as areas of ONC.</p> <p>Amend activity status for minor infrastructure upgrading to restricted discretionary.</p> <p>Amend the activity table to incorporate provisions applying to amenity landscapes to</p>                                                                                                                                                                                                                              |

|                                                                   |                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                 |
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|                                                                   | No special protection is provided in the activity table to amenity landscapes and these should be incorporated as an additional overlay                                                                                                                                                                                                                           | ensure that they are carefully managed to retain amenity values.                                                                                                                                |
| 3.J.6.2.4.1                                                       | The matters of discretion need to include effects on natural character and ecological values.                                                                                                                                                                                                                                                                     | Amend 4.1 to include as a matter of discretion impacts on natural character and ecological values.                                                                                              |
| 3.J.6.2.4.2                                                       | The assessment criteria in paragraph one refers to ensuring that there are no more than minor effects on landscape and natural character values. However in order to comply with the NZCPS the criteria needs to, in addition, make it clear that the proposal needs to ensure that there are no adverse effects on areas of ONL and ONC shown on the overlay.    | Amend paragraph 1 to also state that the proposal needs to ensure that there are no adverse effects on areas of ONL and ONC as shown on the overlay.                                            |
| Natural Heritage – Volcanic viewshafts and Height-sensitive areas |                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                 |
| 3.J.6.3                                                           | This section provides that it is a non-complying activity for buildings to penetrate the floor of a volcanic viewshaft except where provided for in the activity table. As preserving volcanic viewshafts is very important to the overall character and amenity of the region, activities which penetrate the viewshafts should be prohibited activities. (J150) | Amend section 6.3 including the activity table to the effect that activities which penetrate any volcanic viewshaft, and are currently shown as non-complying, should be prohibited activities. |

### 13. PLANNING MAPS

| Section                                                                  | Submission                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Relief Sought                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|--------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Coastal natural character areas, outstanding natural landscapes overlays | <p><i>Support in part</i></p> <p>The coastal natural character areas, outstanding natural landscapes and features as shown on the overlays on the maps have been incorporated as part of the RPS and this is supported.</p> <p>The areas identified as ONLs are comprehensive and are supported.</p> <p>The areas identified as ONC do not include all areas with outstanding natural character values and need to be expanded in accordance with a robust assessment of outstanding natural character.</p> <p>Areas of amenity landscapes have not been shown as overlays on the maps, and need to be to ensure that the important amenity values of the region are retained.</p> | <p>Retain the coastal natural character areas, outstanding natural landscapes overlays as part of the RPS.</p> <p>Extend the areas identified as ONC in accordance with a robust assessment of outstanding natural character.</p> <p>Amend the maps to include an overlay showing areas of amenity landscapes, which include the “regionally significant landscapes” as identified in the Auckland regional policy statement when it became operative in 1999.</p> |
| SEA – Terrestrial overlay                                                | <p><i>Oppose in part</i></p> <p>EDS supports the identified SEA – Terrestrial areas subject to the submissions below.</p> <p>EDS has identified a number of areas where an SEA has been reduced in area from the previously notified Proposed Plan or previous planning iterations, with no clear justification. The following SEAs are examples:</p>                                                                                                                                                                                                                                                                                                                              | <p>Retain the SEA – Terrestrial overlay subject to the relief sought below.</p> <p>That the SEA layer be fully reflective of the ecological values it is intending to protect, including accurately following habitat edges and quality gradients and not be reduced arbitrarily.</p>                                                                                                                                                                              |

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| <p>1. The SEA located to the east and south of Awaroa Road (Waikumete Cemetery) has been substantially reduced in both area and connectivity by having large sections cut from the middle of the continuous habitat.</p> <p>2. The mapping of the SEAs in the Long Bay Park area has generated a number of errors, for example the partial omission of SEA 8198.</p> <p>3. Legacy SEA 120 in Brown's Bay has been reduced in area, having its eastern portion significantly diminished.</p> <p>4. Kawau Island previously enjoyed protection as an SEA and the new layer has missed it.</p> <p>5. Kawau Island – reinstate extent of the SEA from the draft Unitary Plan maps</p> <p>6. Kauri Glen – it appears an area to the south of Waratah Avenue has been excluded.</p> <p>For the following areas please see the maps attached as Appendix D:</p> <p>7. Spectical Lake (Tomarata)</p> <p>8. Rawene Reserve, Birkenhead – contains Ornate Skinks (at risk)</p> <p>9. Chelsea Downs, Birkenhead – contains Pied Shag (nationally vulnerable), Grey Duck (nationally critical), Little Shag (at risk) and Black Shag (at risk).</p> <p>10. Castor Bay – area list as an Ecological Linkage Area in legacy NSCC SES Information Systems (SES / LA 076 Castor Bay)</p> <p>11. Long Bay – a number of indigenous forest and wetland areas (including an area with Spotless Crake)</p> <p>12. Takapuna – area to north of SEA 8411.</p> <p>13. South-Western Okura / Redvale stream catchment - Auckland Green Gecko (at risk) and Forest Gecko (at risk).</p> <p>14. Northcross Reserve, adjoining Northcross Intermediate School.</p> <p>The drafting process for the planning maps contains significant potential for error as regards demarcating the SEAs. The maps should be reviewed to ensure that the boundaries follow closely the boundaries of the ecological features the SEA layer is intended to recognise, identify and protect.</p> <p>Of particular concern, is ensuring Le Roys Bush and Kauri Glen SEA mapping is correct.</p> <p>The SEA overlay is incomplete and does not fully recognise the need to protect indigenous biodiversity.</p> <p><i>Northcross Bush</i></p> <p>Northcross Bush should be given SEA protection. It is the largest remaining piece of bush in the Browns</p> | <p>Amendments to the planning maps to reflect this, including in the areas identified as examples and in other areas.</p> <p>Areas where existing activities are located should not be excluded from the SEA overlay if the values exist in these areas. Rather, existing activities should be addressed through amendments to the rules that, for example, provide for a less onerous activity status for existing activities compared to new activities.</p> <p>Areas erroneously or otherwise missed must be reinstated.</p> <p>That remaining habitat within the area identified as part of the Northwest Wildlink is added to the SEA layer as well as other areas including those listed in the reasons and others meeting the SEA criteria.</p> <p>Provide appropriate protection (in the SEA overlay or otherwise) to areas providing ecological linkages to SEAs.</p> <p>Amend the SEA criteria to ensure that areas that provide ecological linkages and buffers also qualify as SEAs and provide for the protection of these areas.</p> |
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|  | <p>Bay catchment, consisting of Northcross Reserve 1.8ha and adjacent Ministry of Education land covered in bush (2.1ha). The reserve area is the existing Northcross Reserve, which includes healthy native tree species like mahoe (whiteywood), mapou, pigeonwood, kanuka, ponga (silver fern), tanekaha, kauri and kahikatea. The tracks need maintenance, and there invasive weeds and pest trees present in the whole of Northcross Bush but the area can be improved with good management and community input.</p> <p>A map is attached as Appendix B showing the area which should be designated as an SEA including the area marked 'reserve' and the area marked 'land for sale'..</p> <p><i>Ecological corridors and buffer zones</i></p> <p>Appropriate protection needs to be provided for ecological corridors and buffers between identified SEAs, and areas that could otherwise contribute to the values of current SEAs.</p> <p>The areas between and around SEAs may or may not currently qualify under the AUP as SEAs themselves. However there needs to be recognition in the AUP of the role these areas play (now and in the future) in forming ecological corridors/ linkages and buffers between and around current SEAs.</p> <p>The SEA criteria should be amended to ensure that areas that provide ecological linkages and buffers also qualify as SEAs (including recently planted/restored areas), or alternatively other appropriate protections (such as different zoning or overlays) that could protect these important areas provided. Examples of areas that should be protected include:</p> <ol style="list-style-type: none"> <li>a. The Northwest Wildlink: <p>The North-West Wildlink is a regional wildlife linkage which provides areas of suitable habitat enabling the establishment and movement through of native biodiversity from the Hauraki Gulf in the north to the Waitakere Ranges in the west. Some parts of it have been identified in the PAUP as SEAs. However sections of the Wildlink remain unprotected. These sections need to be appropriately recognised in the PAUP to protect their value as parts of the ecological corridor that is the Wildlink:</p> <ul style="list-style-type: none"> <li>- The Massey to Westgate area</li> <li>- Area to north of SH 18, Hobsonville, between the existing motorway planting and the Whenuapai Airbase</li> <li>- Whangaparaoa Peninsula</li> </ul> </li> <li>b. The area linking Totara Park, through the Olive Davis Reserve, Ngaheretuku Reserve and Clevedon</li> </ol> |  |
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|                      | <p>Reserve.</p> <p>c. Park Rise Bush in Centennial Park, Campbells Bay and the area adjacent to the 8<sup>th</sup> fairway.</p> <p>d. Bethell's Quarry Special Purpose area</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| SEA – Marine overlay | <p><i>Oppose in part</i></p> <p>The SEA Marine overlay areas have been incorporated as part of the RPS and this is supported.</p> <p>In some locations, areas where existing activities are located are excluded from the overlay. These should not be excluded as the values exist in that location but rather existing activities should be addressed in the rules.</p> <p>Additional areas need to be identified as SEA Marine on the planning maps to ensure that important ecological values are effectively protected as identified above.</p> <p>The SEA Marine 1 overlay needs to include all marine reserves. Currently it does not cover the Long Bay-Okura Marine Reserve which is zoned SEA Marine 2.</p> | <p>Areas where existing activities are located should not be excluded from the SEA overlay if the values exist in these areas. Rather, existing activities should be addressed through amendments to the rules that, for example, provide for a less onerous activity status for existing activities compared to new activities.</p> <p>Undertake a robust assessment of the significant ecological values throughout the CMA and identify all areas with these values in the SEA Marine overlay.</p> <p>These should include (but not be limited to) the following (as more fully described above):</p> <ul style="list-style-type: none"> <li>• The habitat of the critically endangered Maui's dolphin which includes the entire west coast of the CMA in the Auckland region including harbours.</li> <li>• Habitat of the critically threatened Bryde's whale, which includes the area in the Hauraki Gulf shown as the Protocol Area in the "Hauraki Gulf Transit Protocol for Commercial Shipping".</li> <li>• Snapper spawning areas, as identified on Figure 8 (page 75) of the 2013 report titled "Review of Sustainability Measures and Other Management Controls for SNA 1 for the 2013-14 Fishing Year: Final Advice Paper" prepared by the Ministry for Primary Industries</li> <li>• Benthic habitats of significance to snapper and other commercially important marine species</li> <li>• Important rocky reef systems including those around the coast of Kawau Island and surrounding islands, at Te Arai Point, and off Port Fitzroy and deepwater reefs seawards of the Mokohinau Islands and Great Barrier Island</li> <li>• Important benthic habitats including those in the Motuihe and Ponui</li> </ul> |

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|                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | <p>Channels</p> <ul style="list-style-type: none"> <li>• Significant shellfish beds</li> <li>• Entire extent of areas important to birds including those within the Kaipara and Manukau Harbours.</li> </ul> <p>Extend the SEA Marine 1 overlay to include all marine reserves including the Long Bay-Okura Marine Reserve.</p> <p>Identify the seagrass bed off Snells beach as SEA-Marine 1</p> <p>Extend the SEA-Marine so it covers all the CMA from Goat Island to Ti Point</p> <p>Provide a SEA Marine 2 overlay over the areas in the Kaipara harbour where there are significant areas of mangroves including those shown in Appendix C.</p> <p>Extend the area of SEA-Marine so that it encompasses the CMA adjacent to important islands in the Hauraki Gulf out to 5 nautical miles including Tiritiri Matangi, Rangitoto, Motutapu, Motuihe, Browns, Rakino, Ponui, Rotoroa, and Pakatoa Islands</p> <p>Include an overlay showing areas of degraded water quality</p> |
| Wetland Management Areas overlay | <p>The WMAs are set out in Appendix 5.3 but are not included in the Maps. This means that e.g. a landowner viewing a map of their land would not be aware that a WMA is present and therefore that the protections apply to that area. It is important that all users of the plan can clearly identify WMAs.</p> <p>In addition, the maps in Appendix 5.3 identify the location of each WMA but do not map their spatial extent which is only described. This should be rectified to ensure users of the plan can clearly identify the spatial extent of WMAs which is not to be diminished.</p>                                                                     | <p>Amend the maps located Appendix 5.3 to identify the spatial extent of the WMAs.</p> <p>Include the WMAs in the Maps section of the PAUP.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| Important Bird Areas overlay     | <p>The Proposed Unitary Plan has insufficient provisions in place to protect the nesting and breeding areas of seabirds. A significant proportion of the world's seabirds pass through New Zealand waters. Activities such as wind farms and effects such as light attraction can have significant impacts on mortality. EDS submits that recent work identifying important bird areas in the Auckland Region should form the basis of provisions to limit the potential impacts on seabirds. As discussed in previous submission, the PAUP should recognise IBAs and the key threats facing them, and provide an appropriately protective management framework.</p> | <p>That provisions in the Unitary Plan recognise the information basis in Appendix A which identifies the important habitats of seabirds in the Auckland Region by:</p> <ol style="list-style-type: none"> <li>1. Including maps of IBAs in the PAUP (as set out in Appendix B) within the SEA overlay or another category of overlay sufficient to protect their values</li> <li>2. Including appropriate provisions to recognise and protect IBAs</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| Coastal inundation and           | EDS supports mapping of coastal inundation and flooding areas. These maps must apply climate change predictions for                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Ensure maps apply climate change predictions for the next 100 years.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

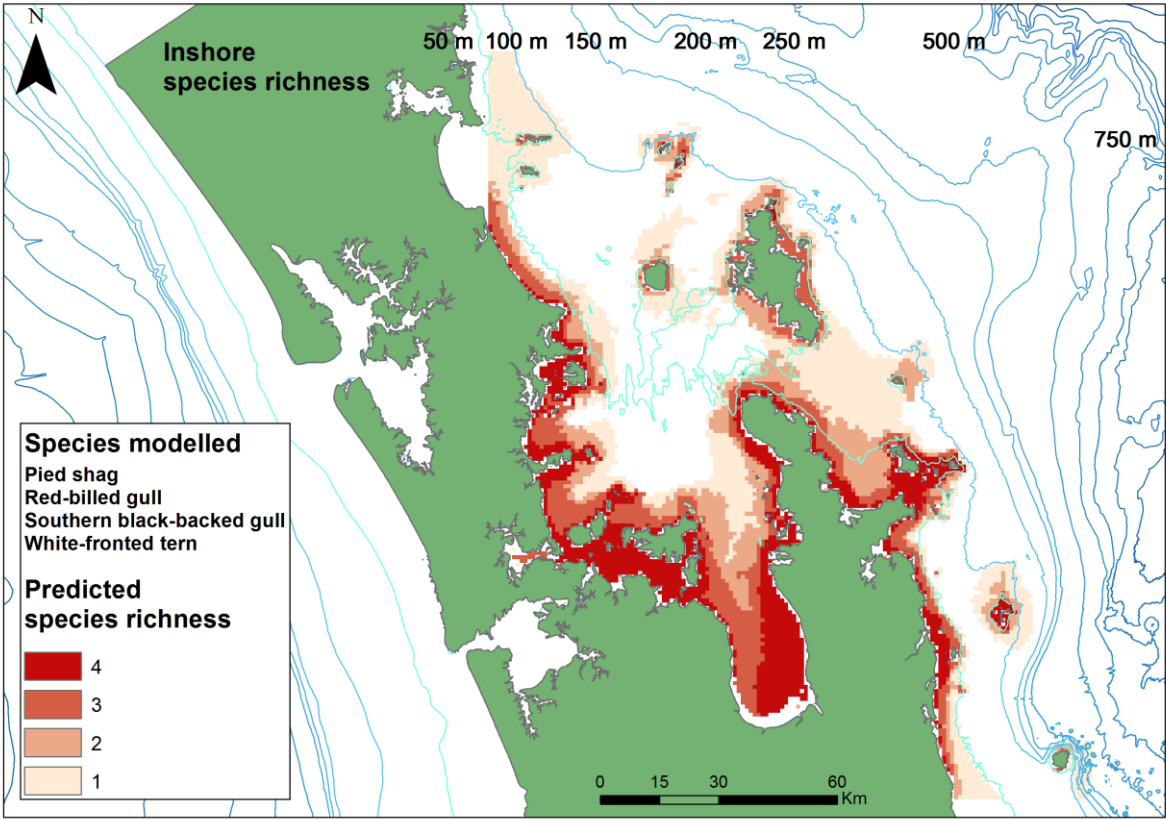
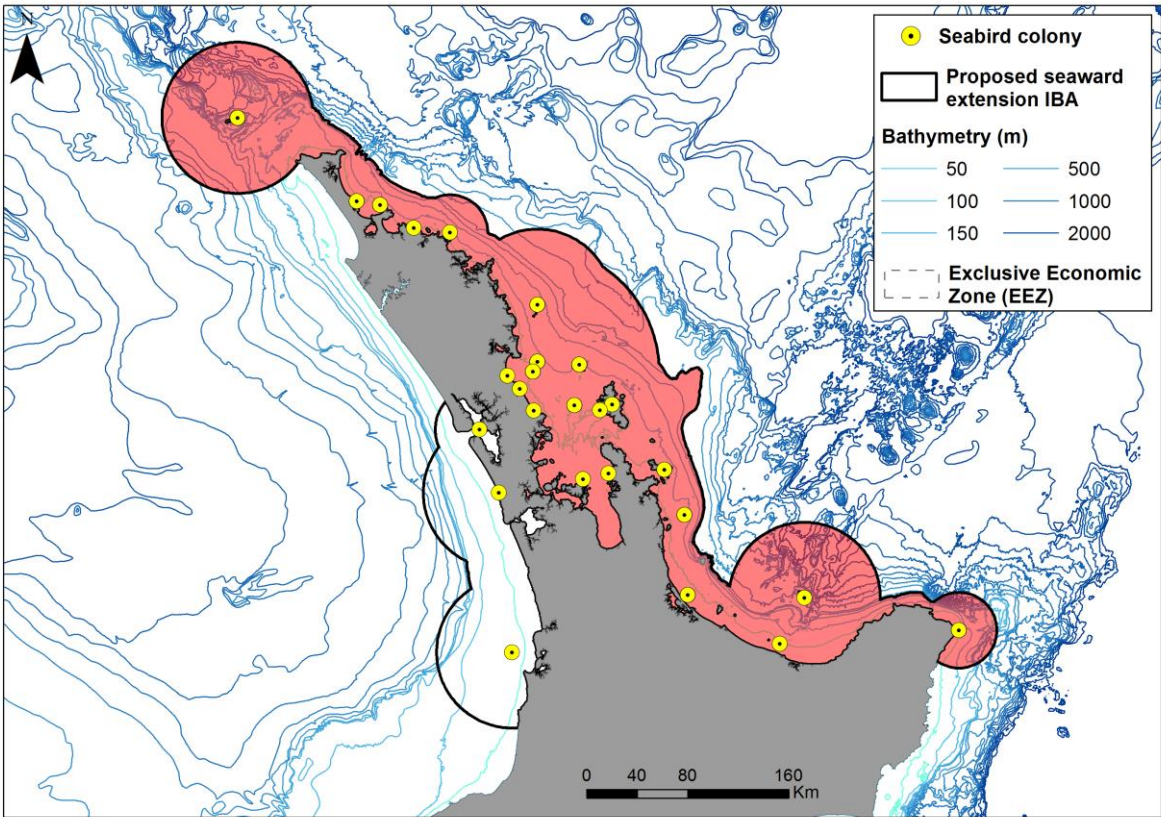
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| flooding areas             | <p>the next 100 years.</p> <p>The coastal inundation overlay is missing from the Hauraki Gulf Islands and needs to be provided.</p>                                                                                                                                                                                                                    | <p>Include a coastal inundation overlay for the islands in the Haruaki Gulf.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| Amenity landscape overlays | <p><i>Oppose</i></p> <p>Areas of amenity landscapes have not been shown as overlays on the maps, and need to be to ensure that the important amenity values of the region are retained.</p>                                                                                                                                                            | <p>Amend the maps to include an overlay showing areas of amenity landscapes, which include the “regionally significant landscapes” as identified in the Auckland regional policy statement when it became operative in 1999.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| Rural Coastal Zone         | <p><i>Oppose in part</i></p> <ul style="list-style-type: none"> <li>The Rural Coastal zone needs to, as a minimum, include the coastal environment. In areas where it does not do so, the boundary of the zone as shown on the maps needs to be moved to include all the coastal edge and inland to include all of the coastal environment.</li> </ul> | <p>Extend the Rural Coastal zone where necessary to include the entire coastal environment outside urban areas on all Maps, which includes:</p> <ul style="list-style-type: none"> <li>Rural Grid 3 Zones – All the areas adjacent to the Kaipara harbour CMA need to be included</li> <li>Rural Grid 6 Zones – All the areas adjacent to the Kaipara harbour need to be included</li> <li>Rural Grid 9 Zones – Width of zone needs to be increased in the vicinity of Parkhurst</li> <li>Rural Grid 14 Zones – Zone needs to include all coastal edge and be extended inland particularly along the coastline extending east of Kawakawa Bay and backing onto Tawhitokina Bay.</li> <li>Rural Grid 15 Zones – Zone needs to extend around the entire coastline south of Matingarahi</li> </ul> |

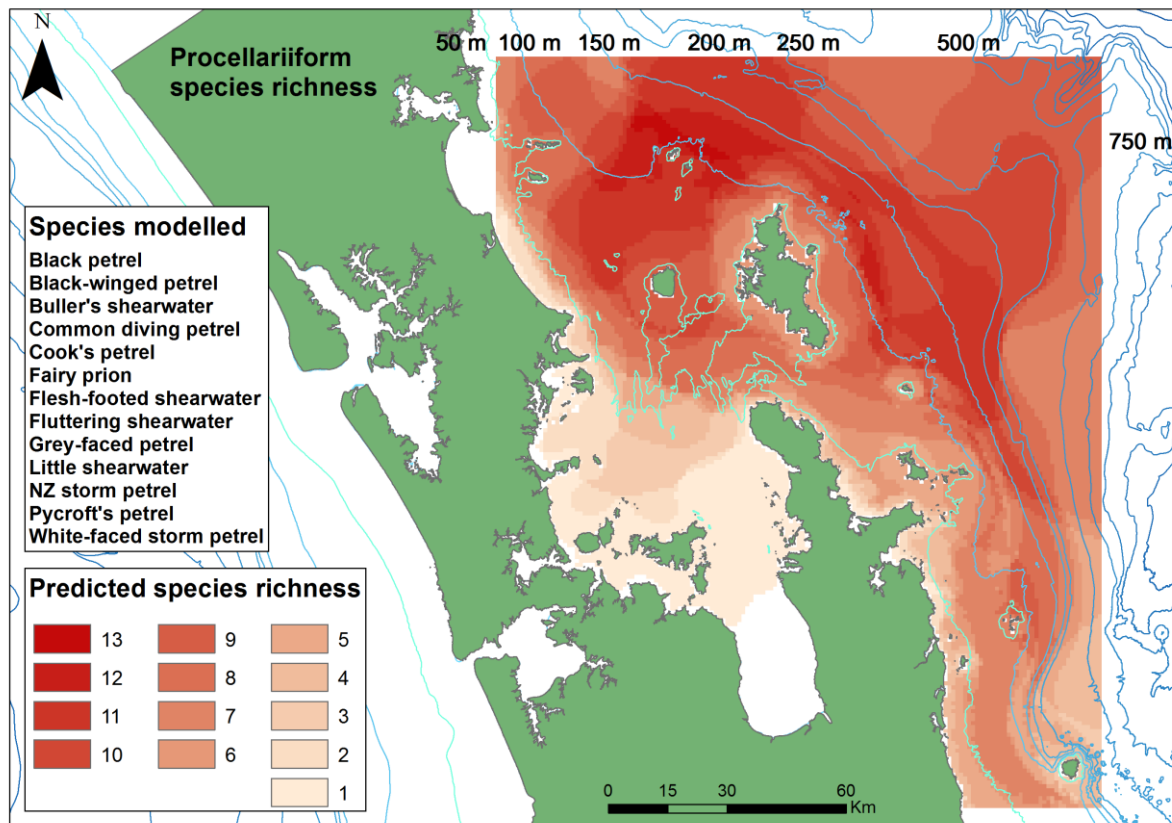
#### 14. APPENDICES

| <i>Appendix 6.1 Schedule of Significant Ecological Area - Marine</i> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|----------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5.6.1                                                                | <p><i>Oppose in Part</i></p> <p>The schedule does not adequately describe the values in the CMA which the SEA-Marine overlay areas seek to protect. In some cases there is no description of values in the marine area, the values identified being solely terrestrial. In some other cases the values described do not coincide with the area shown on the overlay maps</p> <p>The numbering in the appendix for each SEA is not linked to any boundaries of the SEA as shown on the planning maps so it is not possible to accurately determine the precise location or extent of each SEA</p> | <p>Amend the schedule so that it provides a technically robust and full description of the values within the CMA that each SEA-Marine is seeking to protect</p> <p>Provide a description for any additional areas which are included as a result of EDS’s submission on the maps.</p> <p>Provide a clear linkage between the identification and description of specific SEAs in the appendix and their location, including precise boundaries on the planning maps</p> |

APPENDIX A –IMPORTANT BIRD AREAS

See attached publication: Important Areas for New Zealand Seabirds – Wider Hauraki Gulf Region

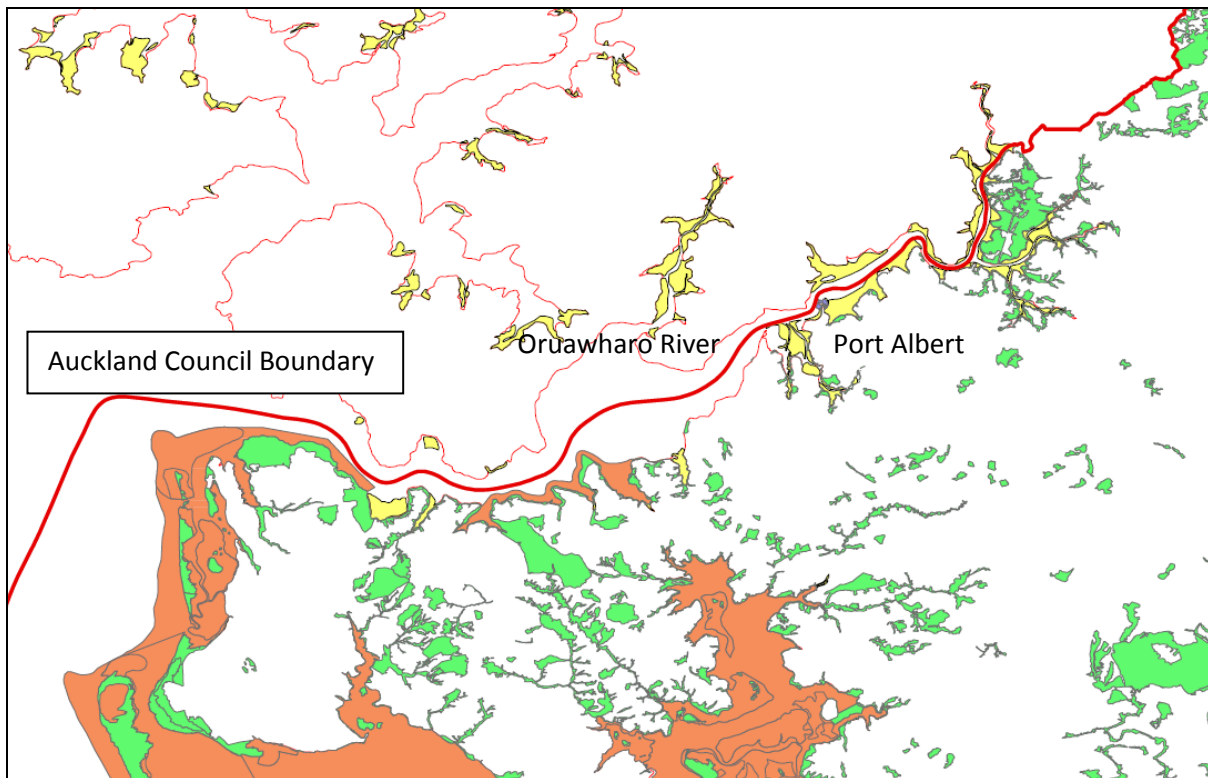




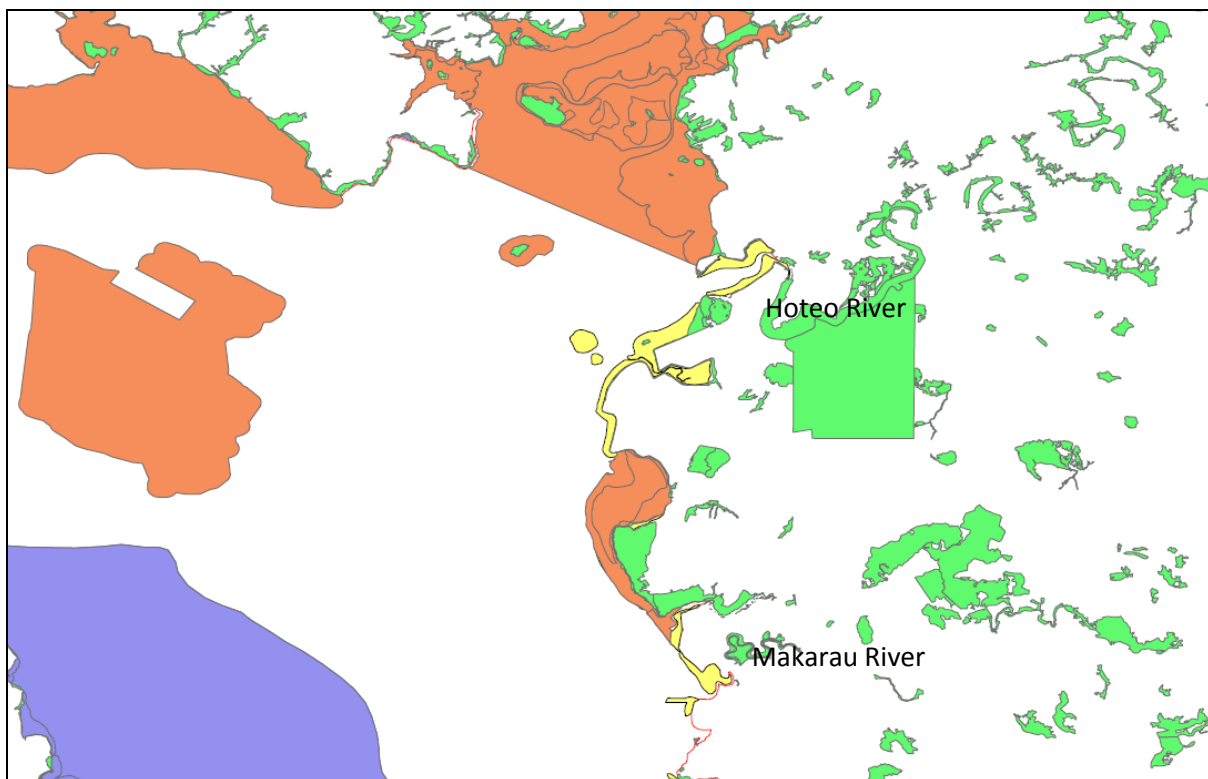
APPENDIX B – NORTHCROSS BUSH



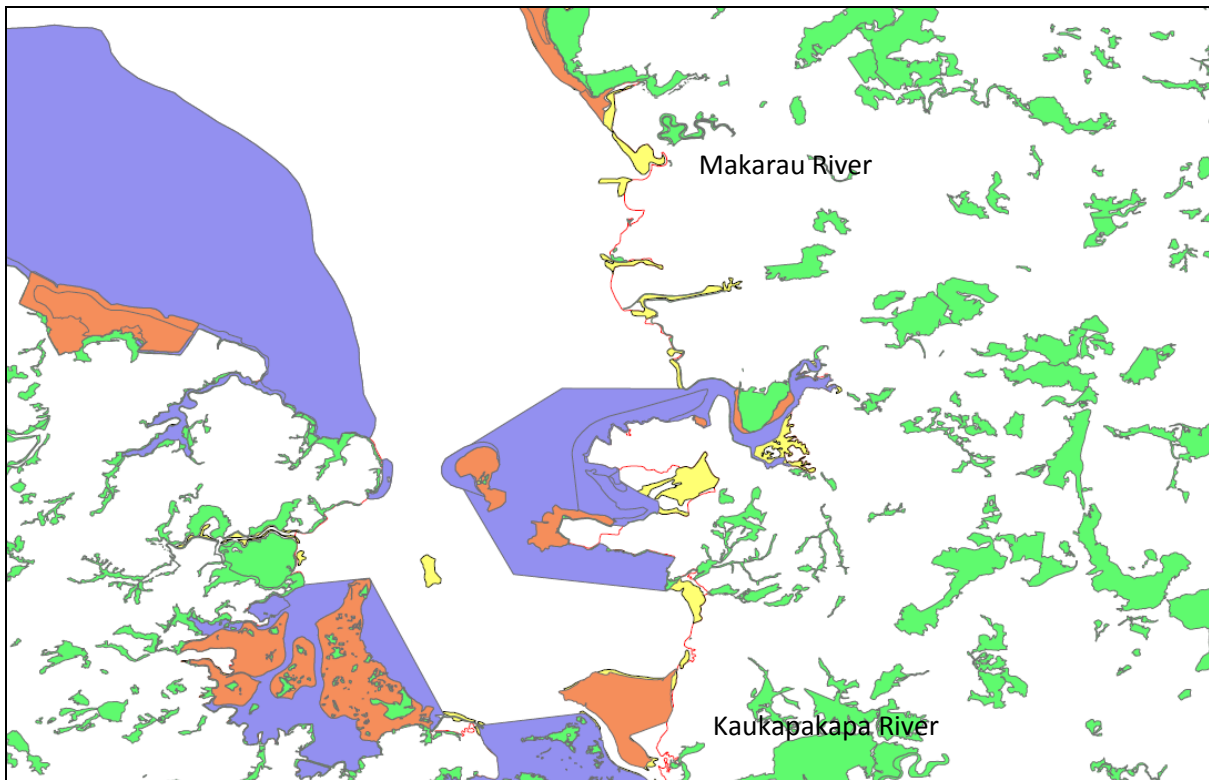
**APPENDIX C - Habitat of Threatened Fauna where SEA Marine 2 needs to be applied (Areas in yellow)**



Oruawharo River, Kaipara Harbour

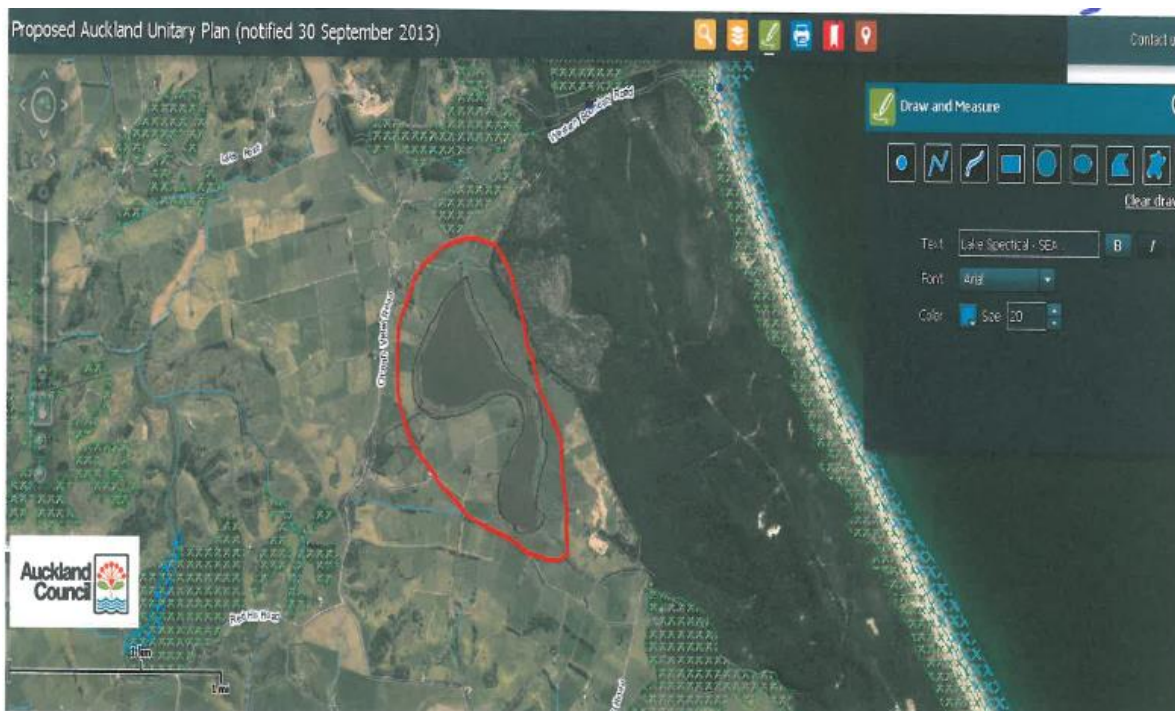


Hoteo River to Makarau River, Kaipara Harbour

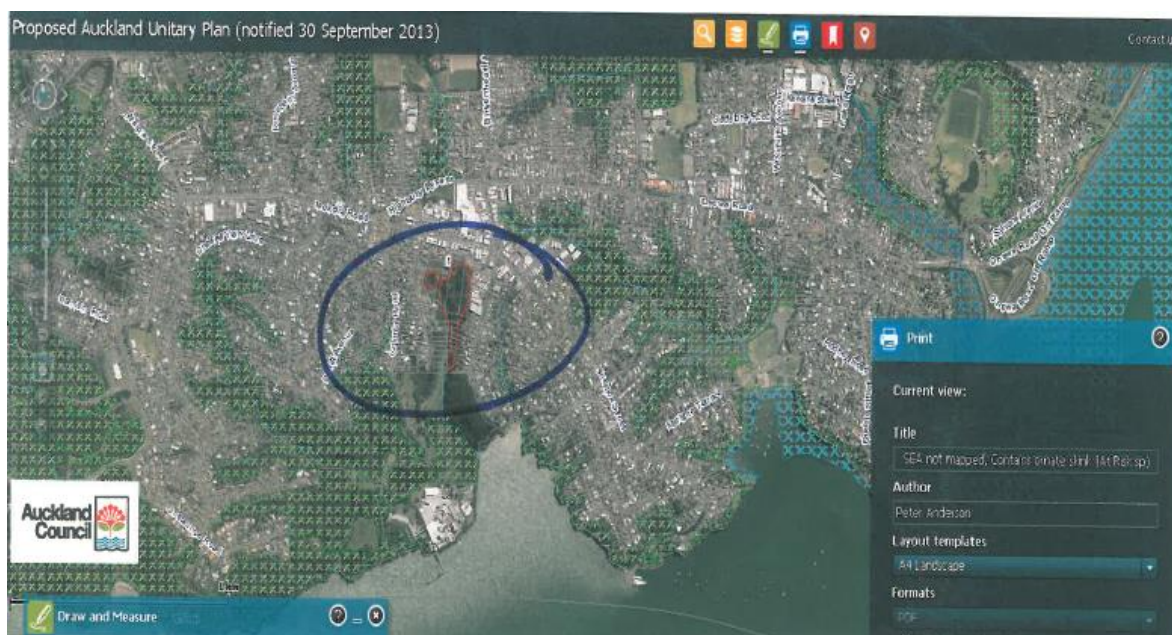


Makarau River to Kaukapakapa River, Kaipara Harbour

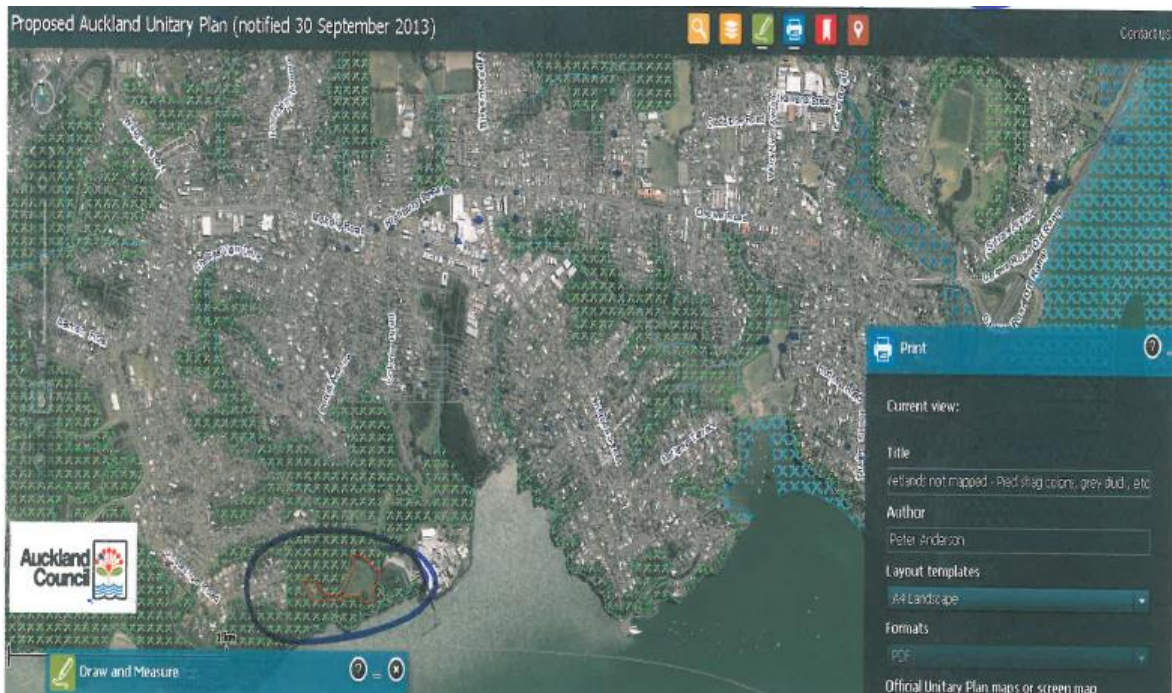
## APPENDIX D – MAPS OF SEAS NOT MAPPED



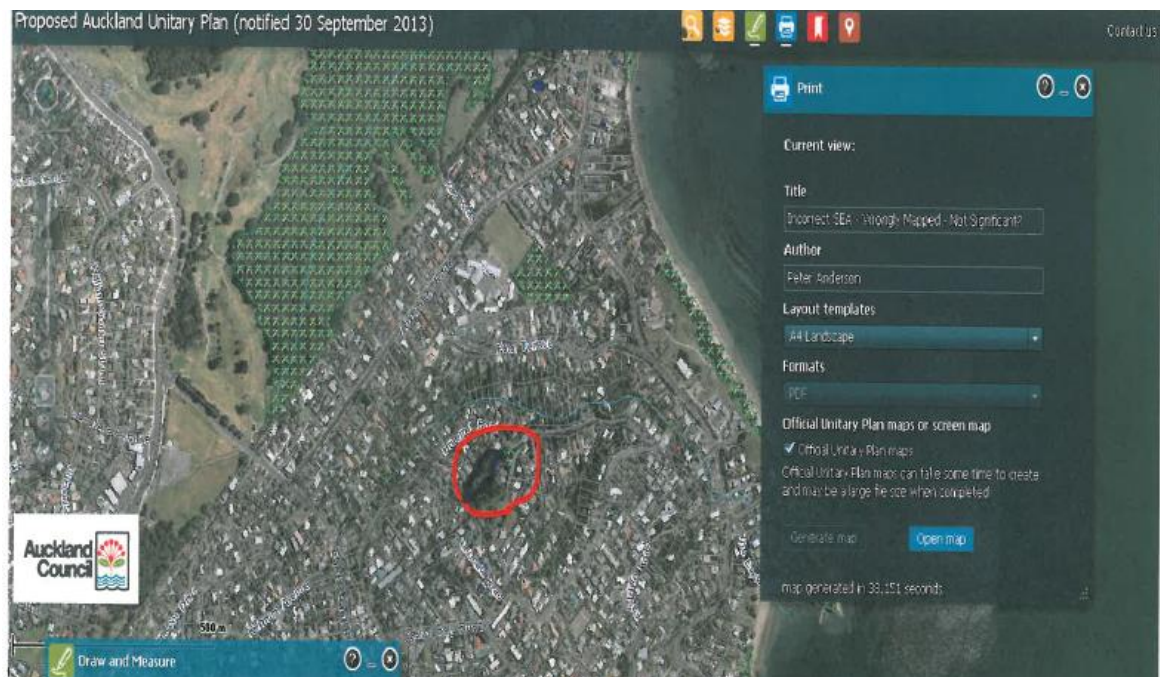
**Spectical Lake (Tomarata)**



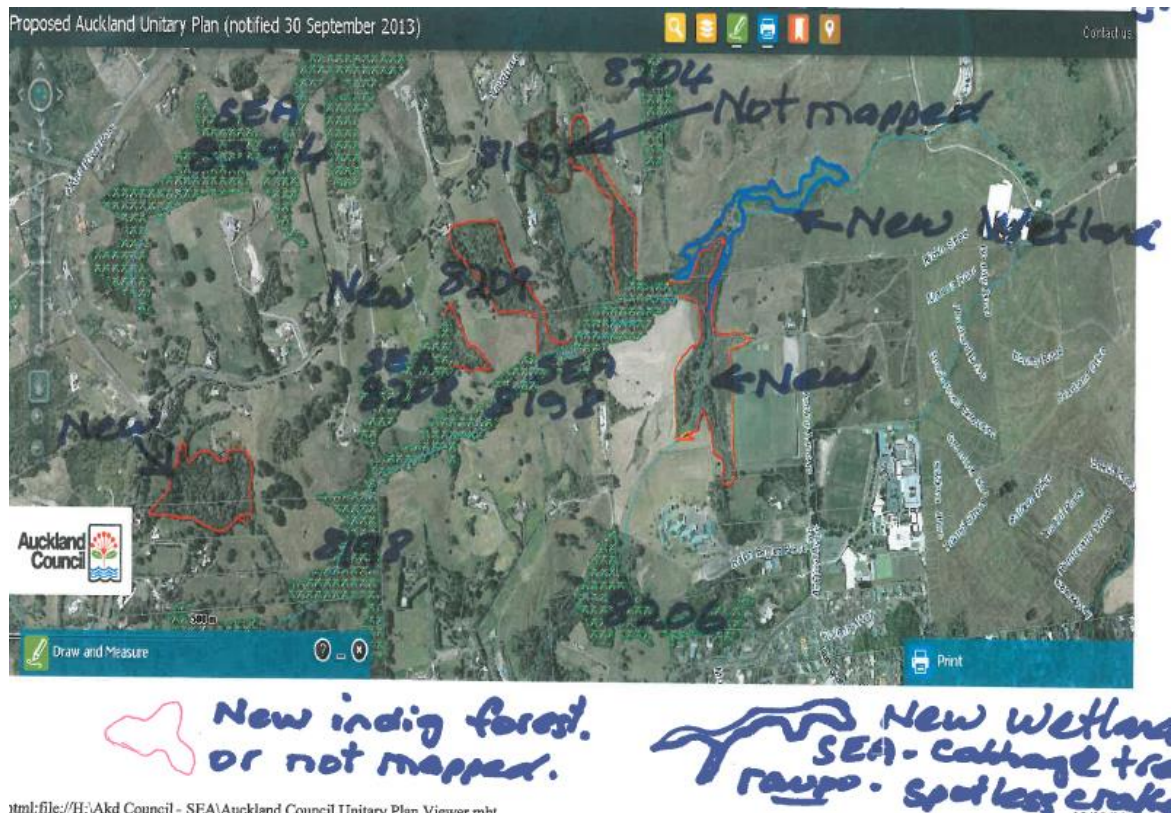
**Rawene Reserve, Birkenhead**



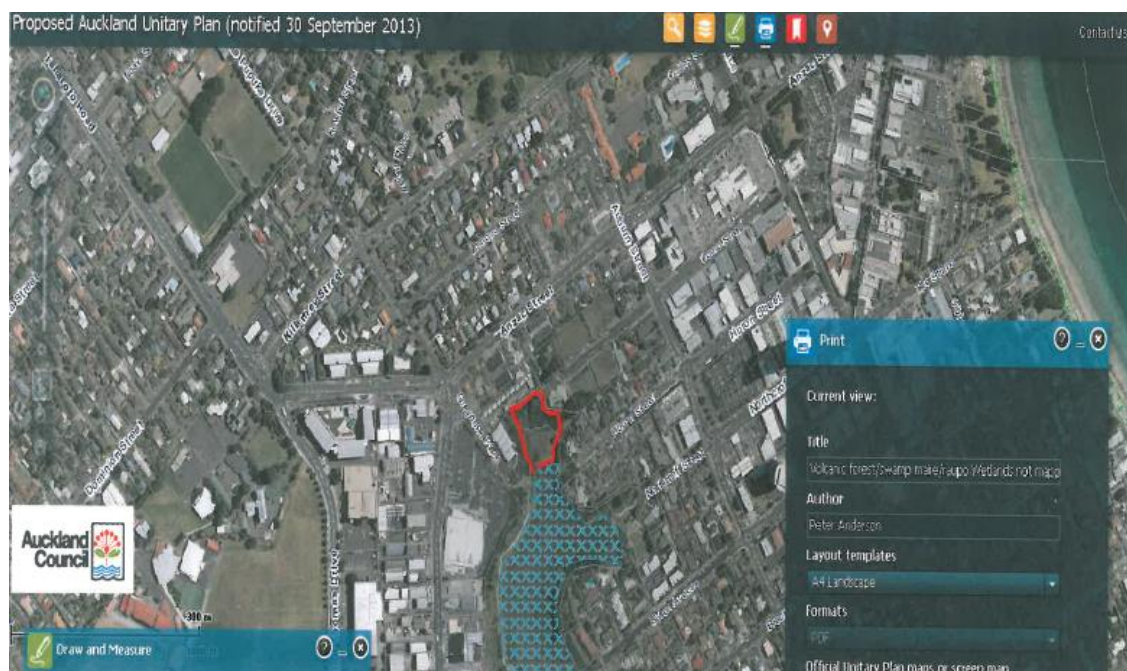
Chelsea Ponds, Birkenhead



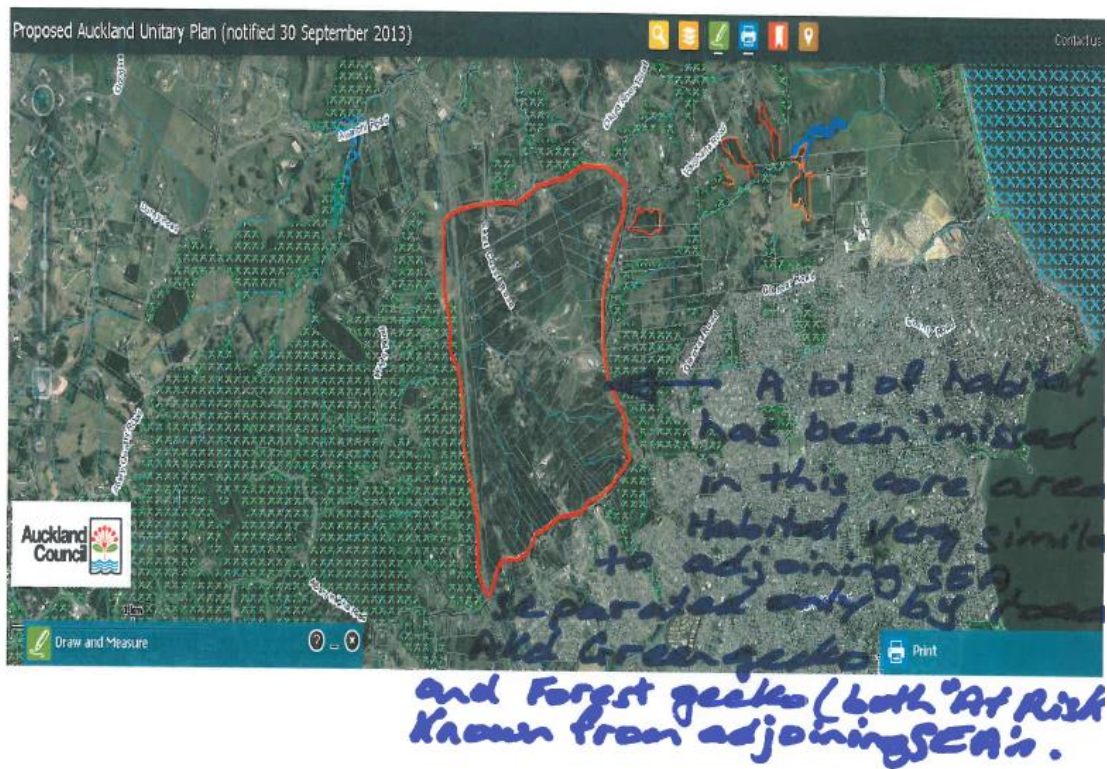
Castor Bay



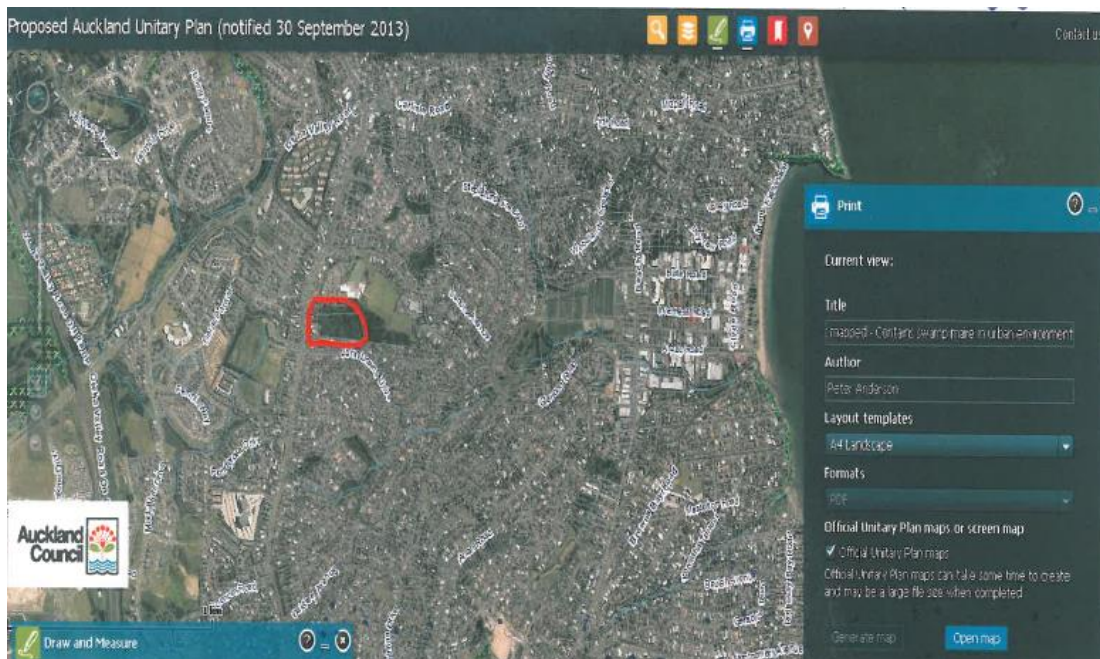
## Long Bay



## Takapuna, SEA 8411



#### South-Western Okura/Redvale stream catchment



#### Northcross Reserve